
CONSTITUTIONAL AND LEGISLATIVE PROVISIONS

Indian environmental statutes chiefly employ a system of licensing and criminal sanctions to preserve natural resources and regulate their use. Civil compensation recovered through private citizens' suits plays a peripheral role in the overall regulatory strategy. Pollution charges, fees or other economic approaches to discourage pollution are largely untried

Until recently, the implementation of environmental laws was the exclusive province of specially constituted state agencies which issued permits and prosecuted violators in the ordinary criminal courts. Since 1986, enforcement techniques have been strengthened. These laws now permit *private* prosecutions and more significantly, empower state agencies to shut down polluting industries or stop their supply of water and power. This last enforcement method, in theory, promises quick results because it combines in a single state agency the old divided enforcement scheme of government prosecutions that required both administrative and judicial action to discipline violators. As we shall see from a number of public interest litigations discussed in this book, the performance of most enforcement agencies—whether it be the pollution control boards, forest bureaucracies or local town planning authorities—has been dismal. Few bureaucrats have effectively exercised their authority unless compelled to do so by judicial oversight. The judicial role in securing enforcement through public interest litigation lies outside the formal *statutory* framework and has been assumed by the higher judiciary in discharge of its *constitutional* obligations

In this chapter we digest the primary regulatory statutes and examine in some detail the Environment (Protection) Act of 1986. India's international obligations under important multilateral treaties and conventions complement the municipal law and are dealt with in a separate chapter at the end of this book. Quite a few international law norms have been assimilated into domestic law by judgments of the apex court. But first, to put the whole regulatory framework in perspective, we examine the constitutional provisions that relate to the environment.

A. CONSTITUTIONAL PROVISIONS AND THE ENVIRONMENT

I. FUNDAMENTAL NORMS

The Indian Constitution is amongst the few in the world that contains specific provisions on environmental protection. The directive principles of state policy and the fundamental duties chapters explicitly enunciate the national commitment to protect and improve the environment. Judicial interpretation has strengthened this constitutional mandate.

In a case where the Supreme Court intervened to protect the forest wealth and wildlife from the ravages of mining in and around Sariska sanctuary in the Alwar district of Rajasthan, the court viewed its own constitutional role thus:

This litigation concerns environment. A great American Judge emphasizing the imperative issue of environment said that he placed Government above big business, individual liberty above Government and environment above all. The issues and concerns in this case far transcend the trivialities and inhibitions of an adversarial litigation. All the parties must be forthcoming in a concerted effort to find a satisfying solution to the problem which, in more ways than one, is typical of the Indian predicament. We are, therefore, entitled to expect that the State Government and the mining-entrepreneurs in their own enlightened self interest will discard the adversarial litigative stance. *The issues of environment must and shall receive the highest attention from this Court.*¹

This approach has led the Supreme Court to derive, adopt and apply a range of principles to guide the development of environmental jurisprudence. Notable amongst the *fundamental norms* recognized by the court are:

(1) Every person enjoys the right to a wholesome environment, which is a facet of the right to life guaranteed under Article 21 of the Constitution of India.²

(2) Enforcement agencies are under an obligation to strictly enforce environmental laws.³

(3) Government agencies may not plead non-availability of funds, inadequacy of staff or other insufficiencies to justify the non-performance of their obligations under environmental laws.⁴

¹ Emphasis supplied *Tarun Bharat Sangh, Alwar v Union of India (Sariska Case)* Writ Petition (Civil) No. 509 of 1991, Supreme Court, 14 May 1992 (M.N. Venkatachaliah and B.P. Jeevan Reddy, JJ.).

² *Subhash Kumar v State of Bihar* AIR 1991 SC 420, 424, *M C. Mehta v Union of India (Delhi Stone Crushing Case)* 1992 (3) SCC 256, 257, and *Virender Gaur v State of Haryana* 1995 (2) SCC 577, 581. See A. Rosencranz and S. Rustomjee, *Citizens' Right to a Healthful Environment*, 25 ENVIR. POL. & LAW 324 (1995).

³ *Indian Council for Enviro-Legal Action v Union of India (CRZ Notification Case)* 1996 (5) SCC 281, 294, 301.

⁴ *Dr B L. Wadhwa v Union of India (Delhi Garbage Case)* AIR 1996 SC 2969, 2976.

(4) The 'polluter pays' principle which is a part of the basic environmental law of the land requires that a polluter bear the remedial or clean up costs as well as the amounts payable to compensate the victims of pollution.⁵

(5) The 'precautionary principle' requires government authorities to anticipate, prevent and attack the causes of environmental pollution. This principle also imposes the onus of proof on the developer or industrialist to show that his or her action is environmentally benign.⁶

(6) Government development agencies charged with decision making ought to give due regard to ecological factors including (a) the environmental policy of the Central and state government; (b) the sustainable development and utilization of natural resources; and (c) the obligation of the present generation to preserve natural resources and pass on to future generations an environment as intact as the one we inherited from the previous generation.⁷

(7) Stringent action ought to be taken against contumacious defaulters and persons who carry on industrial or development activity for profit without regard to environmental laws.⁸

(8) The power conferred under an environmental statute may be exercised only to advance environmental protection and not for a purpose that would defeat the object of the law.⁹

(9) The state is the trustee of all natural resources which are by nature meant for public use and enjoyment. The public at large is the beneficiary of the sea-shore, running waters, air, forests and ecologically fragile lands. These resources cannot be converted into private ownership.¹⁰

II. DIVISION OF LEGISLATIVE AUTHORITY

Under India's federal system, governmental power is shared between the Union or 'Central' Government and the 26 state governments. Part XI of the Constitution

⁵ *Indian Council for Enviro-Legal Action v Union of India (Bhilai Case)* AIR 1996 SC 1446, 1466, *Vellore Citizens' Welfare Forum v Union of India*, AIR 1996 SC 2715, 2721, and *S. Jagannath v Union of India (Shrimp Culture Case)* AIR 1997 SC 811, 846, 850.

⁶ *Vellore Citizens' Welfare Forum v Union of India* AIR 1996 SC 2715, 2721, *S. Jagannath v Union of India (Shrimp Culture Case)* AIR 1997 SC 811, 846, and *A P Pollution Control Board v Prof. M. V. Nayudu* AIR 1999 SC 812, 819.

⁷ *State of Himachal Pradesh v Ganesh Wood Products* AIR 1996 SC 149, 159, 163.

⁸ *Indian Council for Enviro-Legal Action v Union of India (Bhilai Case)* AIR 1996 SC 1446, 1468, *Pratibha Co-operative Housing Society Ltd. v State of Maharashtra* AIR 1991 SC 1453, 1456, *Pleasant Stay Hotel v Palani Hills Conservation Council* 1995 (6) SCC 127, 139, and *M I Builders v Radhey Shyam Sahu* AIR 1999 SC 2468, 2505.

⁹ *Bangalore Medical Trust v B S. Muddappa* AIR 1991 SC 1902, 1911, 1924, *Virender Gaur v State of Haryana* 1995 (2) SCC 577, 583, and *Indian Council for Enviro-Legal Action v Union of India (CRZ Notification Case)* 1996 (5) SCC 281, 299, 302.

¹⁰ *M C. Mehta v Kamal Nath (Span Motel Case)* 1997 (1) SCC 388, and *M I Builders v Radhey Shyam Sahu* AIR 1999 SC 2468, 2498.

governs the legislative and administrative relations between the Union and the states.

Parliament has the power to legislate for the whole country, while the State Legislatures are empowered to make laws for their respective states. Article 246 of the Constitution divides the subject areas of legislation between the Union and the states. The Union List (List I) in the Seventh Schedule to the Constitution contains 97 subjects over which Parliament has exclusive powers to legislate. These include defence, foreign affairs, atomic energy, interstate transportation, shipping, major ports, regulation of air traffic, regulation and development of oilfields, mines and mineral development and interstate rivers. The State Legislatures have exclusive power to legislate with respect to 66 subjects in the State List (List II), such as public health and sanitation, agriculture, water supplies, irrigation and drainage and fisheries.

Under the Concurrent List (List III), both Parliament and the State Legislatures have overlapping and shared jurisdiction over 52 subject areas including forests, the protection of wildlife, mines and mineral development not covered in the Union List, population control and family planning, minor ports and factories.

Parliament has residual power to legislate on subjects not covered by the three Lists.¹¹ When a central law conflicts with a state law on a concurrent subject, the former prevails. A state law passed subsequent to the central law will prevail, however, if it has received Presidential Assent under Article 254.

Parliament is also empowered to legislate in the 'national interest' on matters enumerated in the State List.¹² In addition, Parliament may enact laws on state subjects, for states whose legislatures have consented to central legislations. Thus, the Water (Prevention and Control of Pollution) Act of 1974 was enacted by Parliament pursuant to consent resolutions passed by 12 State Legislatures.

From an environmental standpoint, the allocation of legislative authority is an important one: Some environmental problems such as sanitation and waste disposal, are best tackled at the local level. Others, like water pollution and wildlife protection, are better regulated by uniform national laws.

The Constituent Assembly that framed India's Constitution did not specifically consider the question of whether Parliament or the State Legislatures should regulate environmental matters. Instead, the distribution of environmental subjects within the three Lists was influenced by the Government of India Act of 1935 and by the conflict between those who wished to create a strong Centre and others who preferred to secure more powers for the states.¹³ Understandably, there was a tussle for control over natural resources such as forests and fisheries which were important economic subjects. In July, 1949 the Drafting Committee of the Constituent Assembly convened a meeting of the Premiers of the Indian states and provinces and the

¹¹ Article 248.

¹² Article 249.

¹³ See generally, H. Seervai, *Constitutional Law of India: A Critical Commentary* 164–71 (Vol. I, 1991); and S. Rao, *The Framing of India's Constitution. Select Documents* 315 (Vol. IV, 1968).

representatives of central ministers to discuss the division of legislative powers.¹⁴

At this meeting, proposals from the Ministry of Agriculture that 'Forests' and 'Fisheries' be transferred from the State List to the Concurrent List were strongly opposed by the provincial representatives.¹⁵ The ministry argued that the forests affect the agricultural development and prosperity of the country as a whole, and no province or state should, even inadvertently, follow a policy that could be detrimental to the rest of the country. 'For instance, floods which cause considerable havoc in the plains may be the result of indiscriminate felling in the catchment areas under the control and jurisdiction of an entirely different Province.'¹⁶ But the arguments failed, the proposals were rejected and the topic 'Forests' was classified as a state subject.¹⁷

Another proposal, jointly sponsored by the Ministries of Health and Home Affairs, aimed at removing 'Public Health and Sanitation' from the State List and placing it with 'Vital Statistics including registration of births and deaths' in the Concurrent List. It was argued that central legislation would be necessary to prevent the spread of diseases from one province to another. Unconvinced, the Premiers of the United Provinces, Assam, Bombay and Bihar, successfully resisted the move. Only the second part, placing 'Vital Statistics' in the Concurrent List, was accepted at the meeting.¹⁸

Elsewhere in these deliberations, the Ministry of Health successfully proposed an expansion of Parliament's power to regulate interstate rivers so that pollution of rivers by industrial wastes and sewage could be controlled. The ministry proposed that the draft Entry 74 in the Union List be widened to read: 'The development of *inter-State rivers and inter-State waterways for purposes of flood control, irrigation, navigation and hydroelectric power and for other purposes, where such development under the control of the Union is declared by Parliament by law to be expedient in the public interest.*'¹⁹ This instance of environmental sensitivity was exceptional. The larger question of a decentralized versus a centralized federal structure prevailed over the issue of whether the central or State Legislatures were better situated to regulate environmental matters.

III. THE FORTY-SECOND AMENDMENT ACT

Environmental protection and improvement were explicitly incorporated into the Constitution by the Constitution (Forty-Second Amendment) Act of 1976. Article

¹⁴ S. Rao, *id.*

¹⁵ *Id.* at 635

¹⁶ S. Rao, *The Framing of India's Constitution: A Study* 633 (Vol. V, 1968).

¹⁷ The Constitution (Forty-Second Amendment) Act of 1976 moved 'Forests' to the Concurrent List

¹⁸ S. Rao, *supra* note 13, at 634-5

¹⁹ Proposal emphasized. As finally adopted, Item 56 of the Union List (corresponding to draft Entry 74) reads: 'Regulation and development of inter-State rivers and river valleys to the extent to which such regulation and development under the control of the Union is declared by Parliament by law to be expedient in the public interest.'

48A was added to the directive principles of state policy. It declares: 'The State shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country.' Article 51A(g) in a new chapter entitled 'Fundamental Duties', imposes a similar responsibility on every citizen 'to protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures. ...' Although the language in the two articles differs, the differences appear to relate to form rather than to substance. Together, the provisions highlight the national consensus on the importance of environmental protection and improvement and lay the foundation for a jurisprudence of environmental protection.²⁰

There was considerable debate in Parliament over the wording of draft Article 48A. In the Lok Sabha several amendments were moved. One of them required the state to 'conserve and develop the water, soil and other natural resources', while another proposed to ensure that the state's efforts to protect and improve the environment would not harm tribal forest dwellers. None of these amendments were accepted by the government, which took the position that the broad terms of a directive principle need not contain details.²¹

Welcoming the provision, members in the Rajya Sabha²² proposed that the Article should also mention 'mineral wealth' and require the government to 'undertake adequate and effective measures to check environmental pollution.' Both amendments were rejected by the government as the existing wording was considered wide enough to cover the amendments' underlying concerns.²³

IV. THE DIRECTIVE PRINCIPLES OF STATE POLICY

The directive principles are policy prescriptions that guide the government. Some of them are in the nature of economic rights that India could not guarantee when the Constitution was enacted, but that were expected to be realised in succeeding years. Although unenforceable by a court, the directive principles are increasingly being cited by judges as complementary to the fundamental rights.²⁴ In several environmental cases the courts have been guided by the language of Article 48A.²⁵

²⁰ *M C Mehta v State of Orissa* AIR 1992 ORI 225, 227

²¹ The Lok Sabha is the House of the People (Lower House of Parliament) *Lok Sabha Debates*, Eighteenth Session, Fifth Series, Vol LXV, No. 5, Oct. 29, 1976, columns 94–116 The Constitution (Forty-Fourth Amendment) Bill of 1976 after passage became the Constitution (Forty-Second Amendment) Act of 1976.

²² House of the States (Upper House of Parliament).

²³ *Parliamentary Debate: Rajya Sabha Official Report*, Vol XCVIII, No. 5, Nov. 9, 1976, columns 158–71

²⁴ e.g., *Som Prakash Rekhu v Union of India* AIR 1981 SC 212, 221–2

²⁵ *Virender Gaur v State of Haryana* 1995 (2) SCC 571, 580, *Indian Council for Enviro-Legal Action v Union of India (Bichhri Case)* AIR 1996 SC 1446, 1459, *M C. Mehta v Union of India* AIR 1988 SC 1037, 1038, *Rural Litigation and Entitlement Kendra, Dehradun v State of Uttar Pradesh* AIR 1988 SC 2187, 2199, and *Kinkert Devi v State of Himachal Pradesh* AIR 1988 HP 4, 8

Indeed, the Supreme Court has held:

Whenever a problem of ecology is brought before the Court, the Court is bound to bear in mind Art. 48A of the Constitution .. and Art. 51 A(g) .. When the Court is called upon to give effect to the Directive Principle and the fundamental duty, the Court is not to shrug its shoulders and say that priorities are a matter of policy and so it is a matter for the policy-making authority. The least that the Court may do is to examine whether appropriate considerations are borne in mind and irrelevancies excluded. In appropriate cases, the Court may go further, but how much further will depend on the circumstances of the case. The Court may always give necessary directions. However the Court will not attempt to nicely balance relevant considerations. When the question involves the nice balancing of relevant considerations the Court may feel justified in resigning itself to acceptance of the decision of the concerned authority.²⁶

Similarly, the Andhra Pradesh High Court has interpreted Article 48A as imposing 'an obligation' on the government, including courts, to protect the environment.²⁷

India's rich cultural heritage is at times endangered by large development projects and short-sighted locational decisions. For example, emissions by industry which were permitted to come up in and around Agra threaten the Taj Mahal, a monument protected under the Ancient Monuments and Archeological Sites and Remains Act of 1958 and a World Heritage Site recognized by the 1972 UNESCO Convention for the Protection of the World Cultural and Natural Heritage.²⁸ In such situations, a court may be guided by the directive principle in Article 49, which casts a duty on the state 'to protect every monument or place or object of artistic or historic interest declared by or under law made by Parliament to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be.' Moreover, in view of the range of international treaties on different aspects of environmental protection (covered in chapter fifteen), the state's obligation to 'foster respect for international law and treaty obligations' in Article 51(c), read in conjunction with the specific treaty provisions, may also serve to strengthen the hands of a pro-conservation judge.

V. ARTICLE 253 AND ENVIRONMENTAL LEGISLATION

The Forty-Second Amendment also expanded the list of concurrent powers in the Constitution. The amendment introduced a new entry, 'Population Control and Family Planning,' while 'Forests' and 'Protection of Wild Animals and Birds' were moved from the State List to the Concurrent List.

²⁶ *Sachidanand Pandey v. State of West Bengal* AIR 1987 SC 1109, 1114-15.

²⁷ *I. Damodar Rao v. The Special Officer, Municipal Corporation of Hyderabad* AIR 1987 AP 171, 181.

²⁸ Reprinted in 111 L.M. 1358 (1972).

Article 253 of the Constitution empowers Parliament to make laws implementing India's international obligations as well as any decision made at an international conference, association or other body. Article 253 states: 'Notwithstanding anything in the foregoing provisions of this Chapter, Parliament has power to make any law for the whole or any part of the territory of India for implementing any treaty, agreement or convention with any other country or countries or any decision made at any international conference, association or other body.' Entry 13 of the Union List covers: 'Participation in international conferences, associations and other bodies and implementing of decisions made thereat.' In view of the broad range of issues addressed by international conventions, conferences, treaties and agreements, Article 253 read with Entry 13 apparently gives Parliament the power to enact laws on virtually any entry contained in the State List.

Parliament has used its power under Article 253 read with Entry 13 of the Union List to enact the Air (Prevention and Control of Pollution) Act of 1981 and the Environment (Protection) Act of 1986.²⁹ The preambles to both laws state that these Acts were passed to implement the decisions reached at the United Nations Conference on the Human Environment held at Stockholm in 1972. At the conference, members of the United Nations agreed to work to preserve the world's natural resources, and called on each country to carry out this goal.

The broad language of Article 253 suggests that in the wake of the Stockholm Conference in 1972, Parliament has the power to legislate on all matters linked to the preservation of natural resources.³⁰ Parliament's use of Article 253 to enact the Air Act and Environment Act confirms this view. The subjects 'Forests' and 'Preservation of Wild Animals and Birds' relate to natural resources. It appears, therefore, that the expansion of concurrent powers by the Forty-Second Amendment in 1976 only made explicit, powers that Parliament already possessed under Article 253.

VI. FEDERALISM: SOME ISSUES

On occasion, the division of power under India's federal structure has led to tensions between the Centre and the states in matters concerning regional development and the preservation of natural resources. The areas of stress include coastal development and the commercial exploitation of mineral resources around federally protected areas. In some instances, such as development in the Dahanu Taluka

²⁹ *S. Jagannath v Union of India (Shrimp Culture Case)* AIR 1997 SC 811, 844, 846.

³⁰ In 1980 the Tiwari Committee recommended that a new entry on 'Environmental Protection' be introduced in the Concurrent List to enable the Central Government to legislate on environmental subjects. The Committee's recommendation was based on a note from the Indian Academy of Environmental Law which observed that there was no direct entry in the Seventh Schedule enabling Parliament to enact comprehensive environmental laws. The note, however, did not consider Parliament's power under Article 253. Department of Science and Technology, Government of India, *Report of the Committee for Recommending Legislative Measures and Administrative Machinery for Ensuring Environmental Protection* para 3.15 (1980).

of Maharashtra, the state government has turned openly hostile to the imposition of central regulations.

Town planning, building regulations and local zoning are state subjects.³¹ Consequently, provisions for development along the coast and foreshore are found in several municipal statutes and the land codes of the coastal states. These local laws, however, proved inadequate to protect the coastal ecology, prompting the Central Government to impose stringent national coastal development norms in 1991. The norms severely restrict the nature of development in a 500 m. wide strip along the entire Indian coast, adding up to more than 3000 sq.km. of land. Understandably, several state governments are irate at the sweeping assumption of power by the Centre,³² particularly since the coastal norms are *delegated* legislation issued by the executive under the Environment (Protection) Rules of 1986 which, in turn, were framed under the Environment (Protection) Act of 1986 (EPA).

In the *Shrimp Culture Case*,³³ the Supreme Court upheld the power of the Union Government to frame coastal regulations in view of Parliament's competence under Article 253 read with Entry 13, List I of the Seventh Schedule to the Constitution, to enact the EPA for implementing the decisions taken at the 1972 Stockholm Conference.³⁴ The court went further and recognized that the coastal regulations 'shall have overriding effect and shall prevail over the law made by the legislatures of the states.'³⁵

Another contentious issue relates to the quarrying of mineral deposits in areas close to forest lands and wildlife reserves. Central statutes designed to protect forests and prevent the destruction of wildlife habitat are viewed by some states as a needless fetter on industrial activity and mining. Several state governments, notably Rajasthan³⁶ and Gujarat³⁷ are anxious to encourage the commercial exploitation of minerals and have worked hard to neutralize federal protection in these areas.

The picturesque Dahanu Taluka, one of the richest horticultural districts in India, has strained Centre-state relations. In June 1991 the Union Ministry of

³¹ These topics fall under the heads 'Land' and 'Local government' which are items 18 and 5 of List II (State List) in the Seventh Schedule to the Constitution

³² *Coastal Zone Rules to be Amended Soon*, ECONOMIC TIMES, New Delhi, 13 November 1996. Maharashtra expressed strong reservations on the incursion by the Centre in its counter affidavit dated 10 August 1994 filed before the Supreme Court in *Buttu Sehgal v Union of India*, Writ Petition (Civil) No. 231 of 1994

³³ *S Jagannath v Union of India* AIR 1997 SC 811, 846

³⁴ United Nations Conference on the Human Environment.

³⁵ *Supra* note 33

³⁶ *Shekhawat Irrigated by Centre's Move to Amend Forest Act*, INDIAN EXPRESS, Bombay, 1 February 1995, and *Tarun Bharat Sangh, Alwar v Union of India (Sariska Case)* 1993 Supp (3) SCC 115, 128

³⁷ See *Consumer Education and Research Society v Union of India (Narayan Sarovar Case-I)* Special Civil Application No. 1313 of 1993, Gujarat High Court, 22-4 March 1995 (B.N. Kirpal, C.J. and H.L. Gokhale, J.)

Environment and Forests notified a scheme of restrictions under the EPA limiting industrial activity in this ecologically sensitive area. Maharashtra has decried the Central scheme³⁸ claiming that it stifles legitimate development activity in a part of its territory and has lobbied hard for lifting the restrictions.

The division of authority between the Centre and the states has also prompted some central agencies to resist compliance with state town planning regulations. In Maharashtra for instance, until the 1981 decision of the Bombay High Court in the *Sassoon Harbour Case*,³⁹ (implicitly settling the issue against the central agencies), several central authorities resisted regulation under the local town planning laws.

B. ENVIRONMENTAL PROTECTION AND FUNDAMENTAL RIGHTS

I. THE RIGHT TO A WHOLESOME ENVIRONMENT

Encouraged by an atmosphere of freedom and articulation in the aftermath of the Emergency,⁴⁰ the Supreme Court entered one of its most creative periods. Specifically, the court fortified and expanded the fundamental rights enshrined in Part III of the Constitution. In the process, the boundaries of the fundamental right to life and personal liberty guaranteed in Article 21 were expanded to include environmental protection.⁴¹

The Supreme Court strengthened Article 21 in two ways. First, it required laws affecting personal liberty to also pass the tests of Article 14 and Article 19 of the Constitution,⁴² thereby ensuring that the procedure depriving a person of his or her personal liberty be reasonable, fair and just.⁴³ Second, the court recognized several unarticulated liberties that were implied by Article 21. It is by this second method that the Supreme Court interpreted the right to life and personal liberty to include the right to a wholesome environment.

The first indication of the right to a wholesome environment may be traced to

³⁸ Affidavit of the state government, *supra* note 32.

³⁹ *Shyam Chainani v The Board of Trustees of the Port of Bombay* Appeal No. 151 of 1980 in Misc. Pet. No. 58 of 1980, Bombay High Court, 30 April 1981.

⁴⁰ On 25 June 1975 a Proclamation of Emergency was issued on the ground of 'internal disturbance' threatening the security of India. A widespread denial of civil and political rights followed. The proclamation was revoked in March, 1977 shortly after the Indira Gandhi government was swept out of power in a national election.

⁴¹ Article 21 states: 'No person shall be deprived of his life or personal liberty except according to procedure established by law.'

⁴² *Maneka Gandhi v Union of India* AIR 1978 SC 597, 623-4. Article 14 enshrines the right to equality before law and protects a person against arbitrary or unreasonable state action. Article 19 enumerates certain fundamental rights, such as the right to freedom of speech and expression and the right to form associations or unions.

⁴³ *Francis Coralie Mullin v The Administrator, Union Territory of Delhi* AIR 1981 SC 746, 749-50.

the *Dehradun Quarrying Case*.⁴⁴ In July, 1983, representatives of the Rural Litigation and Entitlement Kendra, Dehradun wrote to the Supreme Court alleging that illegal limestone mining in the Mussoorie–Dehradun region was devastating the fragile ecosystems in the area. On 14 July, the court directed its registry to treat the letter as a writ petition under Article 32 of the Constitution, with notice to the government of Uttar Pradesh and the collector of Dehradun. Over the years the litigation grew increasingly complex. By the time the court issued its final judgment in August, 1988, it had heard lengthy arguments from the Central and state governments, government agencies and mine lessees; appointed several expert committees, and passed at least five comprehensive, interim orders. None of these orders, however, articulate the fundamental right to a healthful environment.

Eight years after entertaining the *Dehradun Quarrying Case*, the Supreme Court revealed the basis of its jurisdiction to entertain environmental cases. In *Subhash Kumar v State of Bihar*,⁴⁵ the court held that the right to life includes the right to enjoy unpolluted air and water. If anything endangers or impairs the quality of life in derogation of law, a citizen has a right to move the Supreme Court under Article 32 of the Constitution. Expanding upon this theme in a town planning case, *Virender Gaur v State of Haryana*,⁴⁶ the court observed:

Article 21 protects the right to life as a fundamental right. Enjoyment of life including [the right to live] with human dignity encompasses within its ambit, the protection and preservation of environment, ecological balance free from pollution of air and water, sanitation, without which life cannot be enjoyed. Any contravention or actions would cause environmental pollution. Environmental, ecological, air, water pollution, etc. should be regarded as amounting to violation of Article 21. Therefore, hygienic environment is an integral facet of right to healthy life and it would be impossible to live with human dignity without a human and healthy environment... [T] here is a constitutional imperative on the State Government and the municipalities, not only to ensure and safeguard proper environment but also an imperative duty to take adequate measures to promote, protect and improve both the man-made and the natural environment.⁴⁷

In addition, several High Courts have explicitly recognized an environmental dimension to Article 21. For example, while considering a writ petition to enjoin

⁴⁴ *Rural Litigation and Entitlement Kendra, Dehradun v State of Uttar Pradesh* AIR 1988 SC 2187.

⁴⁵ AIR 1991 SC 420, 424. Also see *M C Mehta v Union of India (Delhi Stone Crushing Case)* 1992 (3) SCC 256, 257, and *Chamech Singh v State of Uttar Pradesh* AIR 1996 SC 1051, 1053. When deriving the right to shelter under Article 21 the Supreme Court held that this right would include 'the right to decent environment and a reasonable accommodation to live in' *Shantistar Builders v Narayan K. Totame* AIR 1990 SC 630.

⁴⁶ 1995 (2) SCC 577.

⁴⁷ *Id.* at 580–1.

the Life Insurance Corporation and the Income-tax Department from building residential houses in a recreational zone, the Andhra Pradesh High Court held:

[I]t would be reasonable to hold that the enjoyment of life and its attainment and fulfillment guaranteed by Article 21 of the Constitution embraces the protection and preservation of nature's gifts without [which] life cannot be enjoyed. There can be no reason why practice of violent extinguishment of life alone should be regarded as violative of Article 21 of the Constitution. The slow poisoning by the polluted atmosphere caused by environmental pollution and spoilation should also be regarded as amounting to violation of Article 21 of the Constitution. ...

It, therefore, becomes the legitimate duty of Courts as the enforcing organs of Constitutional objectives to forbid all action of the State and the citizen from upsetting the environmental balance. In this case the very purpose of preparing and publishing the development plan is to maintain such an environmental balance. The object of reserving certain area as a recreational zone would be utterly defeated if private owners of the land in that area are permitted to build residential houses. It must, therefore, be held that the attempt of the Life Insurance Corporation of India and the Income-tax Department to build houses in this area is contrary to law and also contrary to Article 21 of the Constitution.⁴⁸

Judges of the High Courts of Rajasthan,⁴⁹ Kerala,⁵⁰ Himachal Pradesh,⁵¹ Karnataka⁵² and Madhya Pradesh⁵³ too, have observed that environmental degradation violates the fundamental right to life.

II. THE RIGHT TO LIVELIHOOD

Another aspect of the right to life—the right to livelihood—can potentially check government actions with an environmental impact that threaten to dislocate poor people and disrupt their lifestyles. Conservative estimates place the figure of India's project displaced people over the past four decades at 16 million⁵⁴ no more than a quarter of whom were satisfactorily rehabilitated. The Morse Report to the World Bank which reviewed the Sardar Sarovar project on the Narmada notes that the

⁴⁸ *T Damodar Rao v The Special Officer, Municipal Corporation of Hyderabad* AIR 1987 AP 171, 181.

⁴⁹ *L K. Koolwal v State of Rajasthan* AIR 1988 RAJ 2, 4; and *Arvind Textiles v State of Rajasthan* AIR 1994 RAJ 195, 197.

⁵⁰ *Mudhavi v Tilakan* 1988 (2) KER.L.T. 730, 731; *Attakoya Thangal v Union of India* 1990 (1) KER.L.T. 580, 583, and *Law Society of India v Fertilizers and Chemicals Travancore Ltd* AIR 1994 KER 308, 370.

⁵¹ *Kinkri Devi v State of Himachal Pradesh* AIR 1988 HP 4, 9.

⁵² *V. Lakshminpathy v State of Karnataka* AIR 1994 KAR 57, 67

⁵³ *K.C. Malhotra v State of Madhya Pradesh* AIR 1994 MP 48, 52; and *Hamid Khan v State of Madhya Pradesh* AIR 1997 MP 191, 193.

⁵⁴ World Bank, *Resettlement and Development* 2/11 (1994).

'record of resettlement and rehabilitation in India ... has been unsatisfactory in virtually every project with a large resettlement component.'⁵⁵

The Supreme Court recognized the right to livelihood in the case of *Olga Tellis v Bombay Municipal Corporation*.⁵⁶ The petitioners, a journalist and two pavement dwellers, challenged a government scheme to deport pavement dwellers from Bombay to their places of origin. The main plank of the petitioners' argument was that the right to life includes the right to livelihood, and since the pavement dwellers would be deprived of their livelihood if they were evicted from their slum and pavement dwellings, their eviction would be tantamount to deprivation of their life, and was hence unconstitutional. Accepting the petitioners' argument, the court held:

Deprive a person of his right to livelihood and you shall have deprived him of his life. ... The State may not by affirmative action, be compellable to provide adequate means of livelihood or work to the citizens. But, any person, who is deprived of his right to livelihood except according to just and fair procedure established by law, can challenge the deprivation as offending the right to life conferred by Art. 21.⁵⁷

The court directed the municipal corporation to provide alternative sites or accommodation to the slum and pavement dwellers within a reasonable distance of their original sites; to earnestly pursue a proposed housing scheme for the poor, and to provide basic amenities to slum dwellers.⁵⁸

Thereafter, in *Banawasi Seva Ashram v State of Uttar Pradesh*,⁵⁹ the Supreme Court detailed safeguards to protect tribal forest dwellers who were being ousted from their forest land by the National Thermal Power Corporation Limited (NTPC) for the Rihand Super Thermal Power Project. The court permitted the acquisition of the land only after the NTPC agreed to provide certain court-approved facilities to the ousted forest dwellers.⁶⁰ In other Article 32 petitions, the court has passed interim orders requiring state agencies to resettle and rehabilitate tribals who were being displaced by dams.⁶¹

⁵⁵ *Sardar Sarovar Report of the Independent Review* 351 (1992) The report was prepared by Bradford Morse, former UNDP Director and was commissioned by the World Bank

⁵⁶ AIR 1986 SC 180

⁵⁷ *Id.* at 194

⁵⁸ *Id.* at 204

⁵⁹ AIR 1987 SC 374 In the course of its order the court observed that the tribals 'for generations had been using the jungles around for collecting the requirements for their livelihood—fruits, vegetables, fodder, flowers, timber, animals by way of sport and fuelwood' Although not explicitly referred to in the order, Article 21 and the right to livelihood were impliedly relied on by the court (Subsequent orders in the same case are reported at 1987 (1) SCAI 1149, 1992 (1) SCC 117, AIR 1992 SC 920 and 1993 (2) SCC 612)

⁶⁰ AIR 1987 SC 374, 378

⁶¹ *Karanjan Jalasay Y A S A S Samiti v State of Gujarat* AIR 1987 SC 532 and *Gramin Sewa Sanstha v State of Uttar Pradesh* 1986 (Supp) SCC 578 Neither order explicitly refers to Article 21 or the right to livelihood

Can the right to livelihood be asserted to prevent environmentally disruptive projects that threaten to uproot villagers and consequently, deprive them of their livelihood? Consider a case where the government sanctions the construction of a large dam without an adequate environmental impact analysis⁶² and without public scrutiny. Is the government acting reasonably? Does the procedure leading to the government decision—a decision which will jeopardize the livelihood of thousands of villagers—meet the *Olga Tellis* standard of being a just and fair procedure established by law?

III. THE RIGHT TO EQUALITY

Apart from Article 21, the right to equality guaranteed in Article 14 of the Constitution may also be infringed by government decisions that have an impact on the environment.⁶³ Article 14, among other things, strikes at arbitrariness 'because an action that is arbitrary must necessarily involve a negation of equality.'⁶⁴

Thus, urban environmental groups frequently resort to Article 14 to quash 'arbitrary' municipal permissions for construction that are contrary to development regulations. Besides, Article 14 may also be invoked to challenge government sanctions for mining and other activities with high environmental impact, where the permissions are 'arbitrarily' granted without an adequate consideration of environmental impacts.⁶⁵ In *State of Himachal Pradesh v Ganesh Wood Products*,⁶⁶ the Supreme Court held that a decision making authority must give due weight and regard to ecological factors such as the environmental policy of government and the sustainable use of natural resources. A government decision that fails to take into account relevant considerations affecting the environment is invalid.⁶⁷

Is it possible to derive a *right to intergenerational equity* from Articles 21 and 14? The central tenet of the theory of intergenerational equity is the right of each generation of human beings to benefit from the cultural and natural inheritance from past generations as well as the *obligation* to preserve such heritage for future generations. Intergenerational equity requires conserving the diversity and quality of biological resources, and of renewable resources such as forests, water and soils.⁶⁸

⁶² Environmental Impact Analysis (EIA) is an exercise to evaluate the probable changes in the various socio-economic and bio-physical characteristics in the environment which may result from a proposed project. EIA is undertaken to reduce to a minimum the possibility of an action causing unanticipated changes in the environment. It assists decision-makers in considering the environmental costs and benefits of the proposed project. Where the benefits sufficiently exceed the costs of the project, the project may be environmentally justified.

⁶³ Article 14 states: 'The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.'

⁶⁴ *Ajay Hasia v Khalid Mujib Shervardi* AIR 1981 SC 487, 499.

⁶⁵ See generally, *Kinkri Devi v State of Himachal Pradesh* AIR 1988 HP 4, 9.

⁶⁶ AIR 1996 SC 149, 159, 163.

⁶⁷ *Id.*, and *Pleasant Stay Hotel v Palani Hills Conservation Council* 1995 (6) SCC 127, 136, 139, 140.

⁶⁸ See note on *Goa Guidelines on Intergenerational Equity* in 27 I.L.M. 1108 (1988) and the chapter on International Environmental Law.

Can this 'right' be invoked to preserve archaeological monuments or genetic resources threatened with destruction by state action or inaction?

In *Ganesh Wood Products Case* the Supreme Court recognized the obligation of the present generation to preserve natural resources for the next and future generations.⁶⁹ Likewise, in the *CRZ Notification Case*,⁷⁰ the Supreme Court observed that environmental statutes were enacted to ensure a good quality of life for unborn generations since it is they who must bear the brunt of ecological degradation.

IV. FREEDOM TO TRADE VIS-A-VIS ENVIRONMENTAL PROTECTION

As environmental regulation grows more stringent and its enforcement becomes more vigorous, industrial challenge to agency action is likely to increase. Courts will then need to balance environmental interests with the fundamental right to carry on any occupation, trade or business guaranteed in Article 19(1)(g).⁷¹ For example, effluent discharge standards prescribed by the pollution control boards may be challenged under Article 19 for being excessive (too stringent to comply with, despite using the best available technology) or otherwise unreasonable. Likewise, unreasonable government decisions relating to the siting or translocation of industry may also be assailed under Article 19(1)(g).

Such future clashes between industry and enforcement agencies are presaged in the case of *Abhilash Textile v Rajkot Municipal Corporation*, excerpted below. Here, the Gujarat High Court was required to balance the right to carry on business against the danger to public health from the discharge of 'dirty water' onto public roads and drains. While the court adopts a commendable pro-environment stance, is the judgment well-reasoned?

ABHILASH TEXTILE v RAJKOT MUNICIPAL CORPORATION

AIR 1988 GUJ 57

ORDER:

Is there any right to carry on business or trade in unregulated manner and cause nuisance to the public and also become a health hazard to the society at large? If no, can the petitioners claim any right to be heard before they are asked to discontinue or prevent the nuisance? This, in substance, is the question which needs to be examined in this group of petitions.

In these four petitions in all 165 petitioners who are conducting the business of dyeing and printing works at different places in the city of Rajkot challenge the

⁶⁹ *Supra* note 66

⁷⁰ *Indian Council for Enviro-Legal Action v Union of India, (CRZ Notification Case)* 1996 (5) SCC 281, 293

⁷¹ Article 19(1)(g) states: 'All citizens shall have the right ... to practise any profession, or to carry on any occupation, trade or business.'

notice issued by the respondent-Municipal Commissioner which is produced at Annexure-A to the petitions.

* * *

In this notice it is stated that at the place mentioned therein the petitioners are discharging dirty water from the factory on public road/public drainage without purifying the same, thereby causing damage to the public health. Moreover, it is stated that on 11 November 1986 when the place was visited by the Commissioner himself it was found that by discharging dirty water nuisance was being created. Hence each petitioner has been called upon to prevent the discharge of dirty water without the same being purified, within seven days from the date of receipt of the notice and they are also directed to inform the Commissioner regarding compliance. It is further stated that if there is failure to comply with the notice, under the powers conferred upon the Municipal Commissioner, he shall have to take steps to close the factory with a view to prevent the illegal discharge of dirty water.

The petitioners contended that they are carrying on the business for last about 20 to 25 years and the industry is providing employment to twenty to thirty thousand families; the proposed action as stated in the notice will have harsh consequences and the petitioners may have to close down their business. Having regard to the very harsh consequences it is submitted that before issuing the notice the respondent-Municipal Commissioner ought to have afforded an opportunity of being heard to the petitioners. Reliance is placed on the decision of the Supreme Court in the case of *Maneka Gandhi v Union of India* AIR 1978 SC 597. The learned counsel for the petitioners relied upon the following observations of the Supreme Court occurring in para 32 of the judgment:

It is well established that even where there is no specific provision in a statute or rules made thereunder for showing cause against action proposed to be taken against an individual, *which affects the rights of that individual*, the duty to give reasonable opportunity to be heard will be implied from the nature of the function to be performed by the authority which has the power to take punitive or damaging action.

The learned counsel for the petitioners submitted that the proposed action will have civil consequences inasmuch as the closing down of the factories will adversely affect the petitioners; they will have to close down their business and their right to carry on the business will be adversely affected. Similarly, very harsh consequences will follow and therefore, the notice Annexure-A which has been issued without affording an opportunity of being heard should be held to be illegal and void. [The court then set out the provisions of the Municipal Act defining a nuisance; providing for the licensing of trades that might cause a nuisance; and empowering the Municipal Commissioner to restrain nuisance-causing activities.]

In the background of the aforesaid statutory provisions can it be said that the petitioners have a right to carry on the business so as to cause nuisance and be a health hazard to the public at large? Article 19(1)(g) of the Constitution confers right

upon every citizen to practice any profession or to carry on any occupation, trade or business. But this fundamental right is subject to reasonable restrictions which may be placed in the interest of the general public as provided for in sub-clause (6) of Article 19 itself. No one has a right to carry on business so as to cause nuisance to the society. One cannot carry on the business in the manner by which the business activity becomes a health hazard to the entire society. The fundamental right to carry on trade or business is subject to reasonable restrictions and regulations that may be placed in the interest of the general public.

It may also be noted that by discharge of effluent water on public road and/or in the public drainage system the entire environment of the locality gets polluted. The provisions regarding fundamental duties of the citizens contained in Article 51A(g) of the Constitution enjoins upon all the citizens to protect and improve the natural environment * * * By the impugned notice the respondent-Municipal Commissioner has simply reminded the petitioners of their fundamental duty. The petitioners cannot assert their right, much less fundamental right, to carry on business without any regard to the fundamental duty. In a complex society, in which we live today, no one can claim absolute freedom without incurring any obligation whatsoever for the general well being. The Article 51-A regarding fundamental duties of citizens has been inserted in the Constitution by Forty Second Amendment and it has come into force with effect from 3 January 1977. Even in absence of the provisions with regard to fundamental duty as enshrined in Article 51-A of the Constitution, the Supreme Court has held that such restrictions placed on the fundamental right to carry on trade or business are in the interest of the general public and constitutionally valid and no citizen can claim absolute right to carry on business without complying with the restrictions placed in this behalf

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The contention that the petitioners are carrying on business for last about 20 to 30 years has also no merit. If the petitioners wish to carry on the business they may have to incur expenditure and they must provide for purification-plant before discharging the effluent water on public road or in the public drainage system. This is the minimum requirement for carrying on the business which they must comply with. If they have to incur expenditure for the purification-plant the same must be considered as part of the cost of the business. The petitioners cannot be allowed to reap profit at the cost of the public health. This is the mandate of the law. This is what the Commissioner has proposed to do by serving the impugned notice upon the petitioners.

The only ground urged before me is that the notice has been issued without affording an opportunity of being heard and therefore it is violative of the principles of natural justice. As shown heremabove the petitioners have not been able to show that they have any right, much less a fundamental right, to carry on their business without complying with the requirement of the law. Hence there is no substance in this contention. No other contention is raised.

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In the facts and circumstances of the case it is hoped that before taking any coercive steps the respondent-Municipal Commissioner will give some more time to the petitioners to mend their ways and prevent the nuisance. This observation is made with a view to see that several workmen employed by the numerous factories may not be tendered unemployed on account of the fact that the petitioners are carrying on their business in unregulated manner. Subject to the aforesaid observations, the petitions are rejected. Notice discharged. Ad interim relief granted earlier stands vacated in each petition.

QUESTIONS

In holding that the petitioners have no fundamental right to carry on business without complying with municipal laws, the court appears to pre-judge the very issue the petitioners were seeking to agitate before the municipal commissioner. Instead, should not the court have *upheld* the principle requiring a personal hearing and then declined to intervene under Article 226 on the ground that the petitioners had no case on the merits?

In the *Sushila Saw Mill Case*, excerpted below, the Supreme Court was asked to invalidate section 4 of the Orissa Saw Mills and Saw Pits (Control) Act of 1991 which prohibited saw mills from operating in a forest or within a buffer of 10 kilometres from a forest. The law was enacted to preserve the state's forests and stop illegal felling of trees. When the 1991 Act came into force, Sushila mill which had been running for a decade in the Keonjhar district of Orissa, found that it fell within the prohibited zone. The mill challenged the ban in the Orissa High Court, contending that the complete bar violated its fundamental right under Article 19(1)(g). The High Court was not impressed and dismissed the writ petition. The mill carried the matter to the Supreme Court in a special leave petition under Article 136 of the Constitution.

SUSHILA SAW MILL v STATE OF ORISSA

AIR 1995 SC 2484

ORDER:

* * *

The right to carry on trade or business envisaged under Article 19(1)(g) is subject to statutory regulation. When the statute prescribes total prohibition to continue to operate even the existing saw mills situated within the prohibited area, the right to carry on trade or business is subject to the provisions of the Act. Proviso to Section 4(1) puts a total embargo on the right to carry on trade or business in saw milling operation or sawing operation within the prohibited area. It is settled law that in the public interest restriction under Article 19(1)(g) may in certain rare cases include total prohibition.

This Court in *Narendra Kumar v Union of India* AIR 1960 SC 430, held that it is reasonable to think that makers of the Constitution considered the word 'restriction' to be sufficiently wide to save laws inconsistent with Article 19(1), or taking away the rights conferred by the Article, provided this inconsistency or taking away was reasonable in the interest of the different matters mentioned in the clause. There can be no doubt, therefore, that they intended the word 'restriction' to include cases of prohibition also in certain rare cases. The contention that a law prohibiting the exercise of a fundamental right is in no case saved cannot, therefore, be accepted. It is seen that the reserved forest is being denuded or depleted by illicit felling. Thereby denudation of the reserved forest was noticed by the legislature. The preservation of the forest is a matter of great public interest and one of the rare cases that demanded the total ban by the legislature. The Act came to be enacted to impose a total ban in prohibited area for the period during which the ban is in operation, to carry on saw mills business or sawing operation within the prohibited area. It is, therefore, clear that the statute intends to impose a total ban which is found to be in 'public interest'. The individual interest, therefore, must yield place to the public interest. Accordingly, it is neither arbitrary nor unreasonable. ... It is true that by geographical contiguity, Keonjhar District appears to have been situated within the prohibited area but that in the legislative mandate that the entire area covered within the prohibited zone is treated as a class as against the other area. Therefore, when the limits of that district are within prohibited zone of the reserved or protected or forest area etc. or within 10 kms it is a legislative scheme to give effect to the legislative object in the public interest to preserve forest wealth and environment and to put an end to illicit felling of forest growth. Therefore, it is a class legislation; it is not discriminatory and does not offend Article 14 or Article 301 of the Constitution. It is a valid law. The special leave petition is accordingly dismissed.

NOTES AND QUESTIONS

1. Would the outcome of the case have been different if not one, but several saw mills employing hundreds of workers were involved?
2. The court was extremely deferential to the legislature in upholding the ban. Is this because India's forests are in a devastated condition? Or more generally, would all prohibitions in aid of environmental protection meet the court's standard, i.e., 'a matter of great public interest and one of the rare cases that demand a total ban by the legislature'?

C. DIGEST OF ENVIRONMENTAL LEGISLATION

Although there are over two hundred central and state statutes that have some bearing on environmental protection,⁷² in most cases the environmental concern is incidental

⁷² Department of Science and Technology, Government of India, *Report of the (Tiwari) Committee for Recommending Legislative Measures and Administrative Machinery for Ensuring Environmental Protection* para 3 1 (1980).

to the law's principal object. For example, the Indian Fisheries Act of 1897 prohibited the destruction of fish by the use of explosives or by poisoning the water. Such scattered and piecemeal 'environmental' provisions held the field until the 1970s.⁷³

In that decade, the evolution of national environmental policies resulted in Parliament enacting comprehensive laws in the fields of wildlife protection and water pollution. In the early 1980s, nationwide forest conservation and air pollution laws were passed. The Bhopal tragedy in December, 1984 caused a surge in environmental legislation: An umbrella Environment (Protection) Act (EPA) was passed in 1986, followed by amendments tightening the laws relating to air and water pollution and to hazardous activities. The 1990s witnessed fresh legislation dealing with insurance cover for hazardous industries, new laws setting up an environmental tribunal and appellate authority, amendments to the wildlife regime and a spate of central regulations under the EPA. To provide an overview of environmental regulation in India this section digests the principal national environmental statutes.

INTERPRETATION OF ENVIRONMENTAL STATUTES

Frequently, judges must choose between two possible interpretations of an environmental statute, one that advances environmental protection, and the other favouring some other interest such as industry, jobs or the need for energy. In this situation a judge may be persuaded to a pro-environment construction on the basis of rules for the interpretation of statutes. A strong statement by the Supreme Court favouring a pro-environment interpretation was in the *Sariska Case*,⁷⁴ where the court held:

This litigation concerns environment. A great American Judge emphasising the imperative issue of environment said that he placed Government above big business, individual liberty above Government and environment above all. ... The issues of environment must and shall receive the highest attention from this Court.

Environment statutes are regarded as 'beneficient' legislation, enacted to advance the directive principle of state policy contained in Article 48A of the Constitution. Being beneficent legislation, it is the duty of the court to adopt an interpretation favouring ecological preservation.

Another related rule requires courts to adopt a 'purposive' interpretation, or an approach that advances the purpose which the legislature had in mind when enacting the law. For example, in *V. Shankar Reddy v State of Andhra Pradesh*,⁷⁵ a division

⁷³ At the state level, however, there are a few isolated instances of pre-1970 comprehensive environmental laws e.g., the Orissa River Pollution Prevention Act of 1953 and the Maharashtra Prevention of Water Pollution Act of 1969.

⁷⁴ *Tarun Bharat Sangh, Alwar v Union of India* Writ Petition (Civil) No.509 of 1991, Supreme Court, 14 May 1992 (M.N. Venkatachaliah and B.P. Jeevan Reddy, JJ.).

⁷⁵ 1992 (2) ANDH.L.T. 514, 529.

bench of the Andhra Pradesh High Court upheld the invalidation of a government order permitting a forest to be cleared, since the order was against the purpose of the legislation, which was forest conservation. Occasionally, powers delegated to enforcement agencies under environmental laws are exercised for a purpose that undermines the object of the law. This is impermissible. In the *Bangalore Medical Trust Case*,⁷⁶ for instance, the Supreme Court held that discretion vested in an authority must be exercised for the purpose of attaining the objects of the law. A plot reserved for a public park could not be allotted arbitrarily to a private hospital by altering the town planning scheme. The alteration did not improve the scheme and, therefore, was contrary to the *purpose* for which the power to alter the scheme was conferred.

THE AIR (PREVENTION AND CONTROL OF POLLUTION) ACT OF 1981

To implement the decisions taken at the United Nations Conference on the Human Environment held at Stockholm in June, 1972 Parliament enacted the nationwide Air Act under Article 253 of the Constitution. The Act's statement of objects and reasons contains the government's explanation of the contents and the scope of the law, and its concern for the 'detrimental effect [of air-pollution] on the health of the people as also on animal life, vegetation and property.'

The Air Act's framework is similar to the one created by its predecessor, the Water Act of 1974. To enable an integrated approach to environmental problems, the Air Act expanded the authority of the central and state boards established under the Water Act, to include air pollution control. States not having water pollution boards were required to set up air pollution boards.

Under the Air Act, all industries operating within designated air pollution control areas must obtain a 'consent' (permit) from the state boards. The states are required to prescribe emission standards for industry and automobiles after consulting the Central board and noting its ambient air quality standards.

Prior to its amendment in 1987, the Air Act was enforced through mild court-administered penalties on violators. The 1987 amendment strengthened the enforcement machinery and introduced stiffer penalties. Now, the boards may close down a defaulting industrial plant or may stop its supply of electricity or water. A board may also apply to a court to restrain emissions that exceed prescribed standards. Notably, the 1987 amendment introduced a citizens' initiative provision into the Air Act and extended the Act to include noise pollution.

The Rules issued under the Air Act focus on procedural matters.

THE WATER (PREVENTION AND CONTROL OF POLLUTION) ACT OF 1974

The Water Act of 1974 was the culmination of over a decade of discussion and deliberation between the Centre and the states. The history and the preamble of the

⁷⁶ *Bangalore Medical Trust v B S Muddappa* AIR 1991 SC 1902, 1911, 1924

Water Act suggest that only state governments can enact water pollution legislation. The Act, therefore, was passed by Parliament pursuant to enabling resolutions by twelve states, under Article 252(1) of the Constitution. Article 252 empowers Parliament to enact laws on state subjects for two or more states, where the State Legislatures have consented to such legislation.

The Act vests regulatory authority in state boards and empowers these boards to establish and enforce effluent standards for factories discharging pollutants into bodies of water. A Central board performs the same functions for union territories and coordinates activities among the states.

The boards control sewage and industrial effluent discharges by approving, rejecting or conditioning applications for consent to discharge. The state boards also minimize water pollution by advising state governments on appropriate sites for new industry.

Prior to its amendment in 1988, enforcement under the Water Act was achieved through criminal prosecutions initiated by the boards, and through applications to magistrates for injunctions to restrain polluters. The 1988 amendment strengthened the Act's implementation provisions. Now, a board may close a defaulting industrial plant or withdraw its supply of power or water by an administrative order; the penalties are more stringent; and a citizens' initiative provision bolsters the enforcement machinery. In Gujarat the amendments introduced in 1988 have not been adopted by a resolution of the legislature under Article 252. As a result, the 1988 amendments do not apply to that state.⁷⁷

THE WATER (PREVENTION AND CONTROL OF POLLUTION) CESS ACT OF 1977

The Water Cess Act was passed to help meet the expenses of the Central and state water boards. The Act creates economic incentives for pollution control through a differential tax structure (with higher rates applicable to defaulting units) and requires local authorities and certain designated industries to pay a cess (tax) for water consumption. These revenues are used to implement the Water Act. The Central Government, after deducting the expenses of collection, pays the Central board and the states such sums as it deems necessary to enforce the provisions of the Water Act. To encourage capital investment in pollution control, the Act gives a polluter a 25 per cent rebate of the applicable cess upon installing effluent treatment equipment and meeting the applicable norms.

THE WILD LIFE (PROTECTION) ACT OF 1972

In 1972, Parliament enacted the Wild Life Act pursuant to the enabling resolutions of 11 states under Article 252(1) of the Constitution. The Wild Life Act provides for state wildlife advisory boards, regulations for hunting wild animals and birds, establishment of sanctuaries and national parks, regulations for trade in wild animals,

⁷⁷ *Pravinbhai J. Patel v State of Gujarat* 1995 (2) GUI.L.R. 1210, 1216.

animal products and trophies, and judicially imposed penalties for violating the Act. Harming endangered species listed in Schedule I of the Act is prohibited throughout India. Hunting other species, like those requiring special protection (Schedule II), big game (Schedule III), and small game (Schedule IV) is regulated through licensing. A few species classified as vermin (Schedule V) may be hunted without restrictions. The Act is administered by wildlife wardens and their staff.

An amendment to the Act in 1982, introduced provisions permitting the capture and transportation of wild animals for the scientific management of animal populations. Comprehensive amendments to the parent Act in 1991 resulted in the insertion of special chapters dealing with the protection of specified plants and the regulation of zoos. The new provisions also recognized the needs of tribals and forest dwellers and introduced changes to advance their welfare.

THE PUBLIC LIABILITY INSURANCE ACT OF 1991

This law (PLIA) was enacted to provide immediate relief to the victims of an accident involving a hazardous substance. To achieve this object, the Act imposes 'no-fault' liability upon the owner of the hazardous substance and requires the owner to compensate the victims irrespective of any neglect or default on her part. The PLIA stipulates the maximum compensation for injury or death at Rs. 25,000 and limits compensation in respect of damage to private property to Rs. 6000. The right of a victim to claim additional relief under any other law is expressly reserved.

The Act obligates every owner to take out an insurance policy covering potential liability from an accident. An 'accident' is defined to cover a sudden unintended occurrence while 'handling' any hazardous substance resulting in continuous, intermittent or repeated exposure leading to death or injury to any person, or damage to property or the environment. Accidents by reason of war or radio-activity are excluded from the scope of the Act. The expression 'handling' is defined widely to include manufacture, trade, and transport of hazardous substances.

Along with the insurance premium, every owner must make a contribution to an Environmental Relief Fund established by the Central Government. The fund is designed to provide relief to the victims of an accident. The principal administrative authority under the PLIA is the collector, who is required to verify the occurrence of an industrial accident, give publicity to the event, invite applications for compensation and award relief.

The Act was amended in 1992 to introduce provisions relating to the relief fund. Rules framed in 1991 lay down the procedure for inviting and processing compensation applications and also cap the potential liability of an insurer at Rs. 450 million.

THE NATIONAL ENVIRONMENT TRIBUNAL ACT OF 1995

This Act (NETA) builds on the foundation laid in the PLIA and substantially alters the law of torts relating to toxic substances in India. NETA extends the principle of

'no-fault' liability, which first received statutory recognition under the PLIA, *beyond* the statutory compensation limits prescribed under the 1991 Act. NETA applies in cases where death or injury to any person or damage to any property is caused by an accident during the handling of any hazardous substance. Both Acts adopt the same definition for the expressions 'accident' and 'handling'.

NETA empowers the Centre to establish a national tribunal at New Delhi with power to entertain applications for compensation, hold an inquiry into each such claim and make an award determining the compensation to be paid. The tribunal is empowered to make interim awards after granting an opportunity to the affected party and may determine its own procedure for processing the compensation claims, consistent with the principles of natural justice.

Section 19 of NETA imposes a bar on all civil courts from entertaining 'any application or action' for any claim or compensation which may be entertained or dealt with by the tribunal. An award under the Act may be challenged before the Supreme Court or impugned in a petition to the High Court under Articles 226 and 227.⁷⁸

THE NATIONAL ENVIRONMENT APPELLATE AUTHORITY ACT OF 1997

This statute requires the Central Government to constitute a national environment appellate authority for hearing appeals against orders granting environmental clearance in areas where restrictions are imposed on setting up any industry or carrying on any operation or process. Being cognate to the Environment (Protection) Act of 1986, this statute is discussed in the next section.

THE MINES AND MINERALS (REGULATION AND DEVELOPMENT) ACT OF 1957

As the short title suggests, the thrust of this law is to promote the prospecting of minerals and the development of mines. Recognizing the devastating environmental impact of mining activity in several regions across the country, Parliament amended the Act in 1986 to introduce provisions which would require greater environmental sensitivity whilst conducting mining operations.

Section 4A permits government to terminate a prospecting licence or mining lease in order to preserve the natural environment or prevent pollution or harm to public health, monuments, buildings and other structures. Sections 13 and 15 empower the Centre and the states to frame rules to restore vegetation destroyed by mining operations in any area.

THE INDIAN FOREST ACT OF 1927

Although it embodies the colonial policies of the pre-independence era, the Forest Act of 1927 remains in force. This Act consolidates, with minor changes, the provisions of the Indian Forest Act of 1878 and its amending Acts.

⁷⁸ *L. Chandra Kumar v Union of India* AIR 1997 SC 1125, 1154.

The 1927 Act deals with four categories of forests, namely, reserved forests, village forests, protected forests, and non-government (private) forests. A state may declare forest lands or waste lands as reserved forests, and may sell the produce from these forests. Any unauthorized felling of trees, quarrying, grazing and hunting in reserved forests is punishable with a fine or imprisonment, or both. Reserved forests assigned to a village community are called village forests. The state governments are empowered to designate protected forests and may prohibit the felling of trees, quarrying and the removal of forest produce from these forests. The preservation of protected forests is enforced through rules, licences and criminal prosecutions.

The Forest Act is administered by forest officers who are authorized to compel the attendance of witnesses and the production of documents, to issue search warrants and to take evidence in an inquiry into forest offences. Such evidence is admissible in a magistrate's court.

THE FOREST (CONSERVATION) ACT OF 1980

Alarmed at India's rapid deforestation and the resulting environmental degradation, the Central Government enacted the Forest (Conservation) Act in 1980. As amended in 1988, the Act requires the approval of the Central Government before a state 'dereserves' a reserved forest, uses forest land for non-forest purposes, assigns forest land to a private person or corporation, or clears forest land for the purpose of reforestation. An Advisory Committee constituted under the Act advises the Centre on these approvals.

THE INSECTICIDES ACT OF 1968

The Insecticides Act was designed to implement the recommendations of the Kerala and Madras Food-Poisoning Cases Inquiry Commission, which inquired into several deaths from insecticide-contaminated food in April and May, 1958. The Act established a Central Insecticides Board to advise the Centre and the states on technical aspects of the Act. A committee of this Board registers insecticides after examining their formulas and verifying claims regarding their safety and efficacy.

The manufacture and distribution of insecticides is regulated through licensing. A violation of the Act's registration and licensing provisions can lead to prosecution and penalties. The Central and state governments are vested with emergency powers to prohibit the sale, distribution and use of dangerous insecticides.

The following observations in the Tiwari Committee Report of September, 1980 are still current:

This Act, which regulates all aspects of the use of pesticides, has not encouraged strongly enough the move away from the use of organo-chlorine pesticides which are in disfavour all over the world for their proven detrimental effects on the various living natural resources of the environment. The use of biological and integrated pest control in India has hardly caught on in any

significant measure. The implementation of the provisions of this Act for monitoring pesticide residues in the environment is totally inadequate. It is hence not surprising that increasing levels of pesticide residues are being recorded in foodstuffs, animal tissues and even human fat. Meanwhile, resistance of pests such as the malarial mosquito to chemical pesticides is on the rise.

The Insecticides Rules of 1971 prescribe the procedures for licensing, packaging, labelling and transporting insecticides. They also provide for workers' safety during the manufacture and handling of insecticides through protective clothing, respiratory devices and medical facilities.

THE ATOMIC ENERGY ACT OF 1962

The regulation of nuclear energy and radioactive substances in India is governed by the Atomic Energy Act of 1962, and the Radiation Protection Rules of 1971. Under the Act, the Central Government is required to prevent radiation hazards, guarantee public safety and the safety of workers handling radioactive substances, and ensure the disposal of radioactive wastes. Nuclear research, the manufacture and transport of radioactive substances, and the production and supply of atomic energy and nuclear-generated electricity also fall within the Centre's authority.

The Centre's apparently unfettered power to withhold from the public what it deems to be 'restricted information,' shrouds India's nuclear activities in secrecy. The government may classify as 'restricted information' any unpublished information regarding the location, quality, quantity, processing, acquisition and disposal of radioactive substances; the theory, design, construction and operation of nuclear reactors and of industrial plants that produce radioactive substances; and any information relating to nuclear research.

THE FACTORIES ACT OF 1948

Passed shortly after the Bhopal tragedy and the Supreme Court's judgment in the *Shriram Gas Leak Case*,⁷⁹ the 1987 amendment to the Factories Act introduced special provisions on hazardous industrial activities.

The 1987 amendment empowers the states to appoint site appraisal committees to advise on the initial location of factories using hazardous processes. The occupier of every hazardous unit must disclose to her workers, the Factory Inspector and the local authority all particulars regarding health hazards at the factory, and the preventive measures taken. These preventive measures must be publicized among the workers and nearby residents. Every occupier must also draw up an emergency disaster control plan, which must be approved by the Chief Inspector.

The occupier is required to maintain workers' medical records and must

⁷⁹ *M.C. Mehta v Union of India* AIR 1987 SC 965.

employ operations and maintenance personnel who are experienced in handling hazardous substances. The permissible limits of exposure to toxic substances are prescribed in the Second Schedule to the Act. Safety committees consisting of workers and managers are required periodically to review the factory's safety measures.

The Factories Act after its 1987 amendment, defines 'occupier' as a very senior level manager. Such person is held responsible for compliance with the Act's new provisions relating to hazardous processes. Non-compliance exposes the occupier to stiff penalties.

D. THE ENVIRONMENT (PROTECTION) ACT OF 1986

In the wake of the Bhopal tragedy, the Government of India enacted the Environment (Protection) Act of 1986 (EPA) under Article 253 of the Constitution. The purpose of the Act is to implement the decisions of the United Nations Conference on the Human Environment of 1972, in so far as they relate to the protection and improvement of the human environment and the prevention of hazards to human beings, other living creatures, plants and property. The EPA is an 'umbrella' legislation designed to provide a framework for Central Government coordination of the activities of various central and state authorities established under previous laws, such as the Water Act and Air Act. It is also an 'enabling' law, which articulates the essential legislative policy on environmental protection and delegates wide powers to the executive to *enable* bureaucrats to frame necessary rules and regulations. Since the time it entered the statute book, the Act has served to back a vast body of subordinate environmental legislation in India.

I. THE SCOPE OF THE ACT

The scope of the EPA is broad, with 'environment' defined to include water, air and land and the inter-relationships which exist among water, air and land, and human beings and other living creatures, plants, micro-organisms and property.⁸⁰ 'Environmental pollution' is the presence of any environmental pollutant, defined as any solid, liquid, or gaseous substance present in such concentration as may be, or may tend to be, injurious to the environment.⁸¹ 'Hazardous substances' include any substance or preparation which may cause harm to human beings, other living creatures, plants, micro-organisms, property or the environment.⁸²

Section 3(1), of the Act empowers the Centre 'to take all such measures as it deems necessary or expedient for the purpose of protecting and improving the quality of the environment and preventing, controlling and abating environmental pollution.'

⁸⁰ Section 2(a).

⁸¹ Section 2(b) and (c)

⁸² Section 2(e)

Specifically, the Central Government is authorized to set new national standards for the quality of the environment (ambient standards) as well as standards for controlling emissions and effluent discharges; to regulate industrial locations; to prescribe procedures for managing hazardous substances; to establish safeguards for preventing accidents; and to collect and disseminate information regarding environmental pollution.

Section 23 of the Act empowers the Centre to delegate its powers and functions to any officer, state government or other authority. Section 24 of the EPA ensures that the provisions of this Act and subordinate rules or orders *override* any other law. A broad rule-making power is conferred on the Central Government under sections 6 and 25.

NOTES

1. The primary legislative responses to the Bhopal gas leak tragedy of December, 1984 were the Bhopal Act of 1985⁸³ and the EPA. Consequently, the EPA bears the stamp of the legislature's immediate concern to strengthen the regulatory framework for hazardous industry and pollution control: One out of the four chapters in the Act (chapter 3) is devoted to environmental pollution; section 6 empowers the Centre to frame rules for pollution control;⁸⁴ and almost all the specific subjects of legislative concern enumerated in section 3 deal with industrial pollution.⁸⁵

This legislative focus soon translated into a range of central rules and regulations laying down pollution norms and regulating toxic substances. Since the early 1990s, however, the breath of government action under the EPA has extended to the protection of ecologically sensitive areas such as the coast and the introduction of economic incentives through a product labelling scheme called 'Ecomark'.

2. The potentially broad sweep of the EPA is suggested by the range of issues mentioned in the Statement of Object and Reasons accompanying the Bill: 'The decline of environmental quality has been evidenced by increasing pollution, loss of vegetal cover and biological diversity, excessive concentrations of harmful chemicals in the ambient atmosphere and in food chains, growing risks of environmental accidents and threats to life support systems.'⁸⁶

3. In the *Shrimp Culture Case*,⁸⁷ the question arose whether provisions in state

⁸³ The Bhopal Gas Leak Disaster (Processing of Claims) Act was passed to ensure that claims arising out of the disaster would be dealt with speedily, effectively and equitably. The Union Government was authorised to sue on behalf of Indian claimants in foreign forums.

⁸⁴ This provision is in addition to the general rule-making power under section 25

⁸⁵ This provision enables the Central Government to take all necessary measures to protect and improve the environment.

⁸⁶ Referred to by the Supreme Court in *S Jagannath v Union of India (Shrimp Culture Case)* AIR 1997 SC 811, 844.

⁸⁷ *Id.* at 846.

laws regulating coastal prawn farms were valid, despite a conflict with the EPA regulations. The Supreme Court clarified that the coastal regulations notified under the EPA would prevail over state legislation. This judgment bolsters section 24 of the EPA which declares the overriding effect of the Act and subordinate rules in relation to any other central or state law.

II. DELEGATED LEGISLATION

The mass of subordinate legislation framed under the EPA by the Department of Environment, Forests and Wildlife of the Central Ministry of Environment and Forests falls under four broad categories: pollution control; hazardous substance regulation; environment impact assessment; and the protection of the coast and other ecologically fragile areas. Most of these regulations are analysed in greater detail under the related chapters later in the book. Here, we summarize the broad features of the rules.

Pollution Control

Section 7 of the EPA prohibits the discharge or emission of environmental pollutants in excess of the prescribed standards. To implement this mandate, the government has framed the Environment (Protection) Rules of 1986 (EPR). The standards are set out in the schedules appended to the EPR. Broadly, there are three types of standards: *source* standards which require the polluter to restrict at source the emission and discharge of environmental pollutants; *product* standards, which fix the pollution norms for new manufactured products such as cars; and *ambient* standards to set maximum pollutants loads in the air, and to guide regulators on the environmental quality that ought to be maintained for healthy living.

Schedule I lays down industry-specific standards for effluent discharge and emissions in respect of 89 designated industries. Every industrial unit must comply with the norms within one year of their publication⁸⁸ or such shorter period that may be ordered by the pollution control board.⁸⁹ In respect of any specific industry the Central Government may extend the lead time for compliance beyond one year.⁹⁰ In cases where the standards were prescribed prior to 16 January 1991 the industry was required to achieve compliance by the year end.⁹¹

In cases where the polluter is not covered by Schedule I, the unit must comply with the general standards for discharge of environmental pollutants prescribed in Schedule VI.⁹² The general standards are also referred to as the 'minimum national standards' since they represent the parameters which every industry, at the very least, must meet until specific standards under Schedule I are notified. The pollution

⁸⁸ Rule 3(3)

⁸⁹ Rule 3(4)

⁹⁰ *Id*

⁹¹ Rule 3(5)

⁹² Rule 3(3A)

control boards are empowered to specify stricter standards than those published in respect of any industry, operation or process, where necessary.⁹³

Regarding product standards, new motor vehicles must meet emission⁹⁴ and noise limits.⁹⁵ Consumer durables such as air conditioners, refrigerators and air coolers and some types of construction equipment manufactured after 31 December 1993 are required to meet prescribed noise levels.⁹⁶

In addition to the source and product norms, Schedules III and VII prescribe national ambient air quality standards in respect of noise and other air pollutants. The levels of ambient air quality have been fixed after providing an adequate margin of safety to protect public health, vegetation and property.

Supplementing the EPR are the Noise Pollution (Regulation and Control) Rules which were enforced on 14 February 2000. These Rules prescribe ambient air quality standards in respect of noise for industrial, commercial and residential areas as well as designated 'silence zones'. The Rules impose restrictions on the use of loud speakers and public address systems and cast a duty on district magistrates and police commissioners to ensure that noise levels do not exceed the norms.

Hazardous Substance Regulation

The Hazardous Wastes (Management and Handling) Rules, issued under the Act in July, 1989 have introduced a permit system to regulate the handling and disposal of hazardous wastes. These Rules fix responsibility for the proper handling, storage and disposal of such wastes on the person generating the wastes.

The Manufacture, Storage and Import of Hazardous Chemicals Rules of November, 1989 spell out the responsibilities of those handling hazardous substances (other than hazardous wastes). Under these Rules, a hazardous industry is required to identify major accident hazards, take adequate preventive measures and submit a safety report to the designated authority. An importer of hazardous chemicals must furnish complete product safety information to the competent authority and must transport the imported chemicals in accordance with the Central Motor Vehicle Rules of 1989.

In August, 1996 the Central Government framed the Chemical Accidents (Emergency, Planning, Preparedness and Response) Rules. These Rules require the Centre to constitute a Central Crisis Group (CCG)⁹⁷ for the management of chemical accidents and to set up a quick response mechanism termed as the Crisis Alert System.⁹⁸ The CCG is the apex body for dealing with major chemical accidents and providing expert guidance to contain the damage caused by such accidents.

⁹³ Rule 3(2), (3A).

⁹⁴ Schedule IV

⁹⁵ Schedule VI.

⁹⁶ *Id.*

⁹⁷ Rule 3.

⁹⁸ Rule 4.

The Rules also contemplate the setting up of crisis groups at the state, district or local levels to assist the administration in prevention and control measures.

Rules to regulate the manufacture, use, import, export and storage of hazardous micro-organisms and genetically engineered cells were issued under the Environment Act in December, 1989. Under these Rules a Genetic Engineering Approval Committee has been established in the Ministry of Environment and Forests to licence experiments in, and field trials of, genetically engineered organisms.

In July 1998, the Central Government issued the Bio-Medical Waste (Management and Handling) Rules, to regulate hospitals, clinics, veterinary institutions and other persons generating bio-medical wastes. The Rules introduce a licensing and reporting system requiring institutions to segregate, and dispose of designated categories of bio-medical waste in the prescribed manner.

Environment Impact Assessment

The first attempt at a comprehensive statutory environment impact assessment (EIA) programme began on 27 January 1994 when the Union Ministry of Environment and Forests issued a notification dealing with mandatory EIA. The notification mandates a public hearing and requires the project proponent to submit an EIA report, an environment management plan, details of the public hearing and a project report to the impact assessment agency for clearance, with further review by a committee of experts in certain cases. The impact assessment agency is the ministry itself. The EIA Regulations apply to 29 designated projects/industries which are enumerated in Schedule I to the notification.

In April 1997, the ministry took a first step towards de-centralizing the EIA regulatory machinery by shifting the responsibility for environmental site clearance in respect of thermal power projects to the states. This notification describes the categories of thermal power plants falling within state government purview⁹⁹ and largely replicates the procedure under the principal notification of 1991.¹⁰⁰

Coastal Regulations and Protection of Specified Areas

In addition to the EIA requirements, specific prohibitions and regulations operate in designated ecologically sensitive areas. The widest in reach and scope are the Coastal Zone Regulations issued in February, 1991. These regulations strictly control development activity including tourism within a strip of 500 meters from the sea shore, along the entire coast of India. While some activities such as setting up of new industry and the expansion of existing factories are completely prohibited, other types of commercial activity are restricted. Building activity is regulated depending upon the level of urbanization and the ecological sensitivity of the coastal region.

⁹⁹ Schedule I

¹⁰⁰ Schedule II

In response to specific environmental threats, industrial activity has also been curbed by central notifications in some ecologically sensitive regions like the horticultural belt in the Dahanu region in Maharashtra,¹⁰¹ the Himalayan foothills around Doon valley,¹⁰² the coastal Murud-Janjira area in the Raigad district of Maharashtra,¹⁰³ the congested Antop Hill locality in Bombay¹⁰⁴ and parts of the Aravalli Range in Rajasthan and Haryana.¹⁰⁵ Most of these notifications were issued in response to specific environmental threats to each region.

The Ecomark Scheme

In 1991, the Department of Environment, Forests and Wildlife announced a scheme for labelling environment friendly products. The objects of the scheme are to encourage manufacturers to introduce environment friendly products, reward genuine initiatives to reduce adverse environmental impacts and assist consumers in making an informed, responsible choice while purchasing goods. The label known as 'Ecomark' may be used by the manufacturers of the consumer goods who meet the environment criteria notified by the Central Government for the purpose of the scheme. Though qualification criteria have long been published for a number of goods such as soaps, detergents, paper and paints the scheme has yet to gain acceptance. Not a single product carries the Ecomark.

In a more recent initiative to alter consumption patterns, the Centre framed the Recycled Plastic Manufacture and Usage Rules of 1999. The Rules prohibit vendors of foodstuffs from packing their wares in bags or containers made from recycled plastics. If foodstuffs are to be sold in plastic bags, the carry bag must be made of virgin plastic. Moreover, the Rules provide that all carry bags must have a minimum thickness of 20 microns. The Rules adopt a novel enforcement strategy by requiring the Plastics Industry Association to implement self-regulatory measures.

NOTES AND QUESTIONS

1. Many of the regulations notified under the EPA are characterized by shoddy drafting. Consider the restraint imposed under regulation 6(2) of the 1991 Coastal Regulations:

¹⁰¹ Notification dated 20 June 1991. The orchards of Dahanu were threatened by the possibility of rapid industrialization after a large thermal power plant came up in the area.

¹⁰² Notification dated 1 February 1989. Doon valley was harmed by extensive limestone quarrying.

¹⁰³ Notification dated 6 January 1989. A coastal strip of about 30 km. was threatened by several giant industrial projects. This notification encouraged environmentalists to press for national coastal norms which took final shape in February, 1991.

¹⁰⁴ Notification dated 9 February 1990. The residents of Antop Hill lived under a continuous threat from vast quantities of hazardous chemicals stored in the neighbourhood.

¹⁰⁵ Notification dated 7 May 1992. Limestone quarrying threatened the Project Tiger reserve in the Alwar district of Rajasthan.

Buildings shall be permitted neither on the seaward side of the existing road ... nor on seaward side of existing authorised structures.

Numerous key expressions in the EPR ('land for irrigation' standards, 'inland surface water' standards), the Coastal Regulations ('reconstruction', 'authorized structure') and other rules are not defined, adding to the uncertainty.

Printing errors in the official gazette abound. For example, the EPR had two schedules that were numbered 'II'; Schedule VI to these Rules incorrectly refers to rule 3A instead of *sub-rule 3(3A)*; and there are misprints in Schedule VI to the EIA Regulations for thermal power stations as well. Inexplicably, the EPR prescribes noise standards for automobiles, domestic appliances and construction equipment at *two* places: items 46 and 47 at Schedule I and Part E of Schedule VI

2. The slipshod drafting may, at times, have a serious regulatory impact and confuse administrators. For example, a reading of rule 3 of the EPR suggests that the provisions in Schedule VI *do not* apply in cases where industry-specific standards are set out in Schedule I. Rule 3(3A) appears to restrict the application of Schedule VI to 'industrial operations or processes *other than* those industries, operations or processes for which standards have been specified in Schedule I.' However, a reading of Schedule VI suggests otherwise. Industry-specific waste water generation standards mentioned in Part B of Schedule VI relate to several industries that are covered by Schedule I such as caustic soda, tanneries, integrated iron and steel plants and sugar units. Likewise, the industry-specific load based standards for waste water set out in Part C of Schedule VI cover industries such as oil refineries which are already covered by Schedule I. Though it is difficult to reconcile the language of rule 3(3A) to the contents of Schedule VI, it appears that only Parts A and D of Schedule VI, containing general effluent and emission standards, do not apply where the industry is covered by Schedule I. Parts B, C and E of Schedule VI as well as the annexures to Schedule VI seem to apply to *all* polluting industries whether or not covered by Schedule I of the EPR.

3. The statutory annexures to Schedule VI lay down important guidelines for the state pollution control boards. While enforcing the standards, the boards should ensure use of the *best available technology*; *recycling* of waste water and *reuse* of other materials; and the implementation of clean technologies by industry in order to increase *fuel efficiency*. While permitting discharge of effluents and emissions the assimilative capacity of the receiving bodies should also be kept in view so that the intended use of the receiving water body is not affected.

4. Section 7 of the EPA prohibits a person carrying on any industry, operation or process from discharging or emitting pollutants in excess of the prescribed standards. Although there is no express provision in the Act requiring the pollution control boards to enforce these standards, this scheme is implicit in the EPR. Sections 17(g) of the Water Act and Air Act empower the state boards to lay down standards for effluent discharge and emission and many state boards have notified norms under these two Acts. At times the pollution control board norms vary from

the EPA standards. Which standards apply—those issued under the EPA or the standards published by the state boards? Assuming the EPA standards prevail, should not Parliament repeal sections 17(g) and should not the boards reduce the confusion by annulling their own standards? At least one leading pollution case affecting several hundred units was decided by the Gujarat High Court without regard to the EPA standards and on the basis of the state board norms.¹⁰⁶

5. Sub-rules 5(2) and (3) of the EPR contain a salutary safeguard requiring the Central Government to follow a pre-publication procedure before imposing any restrictions on industrial activity. The department must invite objections from members of the public to the proposed regulations, consider the objections and then publish the final regulations. This practice introduces transparency and citizen participation in the law making process. The EIA Regulations, the Coastal Regulations and the notifications issued to protect specified areas, were all framed after following the pre-publication procedure. On 16 March 1994 new sub-rule 5(4) was introduced, permitting the Centre to dispense with the pre-publication requirement in the 'public interest'. Since then, this clause has provided the department with a convenient handle to dispense with the pre-publication and comment procedure.

On 4 May 1994 a few weeks after sub-rule 5(4) was inserted, the department diluted the EIA Regulations by changing the mandatory public hearing requirement into a discretionary procedure and permitting preparatory activities such as the felling of trees and land acquisition to proceed even before site clearance was obtained. Was the department justified in hurrying through the amendment without following the pre-publication procedure? The amending notification makes a general reference to 'public interest' but gives no specific reason. Was the government trying to avoid public outcry against the dilution? Should the government take recourse to the 'public interest' clause to weaken environmental regulations? The department now routinely dispenses with the pre-publication procedure.¹⁰⁷

III. SECTIONS 3 AND 5 OF THE EPA

Section 3(1) confers very wide powers on the Central Government 'to take all such measures as it deems necessary or expedient for the purpose of protecting and improving the quality of the environment and preventing, controlling and abating environmental pollution.' Sub-section (2) illustrates the types of measures that the Centre may adopt under sub-section (1). Amongst those is the power to restrict areas in which industries may be set up, which enabled the Coastal Regulations, the EIA Regulations and the notifications to protect special areas like the Doon valley and Dahanu. Commenting on the genesis of the Coastal Regulations in the CRZ

¹⁰⁶ *Pravinbhai J. Patel v State of Gujarat* 1995 (2) GUJ.L.R. 1210.

¹⁰⁷ e.g., notification dated 31 January 1997 amending the Coastal Regulations and notification dated 10 April 1997 amending the EIA Regulations

Notification Case,¹⁰⁸ the Supreme Court observed that the principal notification of 1991 was issued under section 3(1) and 3(2)(v) of the EPA 'presumably after a lot of study [was] undertaken by the government. Normally, such notifications are issued after a detailed study and examination of all relevant issues.'

Section 3(3) permits the Central Government to constitute one or more authorities to implement the Act. Under section 5 of the Act, such an authority may issue binding directions in writing to any person, officer or authority. Section 5 clarifies that the power to issue directions includes the power to close, prohibit or regulate any industry, operation or process as well as the power to stop supply of energy, water or other service.

In the *Bichhri Case*,¹⁰⁹ chemical industries in an industrial complex in Bichhri, Rajasthan devastated the environment by discharging untreated toxic chemicals and sludge. All the regulatory agencies including the Central Government failed to perform their tasks. While considering whether a court in its writ jurisdiction was empowered to direct remedial measures and recover the clean up costs from the polluter, the Supreme Court examined the scope of sections 3 and 5 of the EPA:

Section 5 clothes the Central Government (or its delegates) with the power to issue directions for achieving the objects of the Act. Read with the wide definition of 'environment' in Section 2(a), Sections 3 and 5 clothe the Central Government with all such powers as are 'necessary or expedient for the purpose of protecting and improving the quality of the environment'. The Central Government is empowered to take all measures and issue all such directions as are called for the above purpose. In the present case, the said powers will include giving directions for the removal of sludge, for undertaking remedial measures and also the power to impose the cost of remedial measures on the offending industry and utilise the amount so recovered for carrying out remedial measures. This Court can certainly give directions to the Central Government/its delegates to take all such measures, if in a given case this Court finds that such directions are warranted.¹¹⁰

Environmentalists, non-governmental organizations and academics have long commended the idea of an autonomous agency along the lines of the US Environment Protection Agency, to oversee the enforcement of the EPA. Although the Central Government may create a specialist agency under section 3(3), thus far, the Centre has chosen to leave implementation of the EPA to the Union Ministry of Environment and Forests. The executive's reluctance, however, hasn't deterred the Supreme Court from directing the Centre to set up an authority under section 3(3) of the EPA when the court considered it necessary.

¹⁰⁸ *Indian Council for Enviro-Legal Action v Union of India* 1996 (5) SCC 281, 296

¹⁰⁹ *Indian Council for Enviro-Legal Action v Union of India* AIR 1996 SC 1446

¹¹⁰ *Id.* at 1464

In *Vellore Citizens' Welfare Forum v Union of India*,¹¹¹ the court was dealing with the extensive damage caused by untreated effluent discharged by tanneries in Tamil Nadu. Turning to section 3(3) of the EPA, the court observed:

The main purpose of the Act is to create an authority or authorities under section 3(3) of the Act with adequate powers to control pollution and protect the environment. It is a pity that till date no authority has been constituted by the Central Government. The work which is required to be done by the authority in terms of section 3(3) read with other provisions of the Act is being done by this court and other courts in the country. It is high time that the Central Government realises its responsibility and statutory duty to protect the degrading environment in the country.¹¹²

The Supreme Court directed the Centre to constitute an authority under section 3(3) with all necessary powers to deal with the situation created by the tanneries and other polluting industries in the state. A retired High Court judge was placed at the head of the new authority, which was to have persons with expertise in pollution control and environment protection as members. The authority was requested to identify the persons who had suffered because of the pollution, name the polluters liable to compensate the victims, assess the compensation to be paid and the costs of the remedial measures. The authority was asked to periodically review compliance by the tanneries and to direct relocation of any industry where necessary.

In the *Bayer Case*¹¹³ the Supreme Court acknowledged its lack of expertise to resolve the complex issues arising from a demand to relocate hazardous industries away from urban areas. Bayer had petitioned the Bombay High Court to restrain the city of Thane from allowing residential buildings to come up within a kilometre of its factory. Bayer asked for the safety zone since it used hazardous chemicals at its plant and was anxious to minimize the impact of an industrial accident. The High Court accepted the company's plea and restrained development.¹¹⁴ Against this judgment, some of the affected builders appealed to the Supreme Court, where the case took a dramatic turn. One of the arguments that seemed to find favour with the apex court was that Bayer shift out, not the proposed buildings. After several hearings, the court directed the Union Government to constitute a special authority under section 3(3) of the EPA to resolve the relocation issues raised in the case.

In the *CRZ Notification Case*¹¹⁵ the Supreme Court noted the poor enforcement of environmental laws and recognized the administrative burden on the pollution control boards which prevented them from effectively implementing the Coastal Regulations. The court requested the Union Government to consider setting up State Coastal

¹¹¹ AIR 1996 SC 2715.

¹¹² *Id.* at 2724.

¹¹³ *FB. Taraporawala v Bayer India Ltd* AIR 1997 SC 1846

¹¹⁴ *Bayer (India) Ltd v State of Maharashtra* 1994 (4) BOM C REP.309.

¹¹⁵ *Indian Council for Enviro-Legal Action v Union of India* 1996 (5) SCC 281.

Management Authorities in each state or zone and also a National Coastal Management Authority under section 3(3) of the EPA to assume the responsibility of enforcing these Regulations. The coastal authorities were established in November, 1998.

The ambit of section 5 of the EPA was explained by the Gujarat High Court in two cases concerning pollution of the Kharicut canal. *Pravinbhai J. Patel v State of Gujarat*,¹¹⁶ was a mammoth public interest litigation spanning several months and covering more than one thousand industrial units in Ahmedabad. After a prolonged hearing and several interim orders, a division bench of the court issued a range of final directions requiring the closure of polluting units, setting deadlines for compliance and levying a compensatory charge on polluters for the benefit of the affected villagers. The court acknowledged that normally it was for the state government (as a delegate of the Centre) to issue appropriate closure directions under section 5 and that it was no part of a court's duty to do so. 'Where, however, there is a complete abdication of authority by the government and the court comes to the conclusion, like in the present case, that the government has failed to discharge its statutory duty, and which failure has resulted in the violation of the fundamental rights of the petitioners and lacs of other people guaranteed under Article 21 of the Constitution, then the court is left with no option but to issue appropriate direction to the government to pass the necessary orders under section 5 of the Environment Act.'¹¹⁷ The court observed that under the EPA the government was the custodian of a clean environment and that its power under section 5 was coupled with a duty to exercise the power whenever the need arose.¹¹⁸

We carry an excerpt from an earlier case, where Justice Abhichandani of the Gujarat High Court placed environmental values above the rules of natural justice. Do you agree with his approach?

NARULA DYEING & PRINTING WORKS v UNION OF INDIA

AIR 1995 GUJ 185

In this group of matters, the petitioners—industrial units, have challenged the action of the State Government taken under S.5 of the Environmental (Protection) Act, 1986 (hereinafter referred to as 'the said Act'), giving directions to them to stop production activities and take necessary steps to units to conform to the standard specified by the Gujarat Pollution Control Board and not to restart the production activities without the permission of State Government and Forest and Environment Department. The directions were issued by the Forest and Environment Department of the Government to these three industrial units under the impugned orders dt. 19th October, 1994.

The petitioners in Special Civil Application No.12136/94 is a partnership firm carrying on business in textile processing and having its units in the G.I.D.C Estate

¹¹⁶ 1995 (2) GUJ L.R. 1210

¹¹⁷ *Id* at 1253

¹¹⁸ *Id* at 1235

zone at Handa, Ahmedabad. The said petitioner had applied for consent of the Gujarat Pollution Control Board (hereinafter referred to as the State Board) under S.25(2) of the Water (Prevention and Control of Pollution) Act, 1974 (hereinafter referred to as 'the Water Act'). A consent letter was issued in its favour on 26th Nov. 1981 by the State Board as per Annexure 'B' to the petition. According to this petitioner, it had constructed 'water treatment plant' which was functional. It is contended that, however, the drainage provided by the G.I.D.C. was not of sufficient capacity and due to overflow, the water discharged by other factories entered the premises of the factory of this petitioner. This petitioner had filed a suit being Civil Suit No.5391/93 in the City Civil Court at Ahmedabad on receiving a notice from the G.I.D.C. that action would be taken for disconnecting the water supply. The said suit is pending. According to the petitioner, samples were taken by the State Board for analysis of the effluent and a report dt. 13th Oct. 1993 of the State Board showed PH factor at 6.06 which was within the tolerance limits. It is contended that no notice was issued to the petitioner before making the impugned order dt. 19th Oct. 1994. It is also contended that the action was taken on the basis of letter dt. 10th Oct. 1994 of the State Board, a copy of which was not supplied to the petitioner.

* * *

In all these cases, directions have been issued under S.5 of the Act in view of the fact that the discharge of trade effluents and polluted waste water entered the Kharicut Canal and polluted the underground strata resulting in damage to the crops and to the fertile lands in Kheda District. It is recorded in the impugned orders that the State Government had received many complaints regarding damage to the crop and the land due to such discharge of effluent. In case of all these petitioners, it was stated in the orders issued on them that they were not operating any effluent treatment plant and were discharging their effluents without treatment.

It was contended by the learned counsel appearing for the petitioners in these three matters that the impugned action of giving directions under S.5 of the Act has been taken without giving any opportunity of being heard to these petitioners. It was contended that the State Government could not have dispensed with the hearing before issuing the impugned order. It was also contended that the PH factor was within the tolerance limit.

On behalf of the State Government and other respondents, it was contended that these units were not having an operative effluent treatment plant and that they had not abided by the terms of the consent letters given by the State Board under S.25 (2) of the Water Act. The petitioners had not fulfilled the conditions of the consent letters. In the affidavits-in-reply filed on behalf of the respondents, it is stated that these petitioners were discharging polluted waste water without treatment and this resulted in an extensive damage to the crops and fertile lands in Hatar Taluka of Kheda District. Taking into account the extensive damage which was resulting due to the discharge of untreated effluents by these petitioners and other similar industrial units, closure orders were issued under S.5 of the said Act against as many as thirteen units which admittedly were discharging untreated effluents in the Kharicut Canal. It has been stated that having taken into consideration the various aspects of

the matter and after satisfying itself about the urgency, the impugned action was taken by the authority by dispensing with the issuance of notice of hearing as provided under R.4(5) of the Rules framed under the said Act. After considering several representations received by the Department as well as by the Hon'ble the Chief Minister from agriculturists, framers and other citizens, the impugned action was taken against these industrial units.

In case of the petitioner in Special Civil Application No 12136/94, it has been stated that though consent was granted by the State Board with condition to provide effluent treatment plant within six months, it was found that the industry was discharging effluent not conforming to the standards and, therefore, three complaints were filed under the provisions of the Water Act on 4-1-1988, 19-1-1988 and 10-11-1989. It is also stated that inspection of the said industry was also carried on, on 27-5-1990, 23-5-1991, 14-5-1992 and 19-7-1993 and it was found that the industry was not operating effluent treatment plant and was discharging effluents not conforming to the standards. Based on the inspection reports on 3-9-1993 the Board requested G.I.D.C. to disconnect the water supply of this industry. Again on 22-1-1993 and 18-1-1994 this industry was required to upgrade effluent treatment plant and to submit a time bound programme in respect thereof. On 29-7-1994, the state board carried out inspection of this industry and found that the effluent treatment plant was not being operated

* * *

In Special Civil Application No.12136/94, the analysis report dt 31st July, 1993 showed excess of total suspended solids which was 295 as against the prescribed 100. It also showed excess over tolerance limits in case of Bio-chemical Oxygen demand which was 206 as against the prescribed 150 in the schedule item and 30 in the consent letter of the Board, the Chemical Oxygen demand was 520 which was in excess of the tolerance limit of 250 prescribed in the consent order of the Board. Similarly, the analysis report dt 13th October, 1993 showed suspended solids at 526 as against 100, dissolved solids at 3823 against the tolerance limit of 2500 and the bio-chemical oxygen demand 1622 as against 30 prescribed in the consent order. The analysis report dt 29th July, 1994 also showed excess of suspended solids which was 204 and excess of biochemical oxygen demand which was 196. The chemical oxygen demand was 515 as against the prescribed tolerance limit of 250 in the consent letter of the State Board.

* * *

The requirement of giving opportunity to file objections against the proposed directions which can be issued under S 5 of the Act can be dispensed with only when the Central Government is of the opinion that in view of the likelihood of a grave injury to the environment, it is not expedient to provide such opportunity. As noted above, the powers of the Central Government have been delegated to the State by Notification dt 10-2-1988. The State Government in its deliberation on 3rd and 4th Oct, 1994 took into account the gravity of the situation and it was decided to issue directions as are contained in the impugned orders dt 19th Oct, 1994 directing closure

of these units. It was decided to take action without giving any show cause notice under R.4(5) of the said Rules, in view of the grave and serious pollution caused to the irrigation canal because of discharge of effluent by thirteen industries which had caused severe damage to the crops and fertile land and environment at large. The material on record clearly shows that the State Government was of the opinion that grave injury was being caused by discharge of such effluent into the irrigation canal resulting in severe damage to crops and fertile lands. The Biochemical oxygen demand tests applied to these petitioners showed that the tolerance limits were exceeded. The Biochemical oxygen demand test is widely used to determine the pollutional strength of domestic and industrial wastes in terms of oxygen that they will require if discharged into natural water courses in which aerobic conditions exist. The test is one of the most important in stream-pollution-control activities. Similarly, chemical oxygen demand test is widely used for measuring pollutional strength of domestic and industrial wastes. This test allows measurement of waste in terms of the total quantity of oxygen required for oxidation to carbon-dioxide and water. The trade effluents which contained various characteristics in excess of tolerance limits would undoubtedly ruin the fertility on the soil on which they come to be released. The release of such trade effluents in Kharicut canal which is meant for irrigation of lands obviously would result in damage to the crops and the fields to which the polluted water was being carried. When applied to a plant—soil system, oils and grease constituent of industrial wastes can affect seed germination of crop growth and yield. ... There were several complaints received by the Hon'ble the Chief Minister and the concerned Department regarding the pollution caused due to release of untreated effluents in river Khari. This naturally called for immediate action, and the record shows that urgent action was overdue. Therefore, if the State Government became suddenly aware of its duties and took action for preventing further damage to the crops and the agricultural lands, it cannot be said that there was justification for such action because it was not taken earlier. The gravity of the situation was in the extent of damage which was resulting due to discharge of such effluents. The Government was fully empowered to dispense with the opportunity being given for filing objections against the proposed directions in such cases of grave injury to the environment. The provisions of R.4(5) are intended to safeguard the environment from any grave injury to it and in the present case it has been amply borne out that the release of the effluents by the petitioners units was resulting in pollution of the irrigation canal causing vast damage to the crops and the agricultural fields. This fact has been recorded in writing in the impugned orders dt. 19th October, 1994. The petitioners did not operate effluent treatment plant and could not be allowed to release untreated effluents resulting in damage to the fertile lands of Kheda District. The State Government was, therefore, fully justified in proceeding under R.4(5) of the said Rule while exercising its delegated powers for issuing directions under S.5 of the Act as in the impugned orders. These petitions are therefore without any substance and are rejected.

NOTES AND QUESTIONS

1. Since 1988, the Gujarat pollution control board (GPCB) knew that Narula Dyeing was flouting effluent norms, but took no action. Was this due to the board's declared preference for 'persuasion' over coercive action?¹¹⁹ Who was more persuasive—Narula or the GPCB? Why?

2. Having allowed Narula Dyeing to operate for all these years in breach of the norms, was the state justified in bypassing the prior notice procedure?

3. Justice Abhichandani's judgment in *Narula Dyeing* was affirmed by a Division Bench of the Gujarat High Court in *Pravinbhai J. Patel v State of Gujarat*.¹²⁰

4. In *Narula Dyeing*, the industries argued that the power under section 5 of the EPA could be exercised by the Central Government alone and not the state. Even otherwise, the impugned directions suffered from the vice of excessive delegation since there were no guidelines to control administrative discretion. The High Court rejected these grounds since section 23 of the EPA empowered the Centre to delegate its functions and by a notification dated 10 February 1988 the Centre had conferred its power under section 5 on Gujarat.¹²¹ The court also found sufficient guidance for the exercise of power under section 5 in section 3 of the EPA and the nature of functions required to be discharged by the Central Government under the Act.¹²²

5. A division bench of the Orissa High Court refused to aid a soap factory which was asked to stop operations until it cleaned up its act and met the prescribed effluent standards. One of the grounds urged by the petitioner was that the section 5 direction was passed without giving a reasonable opportunity to be heard, since no personal hearing was granted. Reviewing the provisions of rule 4 of the Environment (Protection) Rules which lay down the procedure for directions issued under section 5, the High Court found that the requirement for granting an opportunity to be heard did not include a personal hearing and that it was sufficient if an opportunity for filing written objections was granted.¹²³

6. Occasionally, a court may find that the government has over-stepped its jurisdiction in ordering closure and may frame a less stringent compliance programme for the defaulting unit.¹²⁴

¹¹⁹ Gujarat Pollution Control Board, *Guidelines on Environmental Pollution Control* 16 (1988)

¹²⁰ 1995 (2) Guj L.R.1210, 1244

¹²¹ The Central Government delegated its power under section 5 to all the state governments (except Arunachal Pradesh and Nagaland) under six notifications issued between 1988 and 1991. The notification in respect of Arunachal Pradesh and Nagaland was issued on 15 July 1998.

¹²² In *Indian Council for Enviro-Legal Action v Union of India (CRZ Notification Case)* 1996 (5) SCC 281, 302, the Supreme Court held that directions under section 5 'have necessarily to be in accordance with the provisions of law and to give protection to environment'.

¹²³ *Mahabir Soap and Gudakhu Factory v Union of India* AIR 1995 ORI 218, 223

¹²⁴ *Rajiv Singh v State of Bihar* AIR 1992 PAT 86

IV. VIOLATIONS AND PENALTIES UNDER THE ACT

The EPA was the first environmental statute to give the Central Government authority to issue direct written orders, including orders to close, prohibit, or regulate any industry, operation or process or to stop or regulate the supply of electricity, water or any other service.¹²⁵ Other powers granted to the Central Government to ensure compliance with the Act include the power of entry for examination, testing of equipment and other purposes¹²⁶ and the power to take samples of air, water, soil or any other substance from any place for analysis.¹²⁷

The Act explicitly prohibits discharges of environmental pollutants in excess of prescribed regulatory standards.¹²⁸ There is also a specific prohibition against handling hazardous substances except in compliance with regulatory procedures and standards.¹²⁹ Persons responsible for discharges of pollutants in excess of prescribed standards must prevent or mitigate the pollution and must report the discharge to governmental authorities.¹³⁰

The Act provides for fairly severe penalties. Any person who fails to comply with or contravenes any of the provisions of the Act, or the rules, orders, or directions issued under the Act shall be punished, for each failure or contravention, with a prison term of up to five years or a fine of up to Rs. 100,000 or both. The Act imposes an additional fine of up to Rs. 5,000 for every day of continuing violation.¹³¹ If a failure or contravention occurs for more than one year after the date of conviction an offender may be punished with a prison term which may extend to seven years.¹³²

Corporate officials directly in charge of a company's business are liable for offences under the Act, unless the official can establish that the offence was committed without his or her knowledge or that he or she exercised all due diligence to prevent the commission of the offence.¹³³ In addition, if an offence is committed with the consent or connivance of, or is attributable to any neglect on the part of any director, manager, secretary or other officer, that person shall also be liable for the offence.¹³⁴ Similar provisions extend liability to the heads of departments of government and other department officers.¹³⁵

Section 24 provides that if any act or omission constitutes an offence punishable under the EPA as well as any other law, the offender shall be liable to be punished under the *other* law and not under the EPA.

¹²⁵ Section 5. Later, similar provisions were introduced in the Air Act and the Water Act.

¹²⁶ Section 10.

¹²⁷ Section 11.

¹²⁸ Section 7.

¹²⁹ Section 8

¹³⁰ Section 9(1).

¹³¹ Section 15(1)

¹³² Section 15(2).

¹³³ Section 16(1).

¹³⁴ Section 16(2).

¹³⁵ Section 17.

NOTES AND QUESTIONS

1. Section 24 of the Act is a curious and controversial provision. Generally, more recent legislation which conflicts with previous legislation supersedes the previous legislation. Standards established under the Environment (Protection) Act are also the subject of other statutes, such as the Water Act and Air Act. Until the amendment of the Air Act in 1987 and the Water Act in 1988, both these laws prescribed less stringent penalties than did the EPA. This situation led one commentator to describe the Environment (Protection) Act as a cobra that is seemingly fierce but has no venom in its fangs.¹³⁶

2. Consider another serious problem with section 24. Suppose the Water Act allows discharge of a higher concentration of a particular pollutant than the concentration permissible under the EPA. If a factory discharges waste water containing the pollutant at a level higher than allowed under the EPA but within the allowable limits of the Water Act, does the Water Act penalty provision apply? Are there other problems with having two statutes—with different standards and penalty provisions—regulating release of the same pollutants?

3. Will this legislative scheme lead to more, or less, effective enforcement of environmental laws? One of the basic purposes of law is to promote uniformity and predictability in the application of rules and regulations. Does a scheme of deferring to earlier overlapping statutes promote this purpose?

4. Section 5 gives the Centre broad powers to enforce the Act, including the power to order the closure of any industry. Do workers whose employers are ordered by the government to close or curtail operations have a constitutional right to be heard by a court concerning the government's action? Should the government weigh the costs to these workers in lost jobs against the benefits to society before ordering closure of a polluting operation?

V. ENFORCEMENT OF THE ACT

One of the recurring themes in the Supreme Court judgments of the 1990s is the poor implementation of environmental laws. In the *CRZ Notification Case*, excerpted below, the court said that tolerating the infringement of an enacted law was worse than not enacting it at all. In this case, the petitioners challenged the 1994 amendment to the main notification of February 1991, introducing national Coastal Regulations. The petitioners argued that the amendments were invalid since they relaxed the provisions of the parent notification and would lead to ecological degradation. Allowing the petition, the court struck down the amendments which were likely to cause environmental harm. We excerpt portions of this judgment where the court surveyed environmental law enforcement.

¹³⁶ D'Monte, *Environment Law Has No Teeth*, 1 Ecology No. 4, 24-25 (Sept. 1986).

INDIAN COUNCIL FOR ENVIRO-LEGAL ACTION v UNION OF INDIA

1996 (5) SCC 281

ORDER:

* * *

If the mere enactment of the laws relating to the protection of environment was to ensure a clean and pollution free environment, then India would, perhaps, be the least polluted country in the world. But, this is not so. There are stated to be over 200 Central and state statutes which have at least some concern with environment protection, either directly or indirectly. The plethora of such enactments has, unfortunately, not resulted in preventing environmental degradation which on the contrary, has increased over the years.

* * *

It is with a view to protect and preserve the environment and save it for the future generations and to ensure good quality of life that the Parliament enacted the anti-pollution laws, namely, the Water Act, Air Act and the Environment (Protection) Act, 1986. These Acts and Rules framed and Notification issued thereunder contain provisions which prohibit and/or regulate certain activities with a view to protect and preserve the environment. When a law is enacted containing some provisions which prohibits certain types of activities, then, it is of utmost importance that such legal provisions are effectively enforced. If a law is enacted but is not being voluntarily obeyed, then it has to be enforced. Otherwise, infringement of law, which is actively or passively condoned for personal gain, will be encouraged which will in turn lead to a lawless society. Violation of anti-pollution laws not only adversely affects the existing quality of life but the non-enforcement of the legal provisions often results in ecological imbalance and degradation of environment, the adverse affect of which will have to be borne by the future generations.

The present case also shows that having issued the main Notification, no follow-up action was taken either by the coastal States and Union Territories or by the Central Government. The provisions of the main Notification appear to have been ignored and, possibly, violated with impunity. The coastal States and Union Territory Administrations were required to prepare Management Plans within a period of one year from the date of the Notification but this was not done. The Central Government was to approve the plans which were to be prepared but it did not appear to have reminded any of the coastal States or the Union Territory Administrations that the plans had not been received by it. Clause 4 of the main Notification required the Central Government and the State Governments as well as Union Territory Administrations to monitor and enforce the provisions of the main Notification, but no effective steps appear to have been taken and this is what led to the filing of the present Writ Petition.

There is no challenge to the validity of main Notification. Counsel for all the parties are agreed that the main Notification is valid and has to be enforced. Instances have been given by the petitioner as well as some of the intervenors where in different States, infringement of the main Notification is taking place but no action has been

taken by the authorities concerned. The courts are ill-equipped and it is not their function to see day to day enforcement of law. This is an executive function which it is bound to discharge. A public interest litigation like the present, would not have been necessary if the authorities, as well as the people concerned, had voluntarily obeyed and/or complied with the main Notification or if the authorities who were entrusted with the responsibility, had enforced the main Notification. It is only the failure of enforcement of this Notification which has led to the filing of the present petition. The effort of this court while dealing with public interest litigation relating to environmental issues, is to see that the executive authorities take steps for implementation and enforcement of law. As such the court has to pass orders and give directions for the protection of the fundamental rights of the people. Passing of appropriate orders requiring the implementation of the law cannot be regarded as the Court having usurped the functions of the Legislature or the Executive. The orders are passed and directions are issued by the Court in discharge of its judicial functions, namely, to see that if there is a complaint by a petitioner regarding the infringement of any Constitutional or other legal right, as a result of any wrong action or inaction on the part of the State, then such wrong should not be permitted to continue.

NOTES AND QUESTIONS

1 Generally, most enforcement agencies have failed to discharge their obligations under environmental laws. What are the reasons for poor implementation?

2. Are the courts capable of transforming the enforcement culture? Does judicial intervention through public interest litigations strengthen the enforcement machinery or is it likely to further enfeeble administrators who may await court orders before taking action?

3. The EPA contains significant innovations for its enforcement, not contained in any other pollution abatement legislation at the time of the Act's adoption. For example, section 19 provides that *any person*, in addition to authorized government officials, may file a complaint with a court alleging an offence under the Act. This citizens' initiative provision requires that the person give notice of not less than 60 days of the alleged offence and the intent to file a complaint with the government official authorized to make such complaints.

The citizens' initiative provision appears to give the public significant powers to enforce the EPA. One commentator, however, has characterized the provision as an 'eye wash'. He notes that only government officials are given the power under the Act to collect samples needed as evidence of a violation of the Act. In addition, during the sixty days' notice period required for the government to decide whether to proceed against the alleged violator, the offending industry has time to clean up traces of the offence and prepare itself for the collection of samples.¹³⁷ What if the

¹³⁷ Agarwal, *Significance & Perspective Impact of India's Environment (Protection) Act, 1986*, 1 Ecology No. 7, 28-29 (1986)

government decides to file a complaint against the alleged polluter but then does not diligently pursue prosecution? Should a citizen be allowed to file a separate action or intervene in the ongoing prosecution?

As a matter of practice, the citizens' initiative provision is seldom used. There are no significant reported decisions in cases arising from a citizen's complaint under section 19 of the EPA. Most environmental groups and concerned citizens prefer to obtain redress through the public interest litigation channel developed by the High Courts and the Supreme Court under their constitutional jurisdiction.

4. The Act allows, but does not require, the Central Government to obtain reports, returns, statistics, accounts, and other information in relation to its functions under the Act from any person, officer, state government or other authority.¹³⁸ Rule 14 of the Environment (Protection) Rules requires every polluter to file an annual environment statement containing the prescribed particulars. Could the citizens' initiative provision become an effective enforcement tool if industries were required to make mandatory public reports concerning their pollutant discharges? Severe penalties could be imposed for false reporting and the government could undertake random sampling to ensure that industries are complying with the reporting requirements. Mandatory reports submitted by industry under the Clean Water Act in the United States have been used by citizens' groups as evidence in suits filed against polluters.

5. In *Rural Litigation & Entitlement Kendra v State of Uttar Pradesh*,¹³⁹ the Supreme Court considered whether to order the closure of limestone mining operations that were affecting the water quality and degrading forest land in the Doon Valley. The defendant mining companies argued that because the issue of location of industries was one of the powers given to the Central Government under the EPA, the courts no longer have jurisdiction to consider the issue. The court summarily rejected this argument, noting that the Act does not purport to oust jurisdiction and that indeed the Act perhaps could not constitutionally oust the Supreme Court's jurisdiction.

VI. THE NATIONAL ENVIRONMENT APPELLATE AUTHORITY ACT OF 1997

This Act (NEAA) requires the Union Government to establish a body known as the National Environment Appellate Authority to hear appeals against orders granting environmental clearance in designated areas where industrial activity is proscribed or restricted by regulations framed under the EPA. The Appellate Authority is chaired by a retired judge of the Supreme Court or a Chief Justice of a High Court and has its head office at Delhi.

Restrictions on industrial activity may be imposed by the Centre under section 3(1) and 3(2)(v) of the EPA, and as we have seen this power has been exercised by the Union Government to regulate industrial activity along the coast as well as in

¹³⁸ Section 20.

¹³⁹ AIR 1988 SC 2187.

ecologically sensitive regions like the Doon valley, Dahanu and Murud-Janjira in Maharashtra and parts of the Aravalli Range. Likewise, the Environment Impact Assessment Regulations of January, 1994 were introduced in exercise of the Centre's power under these provisions.

Section 11 of the NEAA requires an appeal to be filed within 30 days of the impugned order granting conditional or unconditional environmental clearance or where the delay is explained, within 90 days. The appellate jurisdiction is restricted to cases where environmental clearance is granted and does not extend to cases where clearance is refused. The categories of 'aggrieved persons' who are conferred a right of appeal are enumerated in section 11(2). They include a person likely to be affected by the environmental clearance and an association of persons 'likely to be affected by such order and functioning in the field of environment'. The Appellate Authority is required to dispose of the appeal within 90 days of its filing. Section 15 of the NEAA bars a civil court or other authority from entertaining any appeal in matters falling within the jurisdiction of the Appellate Authority

NOTES AND QUESTIONS

1. Does the phrase 'any association of persons . . . likely to be affected by such order and functioning in the field of environment' appearing in section 11(2) entitle *all* non-governmental organizations having a genuine concern for the environment to file an appeal, or is the expression restricted to local organizations alone? Should a court liberally interpret the standing requirement? Or was the intent of Parliament to restrict the standing criteria to local groups?

2. Is the 30 day appeal period fair? Remember, there is no requirement under most of the regulatory notifications which mandate for the environmental clearance orders to be published. How is a citizen to learn about an environmental clearance which is granted? What type of publicity requirement would ensure fairness? How are local citizens to learn about the material and record which were considered by the clearing authority when there is no provision for making such records available to the public?

3. Does section 15 exclude the writ jurisdiction of the High Courts and the Supreme Court conferred under the Constitution?

4. In *A.P. Pollution Control Board v Prof. M V Nayudu*,¹⁴⁰ the Supreme Court held that in addition to its statutory jurisdiction, the Appellate Authority also had an advisory role to play in complicated environmental matters that were referred to it by the Supreme Court or the High Courts

¹⁴⁰ AIR 1999 SC 812

JUDICIAL REMEDIES AND PROCEDURES

Generally, modern environmental law provides for a system of regulation by statute. Administrative agencies created under environmental statutes are required to implement legislative mandates. Frequently, for lack of staff, money or will, these agencies fail to implement the laws under which they operate, and ecological degradation continues unabated. In this event, the citizen has a choice of three civil remedies to obtain redress: (1) a common law tort action against the polluter; (2) a writ petition to compel the agency to enforce the law and to recover clean up or remedial costs from the violator; or (3) in the event of damage from a hazardous industry accident, an application for compensation under the Public Liability Insurance Act of 1991 or the National Environment Tribunal Act of 1995. Among the civil remedies, the writ jurisdiction is the most popular; the action in tort but rarely used; and the statutory remedies, largely untried. Supplementing the redressal machinery is the National Environment Appellate Authority Act of 1997 which creates an appellate forum to test the validity of environmental clearances for industrial projects granted under the EPA.¹ In addition, if the pollution amounts to a 'public nuisance', a remedy under the Criminal Procedure Code of 1973 is also available. Finally, a citizen may make a criminal complaint under section 19 of the EPA or the corresponding provisions under the Water Act and the Air Act to trigger the prosecution of polluters.

In this chapter we examine these judicial remedies. To help contrast private nuisance cases with public nuisance cases, the opening section on torts is followed by the section on public nuisance. Next, we examine the writ procedure, and the citizens' initiative provisions. The second half of this chapter contains three sections on more general topics: Public interest litigations, class actions and freedom of information and the right to know. Taken together, these seven sections comprise the environmental lawyer's procedural armoury.

¹ Environment (Protection) Act of 1986.

A. TORT LAW

Actions brought under tort law are among the oldest of the legal remedies to abate pollution. Most pollution cases in tort law fall under the categories of nuisance, negligence and strict liability. To these traditional categories, the Supreme Court has added a new class based on the principle of 'absolute' liability. This norm was developed by the court in the post-Bhopal period in response to the spread of hazardous industries and was later adopted by the legislature.²

The rules of tort law were introduced into India under British rule. Initially, disputes arising within the Presidency towns of Calcutta, Madras and Bombay were subjected to common law rules.³ Later, Indian courts outside the Presidency towns were required by Acts of British Parliament and Indian laws to reconcile disputes according to justice, equity and good conscience where there was no applicable statute.⁴ Consequently, in suits for damages for torts (civil wrongs), courts followed the English common law in so far as it was consonant with these principles. By the eighteenth century, Indian courts had evolved a blend of tort law adapted to Indian conditions.⁵ Common law based tort rules continue to operate under Article 372 of the Indian Constitution which ensured the continuance of existing laws.

In *Vellore Citizens' Welfare Forum v Union of India*,⁶ the Supreme Court traced the source of the constitutional and statutory provisions that protect the environment to the 'inalienable common law right' of every person to a clean environment. Quoting from Blackstone's Commentaries on the English law of nuisance published in 1876, the court held that since the Indian legal system was founded on English common law, the right to a pollution-free environment was a part of the basic jurisprudence of the land.⁷

I DAMAGES AND INJUNCTION

A plaintiff in a tort action may sue for damages or an injunction, or both

Damages

Damages are the pecuniary compensation payable for the commission of a tort. Damages may be either 'substantial' or 'exemplary'. Substantial damages are awarded to compensate the plaintiff for the wrong suffered. The purpose of such damages is

² Both the Public Liability Insurance Act of 1991 and the National Environment Tribunal Act of 1995 adopt this norm

³ 'Common Law' refers to the customary law of England derived from judicial decisions, in contrast with legislative enactments

⁴ S. Desai & K. Desai, *Ramaswamy Iyer's The Law of Torts* 21 (8th ed. 1987)

⁵ M. Setalvad, *The Common Law of India* 53 (1960)

⁶ AIR 1996 SC 2715

⁷ *Id.* at 2722. For a general review of tort law principles see *Jay Laxmi Salt Works (P) Ltd v State of Gujarat* 1994 (4) SCC 1

restitution, i.e. to restore the plaintiff to the position he or she would have been in if the tort had not been committed. Such damages, therefore, correspond to a fair and reasonable compensation for the injury.

Exemplary damages are intended to punish the defendant for the outrageous nature of his or her conduct, as for instance, when he or she persists in causing a nuisance after being convicted and being fined for it.⁸ The object of the court in such cases is to deter the wrongdoer. The deterrence objective has recently prompted the Supreme Court to add a fresh category to the type of cases where exemplary damages may be awarded, viz., when harm results from an enterprise's hazardous or inherently dangerous activity. In the *Shriram Gas Leak Case*,⁹ oleum gas escaped from a unit of the Shriram Foods and Fertilizer Industries and injured a few Delhi citizens. The court observed that in such cases, compensation 'must be correlated to the magnitude and capacity of the enterprise because such compensation must have a deterrent effect. The larger and more prosperous the enterprise, the greater must be the amount of compensation payable by it. ...'¹⁰

Damages awarded in tort actions in India are notoriously low, and pose no deterrent to the polluter. Lengthy delays in the adjudication of cases combined with chronic inflation dilute the value of any damages that a successful plaintiff may receive. Consequently, although in theory damages are the principal relief in a tort action, in practice injunctive reliefs are more effective in abating pollution. Accordingly, litigation strategies must shift away from the conventional common law emphasis on damages. Lawyers in India intent on abating pollution may seek a temporary injunction against the polluter followed by a perpetual injunction on decree. Damages should be viewed as a bonus.

Injunction

An injunction is a judicial process where a person who has infringed, or is about to infringe the rights of another, is restrained from pursuing such acts. An injunction may take either a negative or a positive form. It may require a party to refrain from doing a particular thing or to do a particular thing. Injunctions are granted at the discretion of the court.

Injunctions are of two kinds, temporary and perpetual. The purpose of a temporary injunction is to maintain the state of things at a given date until trial on the merits. It is regulated by sections 94 and 95 as well as Order 39 of the Code of Civil Procedure of 1908. It may be granted on an interlocutory application¹¹ at any stage of a suit. It remains in force until the disposal of the suit or until further orders of the court.

⁸ *J.C. Galstaun v Dunia Lal Seal* (1905) 9 CWN 612, 617.

⁹ *M C Mehta v Union of India* AIR 1987 SC 1086.

¹⁰ *Id.* at 1099

¹¹ An application made between the commencement and end of a suit.

Rule 1 of Order 39 provides that temporary injunctions may be granted where it is proved:

- '(a) that any property in dispute in a suit is in danger of being wasted, damaged or alienated by any party to the suit, or wrongfully sold in execution, of a decree, or
- (b) that the defendant threatens, or intends, to remove or dispose of his property with a view to defrauding his creditors, or
- (c) that the defendant threatens to dispossess the plaintiff or otherwise cause injury to the plaintiff in relation to any property in dispute in the suit ...'

The Supreme Court has held that courts also have an inherent power to issue a temporary injunction in circumstances that are not covered by the provisions of Order 39 when the court is satisfied that the interests of justice so require.¹²

The grant or refusal of a temporary injunction is governed by three well established principles: (1) the existence of a *prima facie* case (a showing on the facts that the plaintiff is very likely to succeed in the suit); (2) the likelihood of irreparable injury (an injury that cannot be adequately compensated for in damages) if the injunction is refused; and (3) that the balance of convenience requires the issue of the injunction (a showing that the inconvenience to the plaintiff if the temporary injunction is withheld exceeds the inconvenience to the defendant if he or she is restrained).

Perpetual injunctions are regulated by sections 37 to 42 of the Specific Relief Act of 1963. A perpetual injunction permanently restrains the defendant from doing the act complained of. It is granted at a court's discretion after judging the merits of the suit. A perpetual injunction is intended to protect the plaintiff indefinitely (so that he or she need not resort to successive actions in respect of every infringement), assuming that the circumstances of the case remain essentially unchanged.

A court may permanently restrain the defendant where damages do not provide adequate relief or where the injunction would prevent a multiplicity of proceedings. Thus, where hazardous dust from a brick grinding machine polluted the air of a neighbouring medical practitioner's consulting room, the polluter was permanently restrained from operating the machine.¹³ A court may grant an injunction even though the anticipated damage may not be very serious, as long as the damage is continuous or frequent. The 'balance of convenience' test also applies to the award of a permanent injunction: The court must be satisfied that the damage that the defendant would suffer by the grant of the injunction is outweighed by the damage the plaintiff would suffer if the injunction was refused. Finally, the court will consider the injunction's impact on third parties, for example,

¹² *Manohar Lal Chopra v Rai Baja Seth Hiralal* AIR 1962 SC 527, 532.

¹³ *Ram Bai Singh v Babulal* AIR 1982 ALL 285

when the granting of an injunction would throw a large number of people out of work.

II. NUISANCE, NEGLIGENCE, STRICT LIABILITY AND ABSOLUTE LIABILITY

Nuisance

Modern environmental law has its roots in the common law relating to nuisance. A nuisance is an unlawful interference with the plaintiff's use or enjoyment of land. A plaintiff must, therefore, prove some injury to his enjoyment of property and his own interest in that property. An occupier of the property can sue for nuisance.

Ordinarily, a nuisance means anything that annoys, hurts or offends; but for an interference to be an *actionable nuisance*, the conduct of the defendant must be unreasonable. Further, a nuisance must not be momentary, but must continue for some time: A single, short inconvenience is not actionable. A nuisance would include offensive smells, noise, air pollution, and water pollution.

There are two kinds of nuisance—public and private. A public nuisance injures, annoys or interferes with the quality of life of a class of persons who come within its neighborhood. It is an unreasonable interference with a general right of the public. It is both a tort and a crime.

The remedies for a public nuisance are: (1) a criminal prosecution for the offence of causing a public nuisance;¹⁴ (2) a criminal proceeding before a magistrate for removing a public nuisance;¹⁵ (3) a civil action by the Advocate General or by two or more members of the public with permission of the court, for a declaration, an injunction, or both.¹⁶

A private nuisance is a substantial and unreasonable interference with the use and enjoyment of land. Reasonableness of the defendant's conduct is the central question in nuisance cases. To determine 'reasonableness', courts will be guided by the ordinary standard of comfort prevailing in the neighbourhood. Minor discomforts that are common in crowded cities will not be viewed as a nuisance by the courts.

An action for private nuisance may seek injunctive relief as well as damages. In cases of a continuing cause of action, such as pollution of a stream by factory wastes or smoke emissions from a chimney, the proper course is to sue for an injunction. Repeated actions for damages may be brought to recover the loss sustained up to the date of the court's decree; but future losses, which are contingent on the continuance of the wrong, are not usually awarded. Damages offer poor relief since the plaintiff would be compelled to bring successive actions. Ordinarily, therefore, courts grant the plaintiff an injunction where a nuisance exists or is threatened, unless he or she is guilty of improper conduct or delay.

¹⁴ Section 268 of the Indian Penal Code of 1860.

¹⁵ Sections 133–144 of the Code of Criminal Procedure of 1973.

¹⁶ Section 91 of the Code of Civil Procedure of 1908. In the absence of special damage this is the only available civil remedy. A private action can be maintained against a public nuisance where the plaintiff has suffered particular damage beyond that suffered by all the other persons affected by the nuisance.

A two decade journey through four tiers of courts culminated in the dismissal of an action to restrain a baking oven from being operated in a residential locality in *Kuldip Singh v Subhash Chandra Jain*.¹⁷ The plaintiff, Subhash Chandra Jain, feared that the baking oven and 12 foot chimney built by his neighbour would cause a nuisance when the bakery commenced. The trial court restrained the defendant since operation of the oven 'would result in emitting smell and generating heat and smoke which taken together would amount to nuisance.' The Supreme Court drew a distinction between an existing nuisance and a future nuisance: 'In case of a future nuisance, a mere possibility of injury will not provide the plaintiff with a cause of action unless the threat be so certain or imminent that an injury actionable in law will arise unless prevented by an injunction. The Court may not require proof of absolute certainty or a proof beyond reasonable doubt before it may interfere; but a strong case of probability that the apprehended mischief will in fact arise must be shown by the plaintiff.' In a remarkable conclusion, the apex court found that the plaintiff's apprehension about a smoking oven next door causing a nuisance was not justified by the pleadings or the evidence and dismissed the suit.

In *B. Venkatappa v B. Lovis*,¹⁸ the Andhra Pradesh High Court upheld the lower court's mandatory injunction directing the defendant to close the holes in a chimney facing the plaintiff's property. The court ensured enforcement of its order by authorizing the plaintiff to seal the holes at the defendant's cost, if the defendant failed to do so. The High Court stated that the smoke and fumes that materially interfered with ordinary comfort were enough to constitute an actionable nuisance and that actual injury to health need not be proved. The court also observed that the existence of other sources of discomfort in the neighbourhood were no defence, provided that the source complained of materially added to the discomfort. 'The court rejected the defence that the plaintiff 'came to the nuisance' 'The fact that the nuisance existed long before the complainant occupied his premises, does not relieve the offender unless he can show that as against the complainant he has acquired a right to commit nuisance complained of.'¹⁹

The 1905 judgment of the Calcutta High Court in *J. C. Galstaun v Dunia Lal Seal*, excerpted below, may be the earliest reported pollution control case in India. Apart from its historical significance, the case is important because it shows how the common law regulatory system can check polluters in a pre-industrialized society. But would this system, unaided by statute, be sufficient today? While reading the judgment, notice: (a) the polluter's defences (rejected by this court at the beginning of the last century, but still raised today); and (b) the award of Rs. 1000 in damages—a very large amount at that time.

¹⁷ 2000 (2) SCALE 582

¹⁸ AIR 1986 AP 239

¹⁹ The 'right to commit nuisance complained of', refers to a prescriptive right to emit smoke acquired under section 15 of the Indian Easements Act of 1882, or a right acquired by the authority of a statute. A right to cause a *public nuisance*, however, cannot be obtained by prescription

J.C. GALSTAUN v DUNIA LAL SEAL
(1905) 9 CWN 612

PARGITER, J.:

This appeal arises out of a suit for a perpetual injunction to abate a nuisance and for damages on account of the same.

The Plaintiff has a garden-house in the Manicktollah Municipality in the suburbs of Calcutta and the Defendant has a shellac factory situated 200 or 300 yards to the north-west of it. The Defendant discharges the refuse-liquid of his manufactory into a Municipal drain that passes along the north of the Plaintiff's garden, and the Plaintiff alleges, first, that the liquid is foul-smelling and noxious to the health of the neighbourhood and specially to himself, and, secondly, that it has damaged him in health, comfort and the market value of his garden property. The Plaintiff has, therefore, asked for a perpetual injunction against the Defendant to restrain him from discharging the liquid refuse into the Municipal drain and for five thousand rupees as damages.

The Defendant admitted that the refuse-liquid from his shellac factory was discharged into the Municipal drain, but he denied that it was noxious or that it had injuriously affected the Plaintiff's property. He said he had been conducting the manufactory in a lawful and reasonable manner from the year 1896 and that it did not constitute a nuisance. He alleged that his factory had been licensed by the Municipality and that he had not caused the Plaintiff any damage and that the Plaintiff had no cause of action against him.

The Subordinate Judge decreed the suit, granted a perpetual injunction and awarded the Plaintiff a thousand rupees as damages. The Defendant has now appealed and has maintained the same pleas here as he did in the first court.

The first point is to ascertain the truth about the refuse-liquid and its character. [The court reviewed the evidence.]

Our conclusion on all the evidence adduced is that when the Defendant's factory was in full working, the refuse-liquid when first discharged into the Municipal drain was offensive, that is contained animal and vegetable matter, that decomposition cannot but have begun soon after it was discharged, that the liquid was subject to evaporation in the drain during the dry months which constituted the working season, that it became thick and sluggish in a very short time, and that the organic matter accumulated in the drain and gave off a stench which was highly offensive and noxious. That is, we find, that the refuse-liquid constituted a legal nuisance when discharged, and created a serious nuisance in its passage through the Municipal drain.

The Defendant made some attempt to prove that the stench arose not from his refuse but from the insanitary condition of the Plaintiff's garden. [This contention was rejected by the court.]

The Defendant has ... contended that the refuse-liquid is not noxious when it leaves the factory; that the refuse may become noxious if it stagnates; that the stagnation is really due to the faulty nature of the Municipal drain, which cannot carry the liquid off speedily and efficiently because of the partial block at the culvert; that if the Municipality would put the drain into good condition, there would be no nuisance; and that he cannot, therefore, be responsible for those injurious consequences.

Comparing these contentions with the findings which we have already

expressed, it is clear that the essential question at issue in this suit is this: Whether the Defendant is at liberty to discharge into this Municipal drain such a refuse-liquid as we have described. We are of opinion that he can claim no such right.

In the first place, the Municipality did not admit that the Defendant had any such right, for it prosecuted him twice for allowing the refuse-liquid to flow into the drain, first, in the year 1897, and again, not long afterwards. The Defendant, it appears, gave a promise that he would not allow the liquid to flow into the drain and the prosecution (apparently the first one) was withdrawn. For a few months, he turned the liquid into a pit which he dug, but afterwards he reverted to the old practice of discharging it into the drain. In the second prosecution, he was convicted and fined. The Municipality tried to prevent the discharge of the liquid into the drain first by blocking the mouth of the drain, and afterwards by putting up an iron plate with masonry, but both these preventions were broken and removed. From these facts it appears that the Municipality tried to enforce the Municipal law against the Defendant but succeeded only partially and ultimately gave up the contest.

+ + +

[The Defendant] cannot shift the responsibility on to the Municipality by contending that, if the Municipality would improve the drain so as to carry off all the refuse quickly, there would be no nuisance. This contention rests on a serious misconception of the rights and duties created under the Municipal law. No private person can claim a right to foul an ordinary drain by discharging into it what it was not intended to carry off, and then throw on the Municipality an obligation to alter the drain in order to remedy the nuisance that he has produced; nor can he say that other persons must meanwhile put up with such nuisance.

The Defendant's action consists of two parts, first, he has discharged the refuse—liquid into the drain; and, secondly, he has done so knowing that it cannot be efficiently carried away, but must stagnate, decompose and give off an offensive and intolerable stench.

The first part of his action constitutes a legal nuisance which the Plaintiff is entitled to restrain. Carrying on an offensive trade so as to interfere with another's health and comfort or his occupation of property has been constantly held in England to be a legal nuisance against which the courts will give relief.

* * *

The second part of the Defendant's action also constitutes a legal nuisance. Defendant is responsible for the consequences that arise necessarily out of his action. The case of *Ogston v Aberdeen District Tramways Company* [LR (1897) AP.CAS. 111 (1896)] has some points in resemblance with the present case. There a Tramway Company after heavy falls of snow used to clear the snow off its track and to heap it upon the side of the streets; then it scattered salt to make the snow melt in the grooves of its track in order to facilitate its own traffic, with the result that the fluid mixture of salt and snow permeated the heaps of snow and, forming a freezing compound,

caused annoyance and injury to the other traffic in the streets. The Town Council did not take any immediate steps to remove the briny slush which was left upon the streets. It was held that the Tramway Company had committed a nuisance which was not sanctioned by either the general or the special Tramways Acts, and that the default of the Town Council did not affect the primary liability of the Tramway Company.

In that case, the Company put forward much the same propositions as have been put forward in this case. They contended that they were within their statutory rights, or that their action, if not expressly licensed by the statutes, was sanctioned by implication for the necessary purposes of the Tramway. But these pleas were disallowed. The statutes did not sanction what the Company did nor did they give the Company any right to create a nuisance. We have already pointed out that the Defendant's plea in the present case that he was entitled to discharge his refuse into the drain cannot prevail.

* * *

For these reasons, we think that the Plaintiff is entitled to restrain the Defendant from discharging the refuse-liquid of his factory into the Municipal drain. From the history of this case it appears that the Defendant has successfully resisted Municipal control, that he has enlarged his factory and that he has been discharging a greater volume of refuse-liquid into the drain. It is plain that if no injunction is issued, there will be nothing to prevent him from aggravating the present nuisance by further enlarging his factory and discharging still more refuse into the drain. An injunction for the permanent stoppage of the nuisance is the only effectual remedy, and we have abundance of authority for issuing an injunction in the cases decided in England.

With regard to the question of the damage caused to the Plaintiff, objections have been urged against the opinion formed by the Subordinate Judge. Persistence in a proved nuisance has been held in England to be a just cause for giving exemplary damages, (see Pollock's Law of Torts, 6th edition, Chap. X, 407). The Defendant has certainly persisted in spite of Municipal warning. This, therefore, is not a case in which the damages awarded should be nominal. There can be no doubt that material injury has been caused to the Plaintiff and the damages should be substantial; and, while holding this view, we think that the Subordinate Judge's estimate is reasonable and not excessive. For these reasons, we affirm the decree of the court below and dismiss this appeal with costs.

QUESTIONS

Despite the plaintiffs' success in *Galstaun's Case*, if a similar situation arose today, is a common law action advisable? What other options may the victim consider? What changes since 1905 might influence the choice of the remedy?

In *Ram Baj Singh's Case*, excerpted below, the plaintiff successfully restrained the defendant from using a brick grinding machine that generated dust and polluted the air. Note in this case: (a) the court's recognition of a private right of action arising from a public nuisance; (b) the liberal test employed by the court to determine the existence of a nuisance; (c) the issue of an injunction apparently without examining the balance of convenience; and (d) the evidentiary problems faced by the plaintiff.

RAM BAJ SINGH v BABULAL

AIR 1982 ALL 285

JUDGMENT:

The plaintiff-appellant has been denied the relief sought by him on the ground that [a] brick grinding machine of the defendant did not cause any substantial injury or special damage to the plaintiff. Learned Counsel appearing for the plaintiff has argued before me that the two courts below have not correctly appreciated the meaning of the expressions 'substantial injury' and 'special damage', as used in law.

The plaintiff-appellant commenced the action giving rise to this second appeal for permanent injunction to restrain the defendant-respondent from running his brick-grinding machine.

It is not in controversy between the parties that the plaintiff is a Medical Practitioner. He has built a consulting chamber before the brick-grinding machine was erected by the defendant-respondent. There is a controversy between parties as to whether the consulting chamber was established by the plaintiff in the year 1962 or in the year 1965. * * * It is also not disputed that the brick-grinding machine is electrically propelled and that it is situated at a distance of about 40 feet from the consulting chamber of the plaintiff-appellant in a north-eastern direction. There is a road which intervenes between the consulting chamber of the plaintiff-appellant and the brick-grinding machine.

The grievance of the plaintiff-appellant was that the brick-grinding machine was generating dust which polluted the atmosphere and entered the consulting chamber of the plaintiff-appellant and caused physical inconvenience to him and his patients who came to his chamber. It was further stated that the said machine had been set up by the defendant-respondent without any permission or licence from the Municipal Board.

The defendant-respondent contested the suit. He did not deny that the machine was erected by him in April, 1965. He contended that no dust emanated during the process of grinding bricks and there was no question of any pollution being caused in the atmosphere. He further stated that the bricks were moistened before being subjected to grinding process and no dust resulted therefrom. He further stated that his machine did not produce any noise and according to him, the erection and working of the machine did not cause any nuisance—whether public or private. He concluded by saying that the suit had been filed against him only on account of enmity and the same was not legally sustainable. The trial court came to the conclusion that the brick grinding machine had been erected by the defendant-respondent in the year

1965 without obtaining any licence from the appropriate authority. It further held that the dust did emanate and pollute the atmosphere and that such dust was injurious to health. It also came to the conclusion that the dust produced by the machine entered the consulting chamber of the plaintiff-appellant depending on the direction of the wind. It further found that the defence taken up by the defendant-respondent was false and the evidence produced by him could not be relied upon. It, however, dismissed the suit of the plaintiff-appellant on the finding that the dust resulting from the machine did not cause any substantial injury either to the plaintiff or to his patients. The trial court also went into the question as to whether the machine belonging to the defendant-respondent caused any actionable nuisance to the plaintiff-appellant and decided that [issue] against him.

* * *

[A] person is ordinarily entitled to do any thing on his own property, provided that doing of such a thing is lawful. His conduct, however, becomes a private nuisance when the consequence of his acts no longer remain confined to his own property but spill over in a substantial manner to the property belonging to another person. However, anything done by a person on his property, repercussions of which are felt on the neighbour's land, may not always be a nuisance. The consequences of anything done by the owner of a land on his own land which are also felt over the neighbouring land may be of such a trivial nature that no reasonable person would object to the same. No precise or universal formula has been devised to determine the distinction between a trivial consequence of an act or a consequence which can be termed to be of substantial magnitude. The test which has always been found to be useful in distinguishing the two sets of cases is the test of ascertaining the reaction of a reasonable person according to the ordinary usage of mankind living in a particular society in respect of the thing complained of.

After a land had been built upon, the owner of the building cannot expect to have air of the same quality which existed before the building was erected. The freshness of the air is necessarily diminished by the erection of the building. If the whole locality in which the building is situated is built upon, the quality of freshness of air will be diminished further and the same may become tainted to a certain extent. But when something is done by the owner of a neighbouring land upon his own land which is not comfortable or is wholly uncomfortable with physical comfort and human existence, the person aggrieved gets a right to sue. The act of the neighbour of which he will complain will be an actionable nuisance. At this stage, a note of caution may be sounded. In order to judge whether the air has been polluted to an extent that it has ceased to be comfortable with human comfort and existence, the standard to be employed again is the standard of a sober and reasonable mind. Concepts of elegant and dainty living will be wholly out of place. Further in judging the question of this comfort of danger to human existence on account of the act complained of, the location of a property is also a relevant circumstance. A person living in an industrial locality cannot claim to have as much fresh air as a person living in a non-industrial area.

* * *

[A]ccording to the findings of the two [lower] courts ... the consulting chamber of the plaintiff-appellant started functioning before the machine was set up by the defendant-respondent.

The two [lower] courts ... have been largely influenced by the fact that the plaintiff-appellant did not examine any of his patients to prove that any actual damage was caused to them on account of the dust emanating from the machine of the defendant-respondent. They have also referred to the statement of the plaintiff-appellant and have held that the plaintiff admitted that the damage caused to his patients was recorded in his register and the same had not been produced. From this omission on the part of the plaintiff, they have drawn an adverse inference against him and have come to the conclusion that the plaintiff-appellant has failed to establish that any special damage or any substantial injury was caused to him

The expression 'special damage' is used in law to indicate a damage caused to a party in contra-distinction to damage caused to the public at large. The damage caused to the public at large on account of a nuisance is referred in law as a public nuisance. [The court referred to the public nuisance provisions in the Indian Penal Code and the Code of Criminal Procedure.] However, there may be cases where a single act may amount to a public nuisance and also give rise to a cause of action to an individual to sue on the basis of private nuisance. For instance, if night soil is heaped by the side of a public highway, it may be a nuisance to the general public and the persons who pass along the said highway. At the same time it may be a private nuisance to a person who lives in a house which adjoins the place where night soil is collected. All that the law requires is that when an act amounts to public nuisance, an individual can sue in his own right only if he is able to prove special damage to himself i.e., damage which is personal to him as opposed to the damage or inconvenience caused to the public at large or to a section of the public.

The expression 'special damage' was found by the text book writers to be somewhat inaccurate and confusing. In later editions of the text books such as Salmond on Torts, the expression which has been used is 'particular damage'. It actually follows from the findings recorded by the two courts below that the plaintiff had succeeded in establishing damage which was particular to himself. It has been held by the court of appeal that dust emanated from the crushing of bricks was a public hazard and was bound to cause injury to the health of the persons. It has further held that dust from bricks entered in sufficient quantity into the consulting chamber of the plaintiff-appellant so that a thin red coating was visible on the clothes of the persons sitting there. In view of these findings it is difficult to comprehend how it could be said that the plaintiff had failed to prove that special damage was not being caused to him on account of the offending brick grinding machine.

Coming to the question of substantial injury, I have already indicated above that every injury is considered to be substantial which a reasonable person considers to be so. In assessing the nature of substantial injury, the test to be applied is again the appraisal made of the injury by a reasonable person belonging to the society. The expression does not take into account the susceptibilities of hypersensitive person or persons attuned to a dainty mode of living. No other meaning can be assigned or has been assigned to the expression 'substantial injury.' In view of

the fact found by the two courts below concurrently, it was impossible to hold that no substantial injury was being caused to the plaintiff-appellant. Causing of actual damage by the act complained of as a nuisance is besides the point. If actual damage or actual injury were to be the criterion a person will have to wait before the injury becomes palpable or demonstrable before instituting a suit for its abatement. My opinion, in this point is fortified by the views of the text book writers and the decided cases. Any act would amount to a private nuisance which can reasonably be said to cause injury, discomfort or annoyance to a person.

For reasons stated above, this appeal must succeed.

NOTES AND QUESTIONS

1. On the basis of the evidence adduced, the High Court concluded that the plaintiff's consulting rooms started functioning *before* the brick grinding machine was set up by the defendant. The court, therefore, was not required to resolve the issue of the plaintiff having come to the nuisance. If the brick grinding machine had been functioning before the plaintiff started his consultancy, would the case have had a different outcome? In this situation, might the court have preferred the softer relief of damages?

2. While judges in India routinely deal with cases involving a breach of a statute, tort cases involving subjective standards of 'reasonableness' are rare occurrences. In this situation, judges often seek a *statutory basis* to support their view of 'reasonableness'. The brick grinding machine was being operated without an appropriate government licence. Did this factor weigh with the court while deciding that the machine was being used unreasonably? Would the court have been more circumspect in restraining the defendant if the machine had been properly licensed by the municipal authorities?

3. The court dispenses with the balance of convenience test before granting the mandatory injunction. Similarly, the injunction's impact on third parties is apparently not considered. What are some of the factors that the court could have considered before reaching its decision?

4. The court employs a liberal test for nuisance, holding that air pollution amounts to a nuisance where it causes injury, discomfort or annoyance to a 'reasonable person'. Significantly, the court rejects a health-based standard that would require the plaintiff to prove actual injury: 'Causing of actual damage by the act complained of as a nuisance is besides the point. If actual damage or actual injury were to be the criterion, a person will have to wait before the injury becomes palpable or demonstrable before instituting a suit...'

Apart from the problem of latent health effects, such a standard would also immeasurably increase the evidentiary burden on the plaintiff: Medical evidence would need to be adduced and the causal link between the pollutant and the injury

would have to be established. In contrast, the 'reasonable person' standard may easily be met by adducing non-technical evidence.

But does the common law standard of 'reasonableness' provide a satisfactory basis for regulating pollution? Should not pollution regulation be designed to protect the most vulnerable segments of the population and not merely the 'average' or 'reasonable person'?

5. For a discussion on the nuisance test for excessive noise, see *Radhey Shyam v Gur Prasad Serma*.²⁰

6. Since 1989 the Environment (Protection) Rules prescribe ambient noise levels for industrial, commercial and residential areas as well as silence zones. In 1996, the Centre notified National Ambient Air Quality Standards (NAAQS) for several pollutants such as sulphur dioxide, suspended particulate matter, respirable particulate matter, carbon monoxide, etc. The NAAQS standards allow an adequate margin of safety to protect public health, vegetation and property²¹ and may guide a civil court in assessing the reasonableness of a smoke nuisance or excessive noise.

7. Does the 'polluter pays' principle, recently adopted by the Supreme Court,²² strengthen nuisance law? As explained by the Supreme Court, this principle not only requires the polluter to compensate the victims of the pollution but also requires her to foot the bill for remedial costs to restore the damaged ecology.

Negligence

A common law action for negligence may be brought to prevent environmental pollution. In an action for negligence, the plaintiff must show that (1) the defendant was under a duty to take reasonable care to avoid the damage complained of; (2) there was a breach of this duty; and (3) the breach of duty caused the damage. The degree of care required in a particular case depends on the surrounding circumstances and varies according to the risk involved and the magnitude of the prospective injury.

An act of negligence may also constitute a nuisance if it unlawfully interferes with the enjoyment of another's right in land. Similarly, it may also amount to a breach of the rule of strict liability in *Rylands v Fletcher*,²³ if the negligent act allows the escape of anything dangerous which the defendant has brought on the land.

The causal connection between the negligent act and the plaintiff's injury is often the most problematic link in pollution cases. Where the pollutant is highly toxic and its effect is immediate, as with the methyl isocyanate that leaked from the Union Carbide plant in Bhopal, the connection is relatively straightforward. The causal link is more tenuous when the effect of the injury remains latent over long periods of time

²⁰ AIR 1978 ALJ 86

²¹ Note 1, Schedule VII, Environment (Protection) Rules of 1986

²² *Indian Council for Enviro-Legal Action v Union of India (The Bichhri Case)* AIR 1996 SC 1446, and *Vellore Citizens' Welfare Forum v Union of India* AIR 1996 SC 2715

²³ (1868) LR 3 HL 330

and can eventually be attributed to factors other than the pollutant, or to polluters other than the defendant.²⁴

The *Mukesh Textile Mills Case*, excerpted below, is one of the few reported pollution cases in which a judgment was rendered for damages. Note (a) the defences raised by the mill; (b) the witnesses examined by the parties to establish their respective contentions; (c) the discussion on the mitigation of damages; and (d) the manner in which the court quantified damages.

MUKESH TEXTILE MILLS (P) LTD. v H.R. SUBRAMANYA SASTRY

AIR 1987 KANT 87

VENKATACHALIAH, J.:

Appellant-Mukesh Textile Mills (P) Ltd., the defendant in the court below, has a sugar factory in Harige Village, Shimoga District. Adjacent to the sugar factory, on the north, the respondents-plaintiffs own several extents of land irrigated by a distributory channel of the Barda Reservoir canal. The water channel runs West to East, in between the premises of the sugar factory on the south and respondents' lands on the north.

Appellant stores molasses, a by-product in the manufacture of sugar, in three tanks in the factory premises. Two of them are steel tanks and the third, a mud one with earthen embankment, is close to the respondents' land separated only by the said water-channel. At the material point of time, some 8000 tonnes of molasses were stored in the earthen tank.

It would appear that the northern-embankment of this earthen tank had become dilapidated having been dug into by rodents and as a result, on the night of 16th of April 1970, the northern embankment collapsed and a large quantity of molasses in the tank overflowed and emptied themselves into the water channel, inundated and spread over respondents' land. The inundation of water, fully laden with the molasses, damaged the standing paddy and sugarcane crop raised by the respondents.

Respondents brought the present suit O.S. 26 of 1972 on the file of the Civil Judge, Shimoga, for damages of Rs. 35,000/- contending that extensive cultivation of paddy and sugarcane had been damaged.

Originally, the defence was one of denial that the molasses had so inundated respondents' land; but later the appellant sought, and was granted, leave to include by amendment the following defence:

That in any event as the breach of the tank wherein the molasses was stored was due to the burrowing activity of the rodents in the said tank precincts, this was an Act of God and the defendant is in no way liable to answer the suit claim even granting that the plaintiff has suffered damages by reason of his crops being destroyed. The defendant could not have seen this burrowing by rodents.

²⁴ In numerous American suits brought against asbestos manufacturers by asbestos workers suffering from lung cancer, several courts reduced the damage award on the theory that a plaintiff's habit of smoking cigarettes had contributed, or could have contributed, to his condition. Some courts dismissed the suit entirely when the plaintiff had been a cigarette smoker.

On these pleadings, the court below framed the necessary and relevant issues. On the plaintiffs side—P.W.1—a Revenue Inspector, P.W.2 a Photographer, P.W.3—the Shanbogue and P.W.4—the Patel of Hange Village were examined. The first plaintiff tendered evidence as P.W.5.

On the side of the appellant-defendant, D.W.1—the Chief Chemist of the Factory; P.W.2 and P.W.3—the Cane Superintendent and the Manager, respectively of the factory, were examined. A number of documents were marked on either side.

On an appreciation of the evidence available on record, the court below held that as a result of a breach of the retaining wall of the mud tank molasses overflowed contaminated the water channel resulting in the inundation of respondents' land by molasses laden water and that the breach of the wall of the tank and the consequent damage suffered by respondents were attributable to actionable negligence on the part of the appellant. In regard to the quantum of damages the court below held that the claim as put forward by the respondents was somewhat exaggerated and that the loss of crops was only in respect of 14 acres of paddy and 3 acres of sugarcane Rs. 10,500/- and 4,200/- respectively, in all, Rs. 14,700/- was awarded as damages

* * *

On the contentions urged at the hearing, the following points fall for determination in this appeal:

- (a) Whether the breach of the molasses-tank and the inundation of crops by molasses laden water was the direct consequence of appellant's omission to keep the said tank in a state of good repair?
- (b) Even if the breach was attributable to appellant's neglect, whether the damage to the crop was too remote and the result of an independent cause?
- (c) Whether, at all events, the respondents ought to have mitigated the damages and their omission in this behalf disentitles them to relief and,
- (d) Whether the damages of Rs 14,700/- awarded are supportable on the evidence on record?

Re: Point (a) [The appellant-defendant did not press the plea that the damage arose due to an 'Act of God.']

The liability of the appellant rests at least on two principles. One is that the appellant, who had stored large quantities of molasses in a mud tank had the duty to take reasonable care in the matter of maintenance, in a state of good repair, of the embankments of the tank. The duty, no doubt, is not simply to act carefully but not to cause injury carelessly. The doctrine of legal causation, in reference both to the creation of liability and to measurement of damages is much discussed. So is the place of 'causation' and 'foreseeability' in the tort of 'negligence'

But in this case it was virtually admitted that the rodents had burrowed holes into the earthen embankment of the tank rendering its walls weak. Both from the foreseeability test and of initial causation it must be held that the appellant is liable. Appellant could reasonably have foreseen that damage was likely to be caused if there was a breach of the tank. There was clearly a duty-situation and appellant had omitted

to do what a reasonable man, in those circumstances, would have done or would not have omitted to do. The damage that was likely to occur to the neighbouring land by a breach of a tank in which were stored 8000 tonnes of molasses was reasonably foreseeable, engendering a duty-situation. No defence was forthcoming that the tank had been inspected periodically and all reasonable steps taken to keep it in a state of good repair.

The second ground of liability is this: Appellant by storing a large quantity of molasses on the land had put the land to a non-natural use and if a person collects on his premises things which are intrinsically dangerous, or might become dangerous, if they escape, he has a liability, if things so stored escape and cause damage. This is the rule in *Rylands v Fletcher* (1868) LR 3 HL 330 in which Blackburn, J. enunciated the rule thus:

We think that the true rule of the law is that the person who for his own purposes brings on his lands and collects and keeps there anything likely to do mischief if it escapes, must keep it at his peril, and if he does not do so, is prima facie answerable for all the damages which is the natural consequence of its escape.

On either of the two principles, a duty-situation emerges and the appellant must be held liable for the consequence of the escape of the fluid from its tank. * * *

Looked at from any side, the present one is a clear case of a duty-situation and also one of omission to discharge it on the part of the appellant. Point (a) is held against the appellant.

Re: Point (b): [Counsel for the appellant-defendant suggests] a defence of a 'novus actus interveniens.' If damage results from the intervention of acts of an independent third-party, it may be very difficult to discover the causal-connection between such damage and the original wrongful act.

In this case, the plea of 'novus actus' has absolutely no foundation. The chain of events set into motion by the negligence of the appellant, in improper maintenance of the tank which resulted in the breach of the tank and the damage caused to the crops, constitutes a direct and uninterrupted chain of events. It all happened in the night. The molasses contaminated the water in the channel and through it, the crops. The appeal to the principle of 'novus actus' appears to be somewhat misplaced. Point (b) is answered accordingly.

Re: Point (c): The contention of the [Counsel for the appellant] pushed to its logical conclusions, is that though the respondents' land was infested with molasses, the respondents' remedy was simple enough—if fresh water had been allowed to further irrigate and inundate the lands, the contamination would have been washed out. Learned Counsel submitted that as the respondents had not shown that they had so taken the requisite care to mitigate the damages they are not entitled to any damages. This plea was not taken in the court below. There is no material to show that such a process would have been really effective and practicable. [Since the appellant had failed to discharge the onus of proof, the court held that the plea of mitigation fails.]

Re: Point (d): We have examined the evidence on record on this point. The court below held that there was paddy crop on 14 acres and sugarcane crop on 3 acres.

The court below estimated the probable yield at 15 pallas of paddy per acre. Valuing paddy at Rs. 50/- per palla, the court below estimated the loss of paddy crop at Rs. 10,500/-. The yield from 3 acres of sugarcane was estimated at 60 tonnes valued at Rs. 70/- per ton. That brought in a further sum of Rs. 4200/-. D.W. 2 himself admitted the existence of the paddy and sugarcane crop. There is other material also to support this finding apart from the evidence of the 1st plaintiff. (P.W.5)

However, there is some force in what [appellant's counsel] said about the gross value of the crops having been taken while the crops had not been ready for harvest and required some more expenditure for their maintenance for sometime more before harvest and that the expenses for its upkeep and maintenance of the crops and expenses of harvest having to be deducted. We think that it is appropriate to deduct some amount from the damages awarded towards such expenditure, which was reasonably expected to be incurred. Accordingly, we deduct a sum of Rs. 2,500/- on this score. The damages awarded would, therefore, have to be scaled down to Rs. 12,200/- from Rs. 14,700/- This is our finding on Point (d)

In the result, this appeal is allowed in part, only in relation to the quantum of damages. In modification of the judgment and decree under appeal, the suit is decreed in a sum of Rs.12,200/- on which respondent-plaintiff shall be entitled to interest at 6% from the date of suit till the date of realization. The respondents shall be entitled to their costs in the suit proportionate to their success. The appellant shall, however, bear and pay its own costs in the court below. Both the parties are left to bear and pay their own costs in the appeal. Ordered accordingly.

Appeal partly allowed.

NOTES AND QUESTIONS

1. In a suit for damages, a plaintiff may sue for every prospective loss that would naturally result from the defendant's conduct. Thus, if the molasses had harmed future cultivation, the plaintiff could have obtained prospective damages as well. In such a situation, the plaintiff's evidentiary burden would have been considerable. He or she would have had to adduce expert evidence to establish the type and extent of damage to the soil. Who might possess such expertise? Where can such expertise be obtained?

2. Damages for past as well as prospective loss resulting from the same cause must be recovered in a single suit as more than one suit will not lie on the same cause of action.²⁵ Assume that some future damage caused by the molasses remained latent for several years before being discovered. Is it fair that the suit for damages for the loss of the standing crops should preclude a suit for latent injuries discovered in the future? Should the principle of *res judicata* apply to such cases?

3. After 14 years of litigation, the High Court ordered damages of Rs. 12,200

²⁵ This is governed by the principle of *res judicata* enunciated in section 11 of the Code of Civil Procedure of 1908

with interest at 6 per cent per year from the date of the suit. The High Court reduced the subordinate court's award by Rs. 2,500. Was this necessary? Does compensation afford fair relief when it ignores the high litigation costs of bringing a suit and battling it through multiple appeals? Shouldn't a court be conscious of the fall in the value of the currency? Is the award of interest at 6 per cent per year at all realistic?

4. In an appeal filed by the Rajkot Municipal Corporation contesting a decree for damages awarded to the widow and children of a pedestrian killed by a falling tree, the Supreme Court held:

The conditions in India have not developed to such an extent that a corporation can keep constant vigil by testing the healthy condition of the trees in the public places, roadsides, highways frequented by passers-by. There is no duty to maintain regular supervision thereof. ... Consequently, there would be no common law right to file a suit for tort of negligence.²⁶

Apparently, 'conditions in India' developed quite swiftly. Two years later, without reference to *Rajkot*, the Supreme Court upheld a decree against the Delhi Municipal Corporation where a scooterist was killed by a falling tree. The court agreed with the finding of the trial court that the municipal corporation had been negligent in discharging its duty of care to road users.²⁷

Strict Liability

The rule in *Rylands v Fletcher*²⁸ holds a person *strictly liable* when he brings or accumulates on his land something likely to cause harm if it escapes, and damage arises as a natural consequence of its escape. But 'strict' liability is subject to a number of exceptions that considerably reduce the scope of its operation. Exceptions that have been recognized are: (1) an act of God (natural disasters such as an earthquake or flood); (2) the act of a third party (e.g., sabotage); (3) the plaintiff's own fault; (4) the plaintiff's consent; (5) the natural use of land by the defendant (i.e., strict liability applies to a non-natural user of land); and (6) statutory authority.

Absolute Liability

With the expansion of chemical-based industries in India, increasing number of enterprises store and use hazardous substances. These activities are not banned because they have great social utility (e.g., the manufacture of fertilisers and pesticides). Traditionally, the doctrine of strict liability was considered adequate to regulate such hazardous enterprises. The doctrine allows for the growth of hazardous industries, while ensuring that such enterprises will bear the burden of the damage they cause

²⁶ *Rajkot Municipal Corporation v Manjulaben Jayantilal Nakum* 1997 (9) SCC 552, 601.

²⁷ *Municipal Corporation of Delhi v Sushila Devi* AIR 1999 SC 1929, 1933.

²⁸ *Supra* note 23. For a discussion on 'strict liability' and the *Rylands*' rule see *Jay Laxmi Salt Works (P) Ltd. v State of Gujarat* 1994 (4) SCC 1.

when a hazardous substance escapes. Shortly after the Bhopal gas leak tragedy of 1984, the traditional doctrine was replaced by the rule of 'absolute' liability, a standard *stricter* than strict liability. Absolute liability was first articulated by the Supreme Court and has since been adopted by Parliament.

The genesis of absolute liability was the *Shriram Gas Leak Case*²⁹ which was decided by the Supreme Court in December 1986. The case originated in a writ petition filed in the Supreme Court by the environmentalist and lawyer, M.C. Mehta as a public interest litigation. The petition sought to close and relocate Shriram's caustic chlorine and sulphuric acid plants which were located in a thickly populated part of Delhi. Shortly after Mehta filed this petition, on 4 December 1985 oleum leaked from Shriram's sulphuric acid plant causing widespread panic in the surrounding community.

Chief Justice Bhagwati, who presided over the Supreme Court bench, was concerned for the safety of Delhi's citizens. Moreover, the Chief Justice saw in the oleum leak a way of influencing the pending and far more important *Bhopal Gas Leak Case*. In the first reported order in *Shriram*, the Chief Justice observed that the principles and norms for determining the liability of large enterprises engaged in the manufacture and sale of hazardous products were 'questions of the greatest importance particularly since, following upon the leakage of MIC gas from the Union Carbide Plant in Bhopal, lawyers, judges and jurists are considerably exercised as to what controls, whether by way of relocation or by way of installation of adequate safety devices, need to be imposed upon [hazardous industries], what is the extent of liability of such corporations and what remedies can be devised for enforcing such liability with a view to securing payment of damages to the person affected by such leakage of liquid or gas.'³⁰

Union Carbide hinted at a 'sabotage theory' to shield itself from the claims of the Bhopal victims. It was suggested that a disgruntled employee working in the pesticide factory owned by Carbide's Indian subsidiary may have triggered the escape of the gas. Such a theory afforded a defense under the rule of strict liability laid down in *Rylands v Fletcher*.³¹ But any faith Union Carbide may have reposed in the sabotage theory was soon shaken by Chief Justice Bhagwati's rejection of the *Rylands*' rule in situations involving hazardous industries. In his last judgment before retirement, Chief Justice Bhagwati spoke for the court:

We are of the view that an enterprise which is engaged in a hazardous or inherently dangerous industry which poses a potential threat to the health and safety of the persons working in the factory and residing in the surrounding areas owes an absolute and non-delegable duty to the community to ensure that no harm results to anyone on account of hazardous or inherently dangerous

²⁹ *M.C. Mehta v Union of India* AIR 1987 SC 1086

³⁰ *M.C. Mehta v Union of India* AIR 1987 SC 965

³¹ *Supra* note 23

nature of the activity which it has undertaken. ... We would therefore hold that where an enterprise is engaged in a hazardous or inherently dangerous activity and harm results to anyone on account of an accident in the operation of such hazardous or inherently dangerous activity resulting, for example, in the escape of toxic gas the enterprise is strictly and absolutely liable to compensate all those who are affected by the accident and *such liability is not subject to any of the exceptions* which operate vis-a-vis the tortious principle of strict liability under the rule in *Rylands v Fletcher*.³²

The absolute liability theory laid down by the Supreme Court in *Shriram* was first applied by the Madhya Pradesh High Court to support its award of interim compensation to the Bhopal victims.³³ In light of *Shriram*, Justice Seth of the High Court described the liability of the enterprise to be 'unquestionable.'

However, soon thereafter the wisdom of the theory was questioned by Chief Justice Ranganath Misra who presided over the proceedings before the Supreme Court for a review of the *Bhopal Case* settlement.³⁴ Chief Justice Misra in his concurring judgment observed that the issue before the *Shriram* court was whether the delinquent company came within the ambit of 'state' under Article 12 of the Constitution so as to be subject to the discipline of Article 21 and to proceedings under Article 32 of the Constitution. Thus, according to the Chief Justice, what was said about the departure from the *Rylands v Fletcher* rule 'was essentially obiter'.³⁵

Justice Venkatachaliah (speaking for Justices K.N. Singh, N.D. Ojha and himself) in the main judgment in the *Bhopal Review* also cast doubt on the absolute liability standard. He implicitly rejected the Madhya Pradesh High Court view that after the no-exception standard of *Shriram*, Carbide's liability was 'unquestionable'. The Supreme Court held that Carbide was entitled to its day in court when its defenses, legal and factual, would have to be tested. In Justice Venkatachaliah's words:

At the same time, it is necessary to remind ourselves that in bestowing a second thought whether the settlement is just, fair and adequate, we should *not* proceed on the premises that the liability of the UCC has been firmly established. It is *yet to be decided* if the matter goes to trial. Indeed, UCC has seriously contested the basis of its alleged liability. ... Every effort should be made to protect the victims from the prospects of a protracted, exhausting and uncertain litigation. While we do not intend to comment on the merits of the claims and of the defenses, factual and legal, arising in the suit, it is fair to

³² Emphasis supplied *Supra* note 29, at 1099

³³ *Union Carbide Corporation v Union of India* Civil Revision No. 26 of 1988, 4 April 1988. This judgment was never implemented in view of the final settlement between the parties

³⁴ *Union Carbide Corporation v Union of India (Bhopal Review)* AIR 1992 SC 248.

³⁵ *Id.* at 261 *Obiter dictum* are words of a judgment unnecessary for the decision of the case

recognise that the suit involves complex questions as to the basis of UCC's liability and assessment of the quantum of compensation in a mass tort action.³⁶

In recognizing Carbide's right to raise and urge defenses the court stepped back from the 'without exception' absolute liability principle declared in *Shriram*.

Meanwhile in January, 1991 Parliament enacted the Public Liability Insurance Act, giving statutory recognition to 'no-fault' liability in small measure. The victims of a hazardous industrial accident were now entitled to compensation at prescribed levels, without proof of negligence. The maximum compensation under the Act on a 'no-fault' basis however, is *limited* to Rs. 25,000; although the right of a victim to claim larger damages is expressly reserved. To safeguard the interest of victims, the law requires all hazardous enterprises to obtain sufficient insurance cover.

The application of absolute liability was extended *without limitation* by the National Environment Tribunal Act of 1995 to all cases where death or injury to a person (other than a workman) or damage to any property or the environment result from an accident involving a hazardous substance. The 'owner', who is defined to mean a person who owns or has control over the handling of any hazardous substance at the time of the accident, is liable to compensate the victims on a 'no-fault' basis. Applications for compensation may be made to the tribunal established under the Act. The heads under which compensation may be claimed are set out in the schedule to the Act and in addition to the omnibus entry 'any other claim arising out of or connected with any activity of handling hazardous substances', they include death; injury; medical expenses; damage to private property, expenses incurred by government authorities in providing relief and rehabilitation; loss or harm to animals, crops, trees and orchards; and loss of business or of employment. Although the law was enacted in June, 1995, it was not in force, at the time of writing this chapter.

In the *Bichhri Case* excerpted below, a Supreme Court bench of two Judges grappled with the seemingly divergent views expressed by the five-judge constitution benches in the *Shriram* and *Bhopal Review* cases. While the judges may not be faulted for preferring the *Shriram* dictum, are there any errors that weaken the force of the reasoning?

INDIAN COUNCIL FOR ENVIRO-LEGAL ACTION v UNION OF INDIA

AIR 1996 SC 1446

B P JEEVAN REDDY, J

+ + +

Bichhri is a small village in Udaipur District of Rajasthan. To its north is a major industrial establishment, Hindustan Zinc Limited, a public sector concern. That did not affect Bichhri. Its woes began somewhere in 1987 when the fourth respondent

³⁶ Emphasis supplied. *Id* at 306

herein, Hindustan Agro Chemicals Limited started producing certain chemicals like Oleum (said to be concentrated form of sulphuric acid) and Single Super Phosphate. The real calamity occurred when a sister concern, Silver Chemicals (Respondent 5), commenced production of 'H' acid in a plant located within the same complex. 'H' acid was meant for export exclusively. Its manufacture gives rise to enormous quantities of highly toxic effluents—in particular, iron-based and gypsum-based sludge—which if not properly treated, pose grave threat to Mother Earth. It poisons the earth, the water and everything that comes in contact with it. Jyoti Chemicals (Respondent 8) is another unit established to produce 'H' acid besides some other chemicals. Respondents 6 and 7 were established to produce fertilizers and a few other products.

All the units/factories of Respondents 4 to 8 are situated in the same complex and are controlled by the same group of individuals. All the units are what may be called 'chemical industries'. The complex is located within the limits of Bichhri village.

Because of the pernicious wastes emerging from the production of 'H' acid, its manufacture is stated to have been banned in the western countries. But the need of 'H' acid continues in the West. That need is catered to by the industries like the Silver Chemicals and Jyoti Chemicals in this part of the world. (A few other units producing 'H' acid have been established in Gujarat, as would be evident from the decision of the Gujarat High Court in *Pravinbhai Jashbhai Patel v State of Gujarat*, a decision rendered by one of us, B.N. Kirpal, J. as the Chief Justice of that court.) Silver Chemicals is stated to have produced 375 MT of 'H' acid. The quantity of 'H' acid produced by Jyoti Chemicals is not known. It says that it produced only 20 MT as trial production, and no more. Whatever quantity these two units may have produced, it has given birth to about 2400–2500 MT of highly toxic sludge (iron-based sludge and gypsum-based sludge) besides other pollutants. Since the toxic untreated waste waters were allowed to flow out freely and because the untreated toxic sludge was thrown in the open in and around the complex, the toxic substances have percolated deep into the bowels of the earth polluting the aquifers and subterranean supply of water. The water in the wells and streams has turned dark and dirty rendering it unfit for human consumption. It has become unfit for cattle to drink and for irrigating land. The soil has become polluted rendering it unfit for cultivation, the mainstay of the villagers. The resulting misery to the villagers needs no emphasis. It spread disease, death and disaster in the village and the surrounding areas. This sudden degradation of earth and water had an echo in Parliament too. An Hon'ble Minister said, action was being taken, but nothing meaningful was done on the spot. The villagers then rose in virtual revolt leading to the imposition of Section 144 CrPC by the District Magistrate in the area and the closure of the Silver Chemicals in January 1989. It is averred by the respondents that both the units, Silver Chemicals and Jyoti Chemicals have stopped manufacturing 'H' acid since January 1989 and are closed. We may assume it to be so. Yet the consequences of their action remain—the sludge, the long-lasting damage to earth, to underground water, to human beings, to cattle and the village economy. It is with these consequences that we are to contend with in this writ petition.

The present social action litigation was initiated in August 1989 complaining precisely of the above situation and requesting for appropriate remedial action. To the writ petition, the petitioner enclosed a number of photographs illustrating the enormous

damage done to water, cattle, plants and to the area in general. A good amount of technical data and other material was also produced supporting the averments in the writ petition.

[The judgment considers the pleadings, interim orders passed by the court and the submission of the parties before turning to the applicable tort law principle.]

[W]e are of the opinion that any principle evolved in this behalf should be simple, practical and suited to the conditions obtaining in this country. We are convinced that the law stated by this court in *Oleum Gas Leak Case (M.C. Mehta v Union of India AIR 1986 SC 1086)* is by far the more appropriate one—apart from the fact that it is binding upon us. (We have disagreed with the view that the law stated in the said decision is *obiter*). According to this rule, once the activity carried on is hazardous or inherently dangerous, the person carrying on such activity is liable to make good the loss caused to any other person by his activity *irrespective* of the fact whether he took reasonable care while carrying on his activity. The rule is premised upon the very nature of the activity carried on. In the words of the Constitution Bench, such an activity:

... can be tolerated only on condition that the enterprise engaged in such hazardous or inherently dangerous activity indemnifies all those who suffer on account of the carrying on of such hazardous or inherently dangerous activity regardless of whether it is carried on carefully or not

The Constitution Bench has also assigned the reason for stating the law in the said terms. It is that the enterprise (carrying on the hazardous or inherently dangerous activity) alone has the resource to discover and guard against hazards or dangers—and not the person affected *and* the practical difficulty (on the part of the affected person) in establishing the absence of reasonable care or that the damage to him was foreseeable by the enterprise

Once the law in *Oleum Gas Leak case* is held to be the law applicable, it follows, in the light of our findings recorded here in before, that Respondents 4 to 8 are absolutely liable to compensate for the harm caused by them to the villagers in the affected area, to the soil and to the underground water and hence, they are bound to take all necessary measures to remove the sludge and other pollutants lying in the affected area . and also to defray the cost of the remedial measures required to restore the soil and the underground water sources. Sections 3 and 4 of Environment (Protection) Act confers upon the Central Government the power to give directions of the above nature and to the above effect. Levy of costs required for carrying out remedial measures is implicit in Sections 3 and 4 which are couched in very wide and expansive language. Appropriate directions can be given by this court to the Central Government to invoke and exercise those powers with such modulations as are called for in the facts and circumstances of this case.

NOTES AND QUESTIONS

1. Although the Public Liability Insurance Act of 1991 and the National Environment Tribunal Act of 1995 ('NETA') were on the statute book when the *Bichhri Case* was decided, the court makes no reference to these laws. Is the judgment *per incuriam*? Do these provisions strengthen the Supreme Court's reasoning or do they militate against the opinion?

2. NETA was not in force on the date of judgment in *Bichhri*. Possibly, in the assessment of the Central Government which was responsible for bringing the law into force, the time was not ripe for introducing the new standard. Should this have persuaded the court to reject the absolute liability standard?

3. Confronted by the strong language of Chief Justice Misra in the *Bhopal Review Case* where he finds the *Shriram* 'absolute liability' standard to be in the nature of a passing observation and therefore not binding, the *Bichhri* court disagrees with the Misra opinion and notes 'the majority judgment delivered by M.N. Venkatachaliah, J. ... has not expressed any opinion on the issue.'

4. Do the vacillations on the question of absolute liability—*Shriram*, *Bhopal Review*, *Bichhri*—suggest a preference for expediency over principle? Bear in mind the broad objective of the court in each case.

5. In its operative order, the court relegated the *Bichhri* villagers to the remedy of individual suits for compensation. Should not the court, in exercise of its expansive jurisdiction under Article 21, have awarded compensation in the writ proceedings? What are the pitfalls in adopting a summary procedure?

6. In a part of the judgment not excerpted above, the Supreme Court surveyed developments to the *Rylands* rule. In England, the rule continues to afford an independent head for claiming damages whereas in Australia the rule is absorbed in the tort of negligence.

7. In the *Vellore Case*,³⁷ the Supreme Court bench presided over by Justice Kuldip Singh referred to the absolute liability principle in the context of pollution caused by the discharge of untreated effluent by industries in Tamil Nadu. This case did not involve an industrial accident nor did it concern the escape or discharge of a toxic substance—which constitute the class of cases to which 'absolute liability' is applied. The *Vellore* court, however, rolled together the 'polluter pays principle' (applicable to *non-toxic* pollution cases) with the absolute liability standard (applicable to *toxic* torts). 'The "Polluter Pays Principle" as interpreted by this court [in *Bichhri*] means that the absolute liability for harm to the environment extends not only to compensate the victims of pollution but also the cost of restoring the environmental degradation.'³⁸ Is the extension of 'absolute liability' to non-toxic pollution cases justified? On what principle?

³⁷ *Vellore Citizens Welfare Form v Union of India* AIR 1996 SC 2715.

³⁸ *Id.* at 2721. Also see *M. C. Mehta v Union of India (Taj Trapezium)* AIR 1997 SC 734.

B. PUBLIC NUISANCE

A public nuisance may be broadly defined as an unreasonable interference with a general right of the public. Because a public nuisance interferes with a public right, it is not tied to interference with the enjoyment and use of property; and remedies against a public nuisance are, therefore, available to every citizen.

Section 268 of the Indian Penal Code of 1860 defines the offence of a public nuisance:

A person is guilty of a public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right.

The section also provides that '[a] common nuisance is not excused on the ground that it causes some convenience or advantage.'

Persons who conduct 'offensive' trades and thereby pollute the air, or cause loud and continuous noises that affect the health and comfort of those dwelling in the neighbourhood are liable to prosecution for causing a public nuisance. The penalty for this offence is merely Rs.200, which makes it pointless for a citizen to initiate a prosecution under section 268 by a complaint to a magistrate.³⁹

A much better course would be to utilize the remedies provided in sections 133 to 144 of the Code of Criminal Procedure of 1973. Section 133 provides an independent, speedy and summary remedy against public nuisance.⁴⁰ The section empowers a magistrate to pass a 'conditional order' for the removal of a public nuisance within a fixed period of time.⁴¹ The magistrate may act on information received from a police report or any other source including a complaint made by a citizen.⁴² Although the magistrate's power to issue a conditional order under section 133 appears discretionary, the Supreme Court has interpreted the language to be

³⁹ A complaint may be made under section 190 of the Code of Criminal Procedure of 1973

⁴⁰ A magistrate has no jurisdiction under section 133 to entertain private disputes between neighbours. For example, a flour mill that only disturbed a neighbouring family but no other residents in the locality, constituted a private nuisance actionable in tort and not a public nuisance. *Dhareppa Ballapa Gondai v Sub-Divisional Magistrate* 1984 (2) KAR L J 444, 449-450

⁴¹ The order is 'conditional' because it is only a preliminary order. The order may be made absolute (final) only after giving the opposing party sufficient opportunity to be heard. The Kerala High Court has held that an order closing a polluting factory is illegal where no conditional order was first issued. *Vallikadar Assanar v P K Moideenkutty* 1999 CrI L J 4228

⁴² For example, in *K Ramachandra Mayya v District Magistrate* 1985 (2) KAR L J 289, the High Court approved of the magistrate's order shutting down a stone quarry, where the magistrate acted on complaints from neighbouring residents that the blasting of rocks at the quarry caused damage from flying stone chips

mandatory.⁴³ Once a magistrate has before him evidence of a public nuisance, he must order removal of the nuisance, within a fixed time.⁴⁴

The person directed to remove the nuisance (the opposite party) must either comply with the order or show cause against it. Where he or she opposes the order, the court must initiate an inquiry and call on the parties to adduce evidence. Moreover, to assist the inquiry, the magistrate may direct a local investigation to ascertain facts or summon expert witnesses. If measures are necessary to prevent imminent danger or serious injury to the public, the court may issue an injunction pending an inquiry. When a person fails to appear and show cause, or when the court is satisfied on the evidence adduced that the initial order was proper, the order is made final. Otherwise it is vacated.

Failure to comply with a final order within the specified time attracts the penalty provided by section 188 of the Indian Penal Code for disobedience of an order of a public servant. Further, the court may carry out the order and recover costs from the defaulter. A magistrate is also empowered to prohibit repetition or continuance of a public nuisance.

A magistrate, however, may not pass a final order that exceeds the conditional order in scope. For instance, in *Gobind Singh v Shanti Sarup*⁴⁵ the conditional order required a baker to demolish within 10 days an oven and chimney that emitted smoke 'injurious to the health and physical comfort of the people living or working in the proximity.' In the final order, the magistrate went beyond the conditional order and completely prohibited the baker from carrying on his trade. The Supreme Court found the final order far too broad and narrowed its scope to require the baker to demolish the offending oven and chimney within a month. The baker, however, was allowed to practice his trade.

Are the powers of a magistrate to deal with pollution under section 133 curtailed by the Air (Prevention and Control of Pollution) Act of 1981 or the Water (Prevention and Control of Pollution) Act of 1974? In *Nagarjuna Paper Mills Ltd. v Sub-Divisional Magistrate and Divisional Officer, Sangareddy*,⁴⁶ the Andhra Pradesh High Court considered a petition from a magistrate's conditional order shutting down a paper mill that had failed to take adequate pollution control measures. The mill challenged the order, claiming that the state pollution control board had exclusive power to regulate air and water pollution. Rejecting this argument, the High Court upheld the magistrate's power to regulate pollution by restraining a public nuisance. This view was also adopted by a division bench of the Kerala High Court in *Krishna Panicker v Appukuttan Nair*,⁴⁷ overruling a contrary opinion expressed in *Tata Tea Ltd. v State of Kerala*.⁴⁸

⁴³ *Municipal Council, Ratlam v Vardhichand* AIR 1980 SC 1622

⁴⁴ In urgent cases, a magistrate may direct the *immediate* removal of a nuisance. *Supra* note 42 at 295. Also see section 145 of the Code of Criminal Procedure of 1973.

⁴⁵ AIR 1979 SC 143.

⁴⁶ 1987 CRI.L.J.2071.

⁴⁷ 1993 (1) KER. L T. 771.

⁴⁸ 1984 KER L T 645.

In *Municipal Council, Ratlam v Vardhichand*, excerpted below, the Supreme Court for the first time treated an environmental problem differently from an ordinary tort or public nuisance. Environmental pollution in *Ratlam* affected a large community of poor people and arose from a combination of diffuse causes: private polluters, slack and under-financed enforcement agencies, and haphazard town planning. In view of these peculiarities, the court tailored the existing public nuisance remedy to provide relief.

The judgment explicitly recognizes the impact of a deteriorating urban environment on the poor, and links the provision of basic public health facilities to both human rights and the directive principles in the Constitution. The court commends an activist judiciary to compel municipalities to provide proper sanitation and drainage, thereby enabling the poor to live with dignity.

Although the language of Justice Krishna Iyer is flowery in parts, the judgment is notable for the principles it enunciates. Notice the court's interpretation of the nature of a magistrate's power under section 133; the court's response to the municipality's plea of budgetary constraints; and the relief granted by the court.

MUNICIPAL COUNCIL, RATLAM v VARDHICHAND

AIR 1980 SC 1622

KRISHNA IYER, J.:

The key question we have to answer is whether by affirmative action a court can compel a statutory body to carry out its duty to the community by constructing sanitation facilities at great cost and on a time-bound basis. At issue is the coming of age of that branch of public law bearing on community actions and the court's power to force public bodies under public duties to implement specific plans in response to public grievances.

[The court described conditions of filth and stench resulting from the absence of public sanitation facilities or drains.]

The Sub-Divisional Magistrate, Ratlam, was moved to take action under S 133 Cr. P.C. to abate the nuisance by ordering the municipality to construct drain pipes with flow of water to wash the filth and stop the stench. The Magistrate found the facts proved, made the direction sought and scared by the prospect of prosecution under Section 188 I.P.C. for violation of the order under S. 133 Cr. P.C., the municipality rushed from court to court till, at last, years after, it reached this court as the last refuge of lost causes. Had the municipal council and its executive officers spent half this litigative zeal on cleaning up the street and constructing the drains by rousing the people's scrandan resources and laying out the city's limited financial resources, the people's needs might have been largely met long ago.

The Magistrate, whose activist application of S 133, Cr. P.C. for the larger purpose of making the Ratlam municipal body do its duty and abate the nuisance by affirmative action, has our appreciation. [The court reproduced lengthy extracts from the Magistrate's order describing the extremely unhygienic and insanitary conditions in

a locality of Ratlam and the unsuccessful efforts of tormented residents to activate the municipality.]

The Magistrate held in the end:

Thus after perusing the evidence I come to this conclusion and after perusing the applications submitted by the persons residing on the New Road area from time to time to draw the attention of the non-applicants to remove the nuisance, the non-applicants have taken no steps whatsoever to remove all these public nuisances.

He issued the following order which was wrongly found unjustified by the Sessions court, but rightly upheld by the High Court:

Therefore, for the health and convenience of the people residing in that particular area all the nuisance must be removed and for that the following order is hereby passed:

(1) The Town Improvement Trust with the help of Municipal Council must prepare a permanent plan to make the proper flow in the said Nallah which is flowing in between Shastri Colony and New Road. Both the non-applicants must prepare the plan within six months and they must take proper action to give it a concrete form.

(2) According to para 13 a few places are described which are either having the same drains and the other area is having no drain and due to this the water stinks there; so the Municipal Council and the Town Improvement Trust must construct the proper drainage system and within their own premises where there is no drain it must be constructed immediately and all this work should be completed within six months.

(3) The Municipal Council should construct drains from the jail to the bridge behind the southern side of the houses so that the water flowing from the septic tanks and the other water flowing outside the residential houses may be channelised and it may stop stinking and it should have a proper flow so that the water may go easily towards the main Nallah. All these drains should be constructed completely within six months by the Municipal Council

(4) The places where the pits are in existence the same should be covered with mud so that the water may not accumulate in those pits and it may not breed mosquitoes. The Municipal Council must complete this work within two months.

A notice under Section 141 of the Criminal Procedure Code (Old Code) may be issued to the non-applicants Nos. 1 and 2 so that all the works may be carried out within the stipulated period. Case is hereby finalised.

* * *

We proceed on the footing, as we indicated even when leave to appeal was sought, that the malignant facts of municipal callousness to public health and sanitation, held proved by the Magistrate, are true. What are the legal pleas to absolve

the municipality from the court's directive under S. 133, Cr. P.C.? [The court set out section 133.]

So the guns of Section 133 go into action wherever there is public nuisance. The public power of the magistrate under the Code is a public duty to the members of the public who are victims of the nuisance, and so he shall exercise it when the jurisdictional facts are present as here. * * * Discretion becomes a duty when the beneficiary brings home the circumstances for its benign exercise.

If the order is defied or ignored, Section 188 I.P.C. come into penal play:

188. Whoever, knowing that, by an order promulgated by a public servant lawfully empowered to promulgate such order, he is directed to abstain from a certain act, or to take certain order with certain property in his possession or under his management, disobeys such direction and if such disobedience causes or tends to cause danger to human life, health or safety, or causes or tends to cause a riot or affray, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

There is no difficulty in locating who has the obligation to abate the public nuisance caused by the absence of primary sanitary facilities [The court set out section 123 of the M.P. Municipalities Act of 1961.]

The statutory setting being thus plain, the municipality cannot extricate itself from its responsibility. Its plea is not that the facts are wrong but that the law is not right because the municipal funds being insufficient it cannot carry out the duties under S. 123 of the Act. This 'alibi' made us issue notice to the State which is now represented by counsel .. before us. The plea of the municipality that notwithstanding the public nuisance financial inability validly exonerates it from statutory liability has no juridical basis. The Criminal Procedure Code operates against statutory bodies and others regardless of the cash in their coffers, even as human rights under Part III of the Constitution have to be respected by the State regardless of budgetary provision. Likewise, S. 123 of the Act has no saving clause when the municipal council is penniless. Otherwise a profligate statutory body or pachydermic governmental agency may legally defy duties under the law by urging in self-defence a self-created bankruptcy or perverted expenditure budget. That cannot be

Section 133, Cr P.C. is categoric, although reads discretionary. Judicial discretion when facts for its exercise are present, has a mandatory import. Therefore, when the Sub-Divisional Magistrate, Ratlam, has, before him, information and evidence, which disclose the existence of a public nuisance and on the materials placed, he considers that such unlawful obstruction or nuisance should be removed from any public place which may be lawfully used by the public, he shall act. Thus, his judicial power shall, passing through the procedural barrel, fire upon the obstruction or nuisance, triggered by the jurisdictional facts. The Magistrate's responsibility under S. 133 Cr P.C. is to order removal of such nuisance with a time to be fixed in the order. This is a public duty implicit in the public power to be exercised on behalf of the public and pursuant to a public proceeding. Failure to comply with the direction will be visited with a

punishment contemplated by S. 188, I.P.C. Therefore, the Municipal Commissioner or other executive authority bound by the order under S. 133, Cr. P.C. shall obey the direction because disobedience, if it causes obstruction or annoyance or injury to any persons lawfully pursuing their employment, shall be punished with simple imprisonment or fine as prescribed in the Section. The offence is aggravated if the disobedience tends to cause danger to human health or safety. The imperative tone of S. 133, Cr. P.C. read with the punitive temper of S. 188 I.P.C. makes the prohibitory act a mandatory duty.

* * *

We agree with the High Court in rejecting the plea that the time specified in the order is unworkable. The learned judges have rightly said:

It is unfortunate that such contentions are raised in 1979 when these proceedings have been pending since 1972. If in seven years' time the Municipal Council intended to remedy such a small matter there would have been no difficulty at all. Apart from it, so far as the directions are concerned, the learned Magistrate, it appears, was reasonable. So far as direction No. I is concerned, the learned Magistrate only expected the Municipal Council and the Town Improvement Trust to evolve a plan and to start planning about it within six months: the learned Magistrate has rightly not fixed the time limit within which that plan will be completed. Nothing more reasonable could be said about direction No. I.

A strange plea was put forward by the Municipal Council before the High Court which was justly repelled, viz., that the owners of houses had gone to that locality on their own choice with eyes open and, therefore, could not complain if human excreta was flowing, dirt was stinking, mosquitoes were multiplying and health was held hostage. A public body constituted for the principal statutory duty of ensuring sanitation and health cannot outrage the court by such an ugly plea. Luckily, no such contention was advanced before us. The request for further time for implementation of the magistrate's order was turned down by the High Court since no specific time-limit was accepted by the municipality for the fulfilment of the directions. A doleful statement about the financial difficulties of the municipality and the assurance that construction of drains would be taken up as soon as possible had no meaning. The High Court observed:

Such assurances, it appears, are of no avail as unfortunately these proceedings for petty little things like clearing of dirty water, closing the pits and repairing of drains have taken more than seven years and if these seven years are not sufficient to do the needful, one could understand that by granting some more time it could not be done.

The High Court was also right in rejecting the Additional Sessions Judge's recommendation to quash the Magistrate's order on the impression that Section 133, Cr. P.C. did not provide for enforcement of civic rights. Wherever there is a public

nuisance, the presence of S. 133, Cr. P.C. must be felt and any contrary opinion is contrary to the law. In short, we have no hesitation in upholding the High Court's view of the law and affirmation of the Magistrate's order.

* * *

Three proposals have been put forward before us in regard to the estimated cost of the scheme as directed by the Magistrate. The Magistrate had not adverted to the actual cost of the scheme nor the reasonable time that would be taken to execute it. As stated earlier, it is necessary to ascertain how far the scheme is feasible and how heavy the cost is likely to be. The court must go further to frame a scheme and then fix time-limits and even oversee the actual execution of the scheme in compliance with the court's order.

* * *

In our view, what is important is to see that the worst aspects of the insanitary conditions are eliminated, not that a showy scheme beyond the means of the municipality must be undertaken and half done. From that angle we approve scheme 'C' which costs only around Rs.6 lakhs. We fix a time limit of one year for completing execution of the work according to that scheme. We further direct that the work shall begin within two months from today and the Magistrate shall inspect the progress of the work every three months broadly to be satisfied that the order is being implemented bona fide. Breaches will be visited with the penalty of S. 188, I.P.C.

We make the further supplementary directions which we specifically enjoin upon the municipal authority and the State Government to carry out

1. We direct the Ratlam Municipal Council (RI) to take immediate action, within its statutory powers, to stop the effluents from the Alcohol Plant flowing into the street. The State Government also shall take action to stop the pollution. The Sub-Divisional Magistrate will also use his power under S. 133, I.P.C., to abate the nuisance so caused. Industries cannot make profit at the expense of public health. Why has the Magistrate not pursued this aspect?

2. The Municipal Council shall, within six months from today, construct a sufficient number of public latrines for use by men and women separately, provide water supply and scavenging service morning and evening so as to ensure sanitation. The health officer of the Municipality will furnish a report, at the end of the six-monthly term, that the work has been completed. We need hardly say that the local people will be trained in using and keeping these toilets in clean condition. Conscious co-operation of the consumers is too important to be neglected by representative bodies.

3. The State Government will give special instructions to the Malaria Eradication Wing to stop mosquito breeding in Ward 12. The Sub-Divisional Magistrate will issue directions to the officer concerned to file a report before him to the effect that the work has been done in reasonable time.

4. The municipality will not merely construct the drains but also fill up cesspools and other pits of filth and use its sanitary staff to keep the place free from

accumulations of filth. After all, what it lays out on prophylactic sanitation is a gain on its hospital budget.

5. We have no hesitation in holding that if these directions are not complied with the Sub-Divisional Magistrate will prosecute the officers responsible. Indeed, this court will also consider action to punish for contempt in case of report by the Sub-Divisional Magistrate of willful breach by any officer.

We are sure that the State Government will make available by way of loans or grants sufficient financial aid to the Ratlam Municipality to enable it to fulfil its obligations under this order. The State will realize that Art. 47 makes it a paramount principle of governance that steps are taken for the improvement of public health as amongst its primary duties. The municipality will also slim its budget on low priority items and elitist projects to use the savings on sanitation and public health. It is not our intention that the ward which has woken up to its rights alone need be afforded these elementary facilities. We expect all the wards to be benefited without litigation. The pressure of the judicial process, expensive and dilatory, is neither necessary nor desirable if responsible bodies are responsive to duties.

* * *

We dismiss this petition subject to the earlier mentioned modifications.

Petition dismissed.

NOTES AND QUESTIONS

1. The *Ratlam* judgment illustrates how an activist court can transform seemingly dull legislation into a powerful mandate to protect the environment. The judgment builds on two key interpretations. First, the court held that budgetary constraints did not absolve a municipality from performing its statutory obligation to provide sanitation facilities. Second, the court interpreted section 133 to impose a *mandatory* duty on a magistrate to remove a public nuisance *whenever* one exists. Reading these obligations together, the court supported the magistrate's order to compel the municipality to implement a sanitation scheme within a definite time frame.

Despite its vast potential, the *Ratlam* judgment remains under-used. Citizens' petitions to stir indolent municipalities into action are still rare. In another respect, however, the lead provided by *Ratlam* has been widely followed: Judicial activism now characterises the outcome of most environmental litigation.

2. In its judgment, the court condemned as an 'outrage' the municipality's plea that the affected persons came to the nuisance. Does the court's dictum also preclude a *private* respondent from raising this plea in a public nuisance case?

3. To ensure the implementations of its directions, the Supreme Court relied on a number of methods: Judicial oversight, deadlines, the threat of prosecution under section 188 of the Indian Penal Code, and the threat to use its power to punish

for contempt (the disobedience of a court order) But a critical weakness remained. Where were the funds to finance the sanitation scheme to come from? The judgment merely expressed the hope that the state government would assist the municipality, and required the municipality to slim its budget on 'low priority items and elitist projects'. What could the court have done if the state government had declined to grant any financial aid? Could the court have ordered an appropriation of funds?

4. The primary duty of a municipality to provide sanitation may also be enforced through a writ petition. Compare the *Ratlam* judgment with the Rajasthan High Court's order in *Rampal's Case*, which is excerpted later in this chapter

In *P. C. Cheriau v State of Kerala*, excerpted below, the Kerala High Court considered whether carbon particles ('carbon black') emitted from two rubber factories amounted to an actionable public nuisance under section 133. Note the court's willingness to take judicial notice of the health effects of air pollution and the court's exercise in balancing the community interest against the interest of the workers keeping their jobs.

P.C. CHERIAN v STATE OF KERALA

1981 KER L 1113

JANAKI AMMA, J

* * *

Although the petitioners denied that their factories were responsible for the deposit of carbon black in the neighbourhood, there are documents produced which clearly make out a case of pollution at their instance. Ext. A3 in M.C. No. 4 of 1978 is a letter written by the Production Manager of the Padinjarekkara Factory to the Parish priest, of the Veroor Catholic Church. In that letter the manager undertook to do all that was possible for the prevention of carbon black flying and invited from the priest suggestions other than those involving stoppage of work. Ext. A4 is the proceedings of a conference convened by the concerned Ministers which was attended by the representatives of the two factories meant for the stoppage of pollution due to black carbon. There is also evidence that the petitioners undertook to defray the expenses incurred by the St. Joseph's Church for removal of the carbon deposits on the walls of the Church. In the face of the above evidence the findings in the two cases that carbon black was emanating from the factories of the petitioners contaminating the atmosphere and was causing deposits of carbon in the neighbourhood do not call for interference. That the devices stated to have been adopted by the two factories to prevent black carbon from escaping in the atmosphere are grossly inadequate is also established beyond doubt.

The further question is whether there is weight in the contention that carbon has no toxic effect on human body and dissemination of carbon is not a public nuisance. It is sheer commonsense that if the atmosphere gets contaminated with

carbon particles, visible or invisible, there is every risk that they would get themselves deposited on the bodies, and get into the respiratory organs of the people residing in the neighbourhood. The evidence is that the particles get deposited on the wearing apparel of the people and the walls of buildings, not to mention the other umpteen articles which may get affected by the deposit. This is therefore an outstanding instance of air pollution which has become a menace to people in the industrial cities. The term air pollution according to the definition adopted by the W. H. O., is limited to the situations in which the outdoor ambient atmosphere contains materials in concentrations which are harmful to man and his environment. 'Air pollution has been shown to increase the incidences of emphysema, bronchitis, pneumonia and asthma. It is suspected of being an ancillary cause of lung cancer and arteriosclerosis. Air pollution obscures vision, damages buildings, destroys crops and alters weather' (See Environmental Legislation by Williams and Hurley page 34). The Supreme Court remarked in *Ratlam Municipality v Vardhichand* (AIR 1980 SC 1622):

Public nuisance, because of pollutants being discharged by big factories to the detriment of the poorer sections, is a challenge to the social justice component of the rule of law.

To hold that the deposit of carbon black in the instant cases is a public nuisance it need not necessarily be a hazard to the health of the people. The word public nuisance is not defined in the Code; but S. 2(y) of the Code states that words and expressions not defined therein but defined in the Indian Penal Code have meanings respectively assigned to them in that Code. [Section] 268 of the Indian Penal Code defines public nuisance as follows:

Public nuisance: A person is guilty of a public nuisance, who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right.

Thus, under the definition any act which causes annoyance to the public is a public nuisance. There is no scope for doubt that carbon black on the clothes of the residents which make them soiled, and their deposit on food articles would cause annoyance to their owners. The manner in which the work in the factories of the petitioners was being conducted amounted to a public nuisance and was also injurious to the health and physical comfort of the community.

An argument was advanced at the time of hearing that there is no evidence as to which of the two factories involved was responsible for the emanation of carbon and the court only proceeded on the footing that it was the carbon black from the two factories together that was causing nuisance. This does not appear to be correct. The court has entered separate findings in the two cases that the working of the concerned factory, viz., the service mixing in large quantities of carbon for supplying major tyre factories is injurious to the physical comfort of the community.

The argument based on the decision in *Ram Autar v State of UP* (AIR 1962 SC 1794), that the stoppage of work of the factories would deprive the workers there of

their means of livelihood has no application in the cases before us because the danger that the general public has to face by the service mixing of carbon without adequate equipments to prevent dissemination of carbon outweighs the advantage in the form of jobs for a few persons and that too under threat of hazards to their own health.

We have no hesitation in holding that the magistrate was justified in invoking his powers under S. 133 of the Code, in initiating action against the petitioners and in directing them to stop the service mixing of carbon in their factories. We, however, make it clear that it is open to the petitioners to restart the work of service mixing of carbon after introducing gadgets or equipments which would prevent dissemination of carbon black into the atmosphere. In order to avoid further trouble and a repetition of similar action against them they may choose the equipments in consultation with qualified experts in the field of environmental hygiene and to the satisfaction of the authorities concerned.

The Criminal Revision Petitions are dismissed with the above directions.

NOTES AND QUESTIONS

1. The court weighed the danger to the general public from the continued 'service mixing of carbon' against the loss of jobs for a few workers, and found that the former outweighs the latter. Is such balancing permissible under section 133? Does the Supreme Court's interpretation in *Rallam* (that section 133 imposes a *mandatory* duty on the magistrate to abate a public nuisance), preclude such a balancing exercise?

2. Although the court held that it was not necessary to establish toxicity before restraining a public nuisance (mere annoyance to the public was enough), it went on to observe that carbon black was, indeed, injurious to the public health. The court's conclusion on the toxicity of carbon black was supported, not by scientific proof, but by 'sheer common sense'. The court reasoned: (a) that carbon particles cause air pollution, (b) that air pollution has been shown to increase the incidences of emphysema, bronchitis, pneumonia and asthma and is suspected of being an ancillary cause of lung cancer and arteriosclerosis, and (c) therefore, carbon particles are hazardous to health. The court's reasoning appears flawed, as it does not follow from (a) and (b) that *every* air pollutant harms health. Was judicial notice of the possible health effects of suspended carbon particles justifiable in this case?

C. THE WRIT JURISDICTION

I. SOURCE OF THE WRIT JURISDICTION

Articles 32 and 226 of the Constitution of India empower the Supreme Court and the High Courts, respectively, to issue directions or orders or writs, including writs of *habeas corpus*, *mandamus*, *prohibition*, *quo warranto* and *certiorari*. Writs of *mandamus*, *certiorari* and *prohibition* are generally resorted to in environmental matters.

The relative speed, simplicity and cheapness of the writ remedy have made it immensely popular with litigants. Ordinarily, the delay between the filing of a writ petition and the granting of a writ is far less than the time required to obtain a decree in a suit;⁴⁹ and in writs there are fewer intervening proceedings between filing and judgment. The filing fee for a writ is nominal compared with the high *ad valorem* court fees⁵⁰ that must be paid in an ordinary civil suit. In addition, the expense of presenting oral evidence is eliminated as facts are set forth in the affidavits of the parties. Further, approaching the highest courts directly for a writ reduces the likelihood of prolonged litigation in subsequent appeals.

The power to issue writs has been borrowed in India from England, where the prerogative writs have been issued for centuries. Prior to the Constitution's adoption, the three High Courts at Calcutta, Madras and Bombay, had the power to issue these writs under the Charter Act of 1861.⁵¹ Other High Courts did not possess this power. The Constituent Assembly, which created India's Constitution, saw these writs as an effective means of enforcing fundamental rights, and consequently conferred on the Supreme Court and all the High Courts the power to issue these writs.⁵²

The Supreme Court has interpreted Article 21, which guarantees the fundamental right to life and personal liberty, to include the right to a wholesome environment.⁵³ Accordingly, a litigant may assert his or her right to a healthful environment against the state, by a writ petition to either the Supreme Court or a High Court.

II. WRITS OF MANDAMUS, PROHIBITION AND CERTIORARI

The writ powers of the Supreme Court and the High Courts under Articles 32 and 226 are not confined to the prerogative writs derived from English law but extend to 'directions or orders or *writs in the nature of* habeas corpus, mandamus, prohibition, quo warranto and certiorari.' The term 'writs in the nature of' widens the court's discretion in granting relief by releasing Indian courts from the procedural technicalities that govern the issue of these writs under English Law.⁵⁴ A court may issue an order in the nature of these writs in all appropriate cases so long as it observes the broad and fundamental principles that govern such writs in English law.⁵⁵ The court may also

⁴⁹ For example, in the Bombay High Court the delay in a writ petition is 6 years compared to over 15 years for a suit.

⁵⁰ Fees related to the value of the suit.

⁵¹ The Indian High Courts Act of 1861 is popularly called the Charter Act. For a discussion on the source of the writ jurisdiction, see the judgment of Madon, J in *Prabodh Verma v State of Uttar Pradesh* AIR 1985 SC 167, 182.

⁵² H. Seervai, *Constitutional Law of India: A Critical Commentary* 1450 (Vol 2, 1993)

⁵³ *Subhash Kumar v State of Bihar* AIR 1991 SC 420; and *Virendra Gaur v State of Haryana* AIR 1995 SC 577

⁵⁴ M Jain & S. Jain, *Principles of Administrative Law* 513 (1986)

⁵⁵ *T C. Basappa v T. Nagappa* AIR 1954 SC 440, 443

issue directions and orders to vindicate the petitioner's rights. The court may grant declaratory relief,⁵⁶ issue an injunction or quash the impugned action without recourse to a specific writ. Indeed, a notable feature of the writ process is the court's flexibility in choosing an appropriate relief.

A court can issue a writ of mandamus to command action by a public authority when an authority is vested with power and wrongfully refuses to exercise it. A mandamus can also be issued to undo what has been done in contravention of a statute. This writ can issue against an administrative, quasi-judicial or judicial authority.⁵⁷

An applicant seeking a mandamus must show that the duty sought to be enforced is a duty of a public nature (i.e., a duty created under the Constitution, a statute or some rule of common law) and that the duty is mandatory and not discretionary in nature. Normally a mandamus does not lie against a private individual, but it might be issued where it is proved that the individual was colluding with a public authority.⁵⁸ Before a mandamus is issued, the court must be satisfied that the petitioner had demanded justice and that the concerned authority had refused the demand.⁵⁹

For instance, a mandamus would lie against a municipality that fails to construct sewers and drains, clean streets and clear garbage. Likewise, a state pollution control board may be compelled to take action against an industry discharging pollutants beyond the permissible level.

Rampal's Case, excerpted below, illustrates the use of the writ process in securing government action to improve the urban environment. It also shows the simplicity of the writ procedure compared with the more cumbersome prosecution of a suit to enforce common law rights.

RAMPAL v STATE OF RAJASTHAN

AIR 1981 RAJ 121

ORDER:

The petitioners are residents of Mundara Mohalla, situated in the town of Mandal in Bhilwara District. Their case is that in Mundara Mohalla, there is a blind lane and a common Chowk in the centre, which is surrounded by the houses of the petitioners and others. The petitioners' grievance is that water of domestic use, including dirty water from the houses of the Mohalla, as also rain water has collected in the chowk and because there is no drain for the discharge of the accumulated water, there is growth of moss and insects and there is possibility of spread of epidemics. The petitioners have relied upon a letter written in this connection by the Medical and Health Officer, Government Hospital, Bhilwara, on 18 June 1979, to the Executive Officer of the Municipal Board, Mandal inviting his attention to the fact that stagnant water, which

⁵⁶ *Kavalappara Kottarathil Kochuni v State of Madras* AIR 1959 SC 725, 732–733

⁵⁷ *M. Jain & S. Jain*, *supra* note 54, at 520.

⁵⁸ *Sohan Lal v Union of India* AIR 1957 SC 529, 532.

⁵⁹ *Saraswati Industrial Syndicate Ltd. v Union of India* AIR 1975 SC 460, 468

has collected in the common chowk of the Mundara Mohalla, has become the breeding place of mosquitoes and insects and may cause the spread of diseases. The Medical and Health Officer in his aforesaid letter expressed the view that immediate steps should be taken for making a permanent arrangement for the disposal of such water as has collected in the chowk and which has caused a nuisance, for the residents of the area. As the Municipal Board has not cared to take any action in the matter, the petitioners have filed a writ of Mandamus praying for a direction to the Municipal Board for removal and discharge of filthy and dirty water and the construction of proper drainage or sewers for the discharge of such water.

Section 98 of the Rajasthan Municipalities Act, 1959 ... falls under Chapter VI which deals with the primary and secondary functions of the Municipal Boards. Amongst the primary duties enumerated in Section 98 of the Act, it has been provided that the Municipal board should make reasonable provisions for cleaning public streets, places and sewers and all spaces not being private property and removing noxious vegetation and removing filth, rubbish or other noxious and offensive matter and constructing drains, sewers, drainage works etc. [The court set out the relevant provisions of Section 98.]

For the proper performance of duties imposed upon the Municipal Boards under Section 98 of the Act, all sewers, drains, privies, water closets, house-gullies and cesspools within the municipality have been placed under the survey and control of the Municipal Boards by the provisions of Section 174 of the Act and under Section 175 of the Act the Boards have been authorized to construct covered sewers and drains and make other constructions in order to carry out any drainage scheme. The boards are also authorised to control the drainage system in respect of private houses under Section 176 and the owners of houses and empty buildings and land within the municipality are enjoined to connect their sewers and drains with the municipal drains. Thus, under S. 174 to 187, extensive powers have been given to the Municipal Boards for the purpose of maintaining cleanliness within the municipal area by repairing the existing drains, directing the construction of new drains and controlling the drainage system. The Municipal Boards are thus primarily responsible for maintaining sanitation and for taking proper steps for creating and maintaining healthy conditions within the municipal area.

The Municipal Board, Mandal has not filed any reply and it has not been contended by its learned counsel that it is not the duty of the Municipal board to remove or discharge the accumulated water and construct proper drainage system for the discharge of water accumulated in the chowk in Mundara Mohalla.

The only question, therefore, which arises for consideration in this writ petition is as to whether this court should issue a Mandamus to the Municipal Board to construct the sewers and drains for the discharge of domestic including dirty water, as well as rain water. In *Municipal Corporation v Advance Builders (P.) Ltd.* (AIR 1972 SC 793), it was held by their Lordships of the Supreme Court that since development and planning is primarily for the benefit of the public, the local body was under an obligation to perform its duty in accordance with the provisions of the Act. In the present case also, the statute imposes a duty upon the Municipal Boards and they are under a statutory obligation to perform such duties enumerated in Section 98 of the Act in accordance with the provisions in Chapter IX of the Act relating to drainage. It may be pointed out

that the Municipal Board has no discretion in the matter and it cannot refuse to discharge the obligations, duties and functions, which have been imposed upon it and are enumerated in Section 98 as primary functions. When the statute imposes a duty, the performance and non-performance of which is not a matter of discretion, then this court has a power to issue a mandamus directing the local body to do what the statute requires to be done. The Municipal Board is under a statutory obligation to construct sewers and drains for the discharge of water, both domestic as well as rain, which is likely to cause public nuisance, if allowed to accumulate for a long time. There can be no doubt that if the water and the filth is allowed to accumulate for a long time the place would become the breeding ground for mosquitoes, insects and is liable to become cause for spread of diseases. In these circumstances, it would be proper and reasonable in the present case if the Municipal Board is directed to perform its statutory duties in this respect.

The writ petition is, accordingly, allowed and the Municipal Board, Mandal is directed to remove the water and filth collected in the chowk in Mundara Mohalla, Mandal by the construction of proper sewers and drains, so as to remove the cause of possible nuisance in the locality, within a period of three months. As the Municipal Board has not opposed the writ petition, the parties are left to bear their own costs.

Petition allowed.

NOTES AND QUESTIONS

1. Had the municipality pleaded an inability to construct the drain because of a lack of finances, should the court have refused relief?

2. Apart from a writ petition, what other legal remedies could Rampal have pursued to secure the same relief?

3. In *E. Sampath Kumar v Government of Tamil Nadu*,⁶⁰ the Madras High Court held that a neighbour troubled by the excessive noise pollution and vibrations caused by electrical motors, diesel engines and generators used by a hotel, could maintain a writ petition. The High Court rejected the hoteliers' plea that the proper remedy would be a civil suit. The court issued several directions to abate the nuisance and directed the authorities to periodically inspect the hotel.

The writs of certiorari and prohibition are designed to restrain public authorities from acting in excess of their authority. Certiorari is an order to an inferior court or quasi-judicial body to transmit the record of pending proceedings to the superior court for its review. Prohibition prevents a lower court or tribunal from assuming a

⁶⁰ 1998 AIHC 4498

jurisdiction which it does not possess. The expansion of the concept of natural justice and the emergence of the 'fairness' requirement even in administrative functions, has blurred the distinction between quasi-judicial and administrative functions.⁶¹ Certiorari and prohibition are now regarded as general remedies against an improper exercise of power by administrative as well as quasi-judicial authorities.⁶²

The writs of certiorari and prohibition are issued where an authority (1) acts in excess of jurisdiction; (2) acts in violation of the rules of natural justice; (3) acts under a law which is unconstitutional; (4) commits an error apparent on the face of the record; and (5) reaches factual findings that are not supported by the evidence.⁶³ The fundamental distinction between certiorari and prohibition is that they are issued at different stages of the proceedings. Prohibition is issued when the matter is pending before an authority. The writ prohibits the concerned authority from proceeding any further with the matter. Certiorari is issued only after the concerned authority has decided the question before it.

For example, a writ of certiorari will lie against a municipal authority that considers a builder's application and permits construction contrary to development rules such as a height restriction, or that disregards zoning requirements and wrongly sanctions an office building in an area reserved for a garden. Certiorari would also lie against a state pollution control board that considers the application of an industry and wrongly permits it to discharge effluents beyond prescribed levels.

III. LIMITATIONS ON THE WRIT JURISDICTION

Although Articles 32 and 226 give the courts wide latitude to grant relief, the courts have imposed restraints on their own writ power. These pertain to the petitioner's standing to institute proceedings (*locus standi*), the exhaustion of alternative remedies, the principle of *res judicata*, and the time within which a writ may be sought (*laches*).

Neither Article 32 nor Article 226 describe who may seek redress from the courts. The rules of *locus standi* in relation to writs are judicial policies. Traditionally, *locus standi* was restrictive: Only an 'aggrieved person' could petition the courts for a writ of certiorari, prohibition or mandamus. Until the early 1980s, only the person directly affected by the administrative action in question could challenge it.⁶⁴ According to this view, a person could assert a public right or interest only by showing that he or she had suffered an injury not suffered by others. During the 1980s, the Supreme Court recognized that where a public wrong or public injury is caused by the state, any member of the public acting in good faith can maintain an action for redress.⁶⁵ In particular, any member of the public may approach the court on behalf of a person or

⁶¹ *A K Kraipak v Union of India* AIR 1970 SC 150, 154

⁶² *M Jain & S Jain*, *supra* note 54, at 525

⁶³ *Id.*

⁶⁴ *Calcutta Gas Company (Prop) Ltd v State of West Bengal* AIR 1962 SC 1044, 1047.

⁶⁵ *People's Union for Democratic Rights v Union of India* AIR 1982 SC 1473, 1483.

persons who have suffered a legal wrong and are unable themselves to petition the court by reason of poverty, disability, or their socially or economically disadvantaged position.⁶⁶ More than any other factor, the liberalization of the doctrine of standing in writ petitions has been responsible for the rapid growth in public interest litigation in India, and has provided easy access to the higher courts.

When a fundamental right, including the right to a wholesome environment, has been violated, relief through Articles 32 and 226 is fully appropriate. Where no fundamental right is involved, a High Court will decline to exercise its jurisdiction if an equally effective remedy is available and has not been used. The writ is an extraordinary remedy, and courts are reluctant to encourage petitioners who circumvent prescribed statutory procedure for correcting administrative action.⁶⁷ This rule of exhaustion of remedies can be waived by a court in a suitable case where, for instance, the impugned action violates the principles of natural justice, or where a government authority has exceeded its jurisdiction. The issue of an alternative remedy, however, is unlikely to arise in environmental writs, since existing environmental laws do not create alternative fora for dispute resolution or the redress of public grievances.⁶⁸ With the rapid increase in the complexity of environmental laws, the need for expertise in resolving environmental disputes may result in the establishment of special tribunals.⁶⁹ A beginning in this regard was made with the enactment of the National Environment Tribunal Act in 1995 and the National Environment Appellate Authority Act in 1997. Both these tribunals have a very limited jurisdiction confined to the adjudication of claims arising from hazardous industrial accidents (NETA) and disputes relating to project siting (NEAAA).⁷⁰ The National and State Coastal Management Authorities constituted in November 1998 may reduce the coastal ecology cases filed before the high courts. The authorities are empowered to investigate into violations of Coastal Zone Regulations and issue remedial directions.

A petitioner must pursue her remedy within a reasonable time of the cause of action arising, and a writ petition may be rejected on the ground of inordinate delay. This doctrine of *laches* has even been applied to petitions asserting a breach of a fundamental right, although the courts may be more indulgent when a fundamental right is involved and where the impugned action is manifestly erroneous or

⁶⁶ *Id.*

⁶⁷ e.g., the High Courts are reluctant to entertain disputes arising under the Income Tax Act of 1961, as the statute creates a hierarchy of authorities from which a person may obtain redress.

⁶⁸ By 'environmental writs' we mean petitions to abate pollution or prevent environmental degradation. Note that Section 28 of the Water Act and Section 31 of the Air Act provide the alternative remedy of administrative appeals to polluters who are dissatisfied with pollution control board decisions. Thus, a polluter's petition challenging a board decision may be resisted on the ground that an alternative remedy is available.

⁶⁹ The Supreme Court has suggested the establishment of environmental courts on a regional basis in *M. C. Mehta v Union of India* AIR 1987 SC 965 and *Indian Council for Enviro-Legal Action v Union of India* AIR 1996 SC 1446.

⁷⁰ At the time of writing NETA was not in force.

unauthorized. Where no prejudice is caused to the other party from the petitioner's lack of diligence, the courts generally measure the delay by referring to the statutory limitation for the filing of similar suits prescribed by the Limitation Act of 1963.

The doctrine of *laches* is often relaxed in environmental actions brought in the public interest. The court is usually indulgent, being aware of the financial constraints and obstacles that environmentalists face in obtaining authentic information and documentation.

The principle of *res judicata* has been applied to writ proceedings by judicial interpretation. Once a writ petition is rejected on its merits by the Supreme Court or a High Court, a subsequent writ petition cannot be moved in the same court on the same cause of action. Normally, *res judicata* also precludes a petition to the Supreme Court alleging the violation of a fundamental right, once the same petition has been dismissed on its merits by a High Court.⁷¹

IV. ARTICLES 32 AND 226

The Supreme Court's jurisdiction under Article 32 is more limited than the jurisdiction of the High Courts under Article 226. Article 32 guarantees the right to seek the Supreme Court's enforcement of fundamental rights. Moreover, Article 32 is itself a fundamental right and, therefore, cannot be abridged by legislation. An indispensable condition for invoking the Supreme Court's jurisdiction under Article 32 is the violation of a fundamental right conferred in Part III of the Constitution. Thus, an illegal government action that does not infringe a fundamental right cannot be challenged in writ proceedings under Article 32. In contrast, the writ jurisdiction of the High Courts under Article 226 may be invoked not only for the enforcement of a fundamental right but for 'any other purpose' as well. Ordinary legal rights may also be asserted through a writ petition in the High Court. For instance, although the freedom of trade, commerce and intercourse embodied in Article 301 is not a fundamental right and, therefore, cannot be enforced in a petition under Article 32,⁷² such a right may be enforced in a High Court under Article 226. Invoking the High Court writ jurisdiction is the most popular method to obtain judicial review of administrative action. Article 226 cannot be curtailed by legislation, since it is a constitutional provision.

Thus, the Supreme Court and the High Courts have concurrent jurisdictions for the enforcements of fundamental rights. A person complaining of an infringement of fundamental rights may seek redress in either forum. As noted earlier, if the High Court is approached first, and the petition for relief is dismissed on its merits, the principle of *res judicata* will preclude a further petition to the Supreme Court under Article 32. The petitioner may, however, appeal to the Supreme Court under Article 133 or obtain special leave to appeal under Article 136.

Financial and tactical considerations influence the choice between the Supreme

⁷¹ *Daryao v State of UP* AIR 1961 SC 1457, 1465, 1466.

⁷² *Ram Chandra Palai v State of Orissa* AIR 1956 SC 298, 305.

Court and a High Court for an environmental writ petition. Typically, litigating in the Supreme Court is more expensive because of higher lawyers' fees and travel costs. Nevertheless, a petition challenging a programme or project which affects more than one state, such as a dam over a long river, should be moved in the Supreme Court. Ordinarily, High Court judges are reluctant to pass orders which might disrupt planning and investment outside their jurisdiction.⁷³ Supreme Court judges are more likely to examine the issue from a national perspective and pass orders affecting several states. Similarly, the Supreme Court is more likely to intervene in a project involving large investments, or connected with important government policy, such as the location of a nuclear power station. High Court judges tend to be more deferential to the legislature and the executive in such matters.

The crowding of the Supreme Court docket by a spate of environmental public interest litigations prompted the court to issue a notice to bar associations across the country, seeking their response on how to check the tide of petitions filed under Article 32.⁷⁴ In the *CRZ Notification Case*⁷⁵ the Supreme Court offered a partial solution to the problem: Since the High Courts were better placed to understand local conditions and the impact of environmental law violations, they ought to tackle issues which arise or pertain to the geographical areas within their respective states. Generally, the Supreme Court continues to entertain fresh public interest litigations under Article 32 where the issue involved has national implications or requires central monitoring such as the protection of forests⁷⁶ and the formulation of national guidelines for the proper collection and management of municipal solid waste (garbage).⁷⁷

Finally, the nature of court orders in public interest litigation depends on the personality of the judge. The decision whether to petition under Article 32 or 226 is sometimes made after comparing the inclinations of the judges of the Supreme Court and the High Court who are likely to consider the petition.

V. JUDICIAL REVIEW AND SPECIAL CONSIDERATIONS

The scope of judicial review in environmental cases was explained by the Supreme Court in the *Calcutta Taj Hotel Case*,⁷⁸ where a group of citizens challenged the location of a hotel on the ground that the construction would interfere with the flight path of migratory birds. After referring to the constitutional provisions relating to environment, the court outlined the scope of judicial review thus:

⁷³ Normally, a writ issued by a High Court cannot run beyond its territorial jurisdiction. Nevertheless, a writ issued in one state can indirectly affect neighbouring states. For example, an injunction restraining development plans on a river in one state, could affect development activities in other states through which the river flows.

⁷⁴ *Howrah Ganatantrik Nagarik Samity v State of West Bengal* 1995 (5) SCALE 224.

⁷⁵ *Indian Council for Enviro-Legal Action v Union of India* 1996 (5) SCC 281, 301.

⁷⁶ *T.N. Godavarman Thirumulpad v Union of India* AIR 1997 SC 1228

⁷⁷ *Almitra Patel v Union of India* AIR 1998 SC 993.

⁷⁸ *Sachidanand Pandey v State of West Bengal* AIR 1987 SC 1109, 1115.

The least that the court may do is to examine whether appropriate considerations are borne in mind and irrelevancies excluded. In appropriate cases the court may go further but how much further must depend on the circumstances of the case. The court may always give necessary directions. However, the court will not attempt to nicely balance relevant considerations. When the question involved the nice balancing of relevant considerations, the court may feel justified in resigning itself to acceptance of the decision of the concerned authorities.

Likewise, in a challenge directed against the location of a thermal power station in the horticulture-rich Dahanu region on the coast of Maharashtra, the Supreme Court declined to interfere after holding that the court's role was restricted to examining whether the government had taken into account all relevant aspects and was not influenced by extraneous material in reaching its final decision.⁷⁹

The broad language of Articles 32 and 226 has enabled the courts to fashion relief and pass orders consistent with their own assessment of the public interest and principles of equity. In a petition under Article 226, the High Court has jurisdiction over issues of both fact and law; but ordinarily such a petition is based on facts established by affidavit. A High Court's reluctance to receive evidence in an Article 226 proceeding is a rule of practice and not of jurisdiction.

In environmental disputes that involve complicated questions of fact to be resolved after recording evidence, a suit is the appropriate remedy, rather than a writ petition. For example, if pollution injures health, a suit for damages is appropriate since medical evidence and evidence to establish causation would have to be adduced.⁸⁰

The Supreme Court may not refuse to entertain a petition under Article 32 merely because it involves disputed questions of fact.⁸¹ A writ court wishing to inquire into a disputed question of fact has the inherent power to appoint a commission to adduce evidence on its behalf. In several public interest litigations, the Supreme Court and the High Courts have appointed fact-finding commissions to investigate the petition's allegations. For example, in *L.K. Koolwal v State of Rajasthan*⁸² a citizen of Jaipur petitioned the Rajasthan High Court for a mandamus, directing the Jaipur Municipal Council to clean certain areas of the city. The court appointed a Commissioner to inspect the areas, and to report on the nature and extent of the problem. On the basis of the Commissioner's report, the court issued directions to clean the designated areas.

⁷⁹ *Dahanu Taluka Environment Protection Group v Bombay Suburban Electricity Supply Company Ltd.* 1991 (2) SCC 539, 541. Also see *Tehri Bandh Virodhi Sangarsh Samiti v State of Uttar Pradesh* 1992 Supp (1) SCC 44; and *Dr. Shivrao Shantaram Wagle v Union of India* AIR 1988 SC 952.

⁸⁰ A writ is also inappropriate in such a case because damages are not normally awarded under Articles 32 and 226.

⁸¹ *Supra* note 56, at 734.

⁸² AIR 1988 RAJ 2.

There is a large backlog of cases in most High Courts. In a writ petition in the Bombay High Court, at least six years will elapse between filing and judgment. Expedited petitions in this court take over two years to be heard. In the Delhi High Court the delay is eight to ten years. In environmental cases, such delays defeat the purpose of the writ petition unless appropriate interim orders are obtained at the admission stage. The interim order is usually an injunction against, or a direction to, an authority. Long delays in obtaining judgment highlight the importance of effective argument at the admission stage, where the crucial interim orders are issued.

A recent innovation in public interest litigations that has helped overcome judicial delays is the notion of a continuing mandamus. This technique involves securing compliance through periodic 'interim' directions. Here, the court does not formally admit the petition, but prods the recalcitrant agency to perform its duty within a time frame. The case is posted every few months to monitor the agency's performance and for further 'interim' directions.

D. STATUTORY REMEDIES

In addition to the common law and constitutional remedies discussed above, Parliament has provided special channels of redress in certain types of environmental cases. The Public Liability Insurance Act of 1991 (PLIA) and the National Environment Tribunal Act of 1995 (NETA) provide a summary remedy to the victims of a hazardous industrial accident. Both laws adopt a 'no-fault' liability standard, all but abolishing the defenses available to the owner of the hazardous facility, and create a speedy claims-disposal machinery. Under the PLIA, claims upto Rs. 25,000 may be filed before the district collector, with the jurisdiction for awarding larger amounts vesting in the national tribunal constituted under the ETA.

The National Environment Appellate Authority Act of 1997 creates an appellate forum where affected citizens may assail the environmental approval granted for siting a development project. The appellate authority examines the validity of decisions taken by the environment impact assessment (EIA) authority under the EIA regulations of 1994. This law, in tandem with the public hearing requirements under the EIA regulations, introduces a measure of transparency in the EIA procedure. It also provides a speedy dispute resolution mechanism to enable the project proponent to assess where he or she stands on environmental issues.

Until the enactment of the Environment (Protection) Act of 1986, the power to prosecute under Indian environmental laws belonged exclusively to the government. Citizens had no direct statutory remedy against a polluter who, for example, discharged an effluent beyond the permissible limit. Section 19 of the Environment Act brought about a change. Under this section, a citizen may prosecute an offender by a complaint to a magistrate. Prior to complaining, however, he or she must give the government 60 days notice of his or her intention to complain. This notice is intended to alert the government to the offence so that it may itself take appropriate remedial action.

Similar provisions allowing citizen participation in the enforcement of pollution laws are now found in section 43 of the Air Act as amended in 1987 and in section 49 of the Water Act as amended in 1988. Significantly, both of these amended sections also require pollution control boards to disclose relevant internal reports to a citizen seeking to prosecute a polluter. The ease of the writ procedure and the willingness of judges to adjudicate complex environmental issues on the basis of affidavit-evidence in public interest litigation has led to the neglect of the private prosecution machinery. Private prosecutions entail adherence to strict rules of evidence. Besides, those seeking to launch a private prosecution are discouraged by the sampling requirements under the pollution control laws which confer the power to draw the effluent samples exclusively on government officials. Pollution control board officials from Tamil Nadu, Karnataka and Maharashtra confirm that until January, 1999 there were no successful private prosecutions in their states.⁸³

E. PUBLIC INTEREST LITIGATION

Since the 1980s, public interest litigation (PIL) has altered both the litigation landscape and the role of the higher judiciary in India. Instead of being asked to resolve private disputes, Supreme Court and High Court judges were asked to deal with public grievances over flagrant human rights violations by the state or to vindicate the public policies embodied in statutes or constitutional provisions. This new type of judicial business is collectively called 'public interest litigation.'⁸⁴ Most environmental actions in India fall within this class.

In a conventional dispute involving, for example, a breach of contract, litigation is a mode of dispute resolution between private parties. Such litigation has several characteristics: First, it is bipolar and adversarial. Second, the case has a retrospective orientation: The court must decide questions of fact and law pertaining to past events. Third, right and remedy are closely inter-related. Fourth, the lawsuit is bounded in time and effect. Judicial involvement ends with the determination of the disputed issues, and the impact is limited to the parties before the court. Fifth, the whole process is driven and controlled by the actions of the parties. The judge is a neutral umpire.

In a public interest case, the subject matter of litigation is typically a grievance against the violation of basic human rights of the poor and helpless or about the content or conduct of government policy. The petitioner seeks to champion a public cause for the benefit of all society. Again, the focus dictates the principal features of the litigation. First, since the litigation is not strictly adversarial, the scope of the controversy is flexible. Parties and official agencies may be joined (and even substituted) as the litigation unfolds; and new and unexpected issues may emerge to

⁸³ Presentations by the respective boards at a seminar 'Reforming Indian Environmental Laws', Nat. Law School of Ind. Univ. Bangalore, 30, 31 January 1999.

⁸⁴ The label 'social action litigation' is preferred by some jurists

dominate the case. Second, the orientation of the case is prospective. The petitioner seeks to prevent an egregious state of affairs or an illegitimate policy from continuing into the future. Third, because the relief sought is corrective rather than compensatory, it does not derive logically from the right asserted. Instead, it is fashioned for the special purpose of the case, sometimes by a quasi-negotiating process between the court and the responsible agencies. Fourth, it is difficult to delimit the duration and effect of this new kind of litigation. Prospective judicial relief implies continuing judicial involvement. The parties often return to the court for fresh directions and orders. Finally, because the relief is sometimes directed against government policies, it may have impacts that extend far beyond the parties in the case. In view of these features, judges must play a large role in organizing and shaping the litigation and in supervizing the implementation of relief. This activist role of the PIL judge contrasts with the passive umpireship traditionally associated with judicial functions.⁸⁵

I. EXPANDED STANDING AND THE EMERGENCE OF PIL IN INDIA

Public interest litigation in India was initiated and fostered by a few judges of the Supreme Court.⁸⁶ The method they used to redress public grievances was, to relax the traditional rules governing standing (*locus standi*). Standing is required to have a court hear one's case. Since a court will not hear a party unless he or she has a sufficient stake in the controversy, judicial perception of who has sufficient interest (i.e., 'the person aggrieved') is critical. The Supreme Court has lowered the standing barriers by widening the concept of 'the person aggrieved'.

Traditionally, only a person whose *own right* was in jeopardy was entitled to seek a remedy.⁸⁷ When extended to public actions, this meant that a person asserting a public right or interest had to show that he or she had suffered some special injury over and above what members of the public had generally suffered. Thus, diffuse public injuries such as air pollution affecting a large community were difficult to redress.

⁸⁵ See generally, Chayes, *The Role of the Judge in Public Law Litigation*, 89 Harvard Law Review 1281 (1976); Chayes, *Foreword: Public Law Litigation and the Burger Court*, 96 Harvard Law Review 4 (1982); and *Sheela Barse v Union of India* AIR 1988 SC 2211.

⁸⁶ The most notable contributions were made by Justice Krishna Iyer and Justice Bhagwati. From an international perspective, the evolution of 'public interest law' is an American contribution. Many trace its beginnings to the landmark desegregation decisions of the 1950s when the US Supreme Court required schools in southern American states to end racial segregation. See *Brown v Board of Education (Brown II)* 349 U.S. 294, 299 (1955). In the 1960s, major PIL centres in the US handled issues relating to civil rights and the problems of the poor. By the mid-1970s, long before its inception in India, PIL embraced such diverse issues as consumer protection, environmental protection, land use, occupational health and safety, health care, media access and employment benefits. During the 1980s, PIL declined in the United States. See generally, Chayes, *Id.*; and Cunningham, *Public Interest Litigation in Indian Supreme Court. A Study in the Light of American Experience*, 29 J.I.L. 1 494 (1987).

⁸⁷ There are several narrow but notable exceptions to this traditional rule. For example, any person can move a writ of *habeas corpus* for the production of a detained person; and a minor may sue through his or her parent or guardian.

Even under the traditional standing doctrine, a narrow exception has been available to citizens bringing environmental actions against local authorities. A rate payer,⁸⁸ for example, may compel municipal authorities to perform their public duties although the rate payer has suffered no individualized harm. Thus, a rate payer's right to challenge an illegal sanction to convert a building into a cinema was upheld by the Supreme Court in *K. Ramdas Shenoy v The Chief Officers, Town Municipal Council, Udipi*.⁸⁹

The traditional view of standing also effectively prevented the grievances of India's poor from being heard by a court. Frequently, the poor and underprivileged are unwilling to assert their rights because of poverty, ignorance or fear of social or economic reprisals from dominant sections of the community. These disabilities could be reduced if, as in the case of a minor or a detained person, the law allowed a concerned citizen to sue on behalf of the underprivileged. The classical theory of *locus standi*, however, precludes such representation, and thereby keeps the grievances of the poor from reaching the courts.

Standing for the Poor and Oppressed: 'Representative Standing'

In the 1970s, two forces combined to erode the doctrinal limitations of standing. The first of these arose at the start of the decade with the spreading concern for social justice and the emergence of the legal aid movement. Justices Krishna Iyer and Bhagwati of the Supreme Court, who delivered the early judgments liberalizing standing, were also deeply involved in fostering legal service institutions for the weak and the poor.⁹⁰ Significantly, both judges served extra-judicially on the national Committee on Juridicare, which, in its final report in August, 1977, expressly recommended the broadening of the rule of *locus standi* as a means of encouraging PIL.⁹¹ The report envisioned PIL as a channel, by which the poor and oppressed could gain access to the courts and to judge-fashioned remedies.

Donning their judicial robes, these judges then proceeded to implement the recommendation of their own report.⁹² In cases involving the underprivileged, the Supreme Court began to override the procedural obstacles and technicalities that

⁸⁸ Someone who pays rate, cess or assessment on the value of his or her property. Rates are paid to the municipality and are applied to local public purposes.

⁸⁹ AIR 1974 SC 2177.

⁹⁰ Government of Gujarat, *Report of the Legal Aid Committee* (1971) (Chairperson: P.N. Bhagwati, then the Chief Justice of the Gujarat High Court); Government of India, Ministry of Law, Justice and Company Affairs, *Report of the Expert Committee on Legal Aid: Processual Justice to the People* (1973) (Chairperson: Justice V.R. Krishna Iyer).

⁹¹ Government of India, Ministry of Law, Justice and Company Affairs, *Report on National Juridicare: Equal Justice-Social Justice*, 61 (1977) (The Committee on Juridicare was composed of Justice Bhagwati [Chairperson] and Justice Krishna Iyer [Member]).

⁹² At least one Supreme Court judgment, delivered before the Juridicare Report, similarly urged an expansion of standing 'Test litigations, *pro bono publico* and like broadened forms of legal proceedings are in keeping with the current accent on justice to the common man and a necessary disincentive to those who wish to bypass the real issues on the merits by suspect reliance on peripheral, procedural

had until then obstructed redress. Rather than reject a petition for lack of standing, the court chose to expand standing so that it could decide the substantive issues affecting the rights of the underprivileged.

This modification of the traditional rule of standing which permits the poor and oppressed to be represented by volunteers may be described as '*representative standing*'.⁹³ Representative standing cases in the Supreme Court have helped secure the release of bonded labourers,⁹⁴ obtain pension for retired government employees,⁹⁵ and improve the living conditions of inmates at a protective home for women.⁹⁶ In *Hussainara Khatoon v Home Secretary, State of Bihar*⁹⁷ the court implicitly recognized the standing of a public spirited lawyer to move a petition on behalf of 18 prisoners awaiting trials for very long periods in jails in the State of Bihar. The petition led to the discovery of over 80,000 prisoners,⁹⁸ some of whom had been languishing in prisons for periods longer than they would have served, if convicted.⁹⁹ Likewise, in *People's Union for Democratic Rights v Union of India*¹⁰⁰ the court allowed a group of social activists to petition on behalf of exploited government construction workers, who were being paid less than the statutory minimum wage. The court observed:

Here the workmen whose rights are said to have been violated and to whom a life of basic human dignity has been denied are poor, ignorant, illiterate humans who, by reason of their poverty and social and economic disability, are unable to approach the courts for judicial redress and hence the petitioners have, under the liberalised rule of standing, *locus standi* to maintain the present writ petition espousing the cause of the workmen.¹⁰¹

Standing in Cases of Executive Inaction or Abuse: 'Citizen Standing'

This second modification of the classical standing doctrine, where a concerned citizen (or voluntary organization) may sue, not as a representative of others but in his or her

shortcomings. ... Public interest is promoted by a spacious construction of *locus standi* in our socio-economic circumstances. ...' (Per Krishna Iyer, J. in *Mumbai Kamgar Sabha v Abdulbhai Faizullabhai* AIR 1976 SC 1455, 1458).

⁹³ The term is Cunningham's. *Supra* note 86 at 498.

⁹⁴ *Bandhua Mukti Morcha v Union of India (Bonded Labourers Case)* AIR 1984 SC 802 (The petitioners were an organization dedicated to liberate bonded labourers)

⁹⁵ *D S. Nakara v Union of India (Pensioners Case)* AIR 1983 SC 130 (The principal petitioners, 'Common Cause' were a voluntary organization).

⁹⁶ *Dr. Upendra Baxi v State of Uttar Pradesh* (1983) 2 SCC 308 (The petitioner was a law professor).
⁹⁷ AIR 1979 SC 1360 and *Hussainara (II)* at 1369. There are two reported orders in the same case

⁹⁸ Cunningham, *supra* note 86 at 499.

⁹⁹ Although essentially a *habeas corpus* case, it is widely recognized as the earliest example of PIL in the Supreme Court. Though the case title carries the name of several prisoners, the petitioner was the advocate, Kapila Hingorani.

¹⁰⁰ AIR 1982 SC 1473

¹⁰¹ *Id* at 1483.

own right as a member of the citizenry to whom a public duty is owed, may be termed 'citizen standing'.¹⁰² The force that impelled this liberalization of standing stemmed from the need to check the abuse of executive authority in a modern welfare state. Enormous regulatory and fiscal authority is vested in the administrative agencies of the Indian Government. On occasion, these agencies misuse their power and funds. If a public authority acting illegally causes a specific legal injury to a person or a specific group of persons, a private action for redress would lie under the traditional doctrine of standing. At times, however, the injury arising may be diffuse, e.g., where government policy threatens to undermine judicial independence, or where official inaction threatens to harm the environment. In such cases, the restrictive traditional doctrine precludes relief and renders the executive action immune from judicial scrutiny.

Under increasing pressure to curb instances of official lawlessness with diffuse impacts, the Supreme Court expanded standing to enable a citizen to challenge such government actions in the public interest, though the citizen had not suffered any individualized harm. An early suggestion of this trend is evinced in *Fertilizer Corporation Kamgar Union v Union of India*,¹⁰³ where a trade union challenged the sale of old machinery and a plant belonging to a state-owned corporation on the ground that the sale was arbitrary and violated the workers' right to occupation under Article 19(1)(g) of the Constitution. The court rejected the petition because it found no merit in either claim.

However, on the issue of the trade union's standing, Chief Justice Chandrachud (delivering an opinion for Fazal Ali and Koshal, JJ. and himself) observed:

If public property is dissipated, it would require a strong argument to convince the court that representative segments of the public or at least a segment of the public which is directly interested and affected would have no right to complain of the infraction of public duties and obligations. ... We are not too sure if we would have refused relief to the workers if we had found that the sale was unjust, unfair or mala fide.¹⁰⁴

Concurring, Justice Krishna Iyer (speaking for Bhagwati, J. and himself) developed the theme even further:

The argument is, who are you to ask about the wrong committed or illegal act of the Corporation if you have suffered no personal injury to property, body, mind or reputation? ... Law as I conceive it, is a social audit and this audit function can be put into action only when someone with real public interest ignites the jurisdiction. We cannot be scared by the fear that all and sundry will be litigation-happy and waste their time and money and the time of the court

¹⁰² Once again, the phrase is Cunningham's. *Supra* note 86 at 500.

¹⁰³ AIR 1981 SC 344.

¹⁰⁴ *Id.* at 350.

through false and frivolous cases. ... Public interest litigation is part of the process of participate justice and 'standing' in civil litigation of that pattern must have liberal reception at the judicial doorsteps. ... If a citizen is no more than a wayfarer or officious intervener without any interest or concern beyond what belongs to any one of the 660 million people of this country, the door of the court will not be ajar for him. But [if] he belongs to an organization which has special interest in the subject matter, if he has some concern deeper than that of a busybody, he cannot be told off at the gates, although whether the issue raised by him is justiciable may still remain to be considered. I, therefore, take the view that the present petition would clearly have been permissible under Article 226.¹⁰⁵

It was a small step from here for Justice Bhagwati to hold, in *S.P. Gupta v Union of India*,¹⁰⁶ that even where no specific legal injury had been suffered, any concerned citizen may sue to check the damage to the public interest and uphold the rule of law. Subsequent Supreme Court judgments have interpreted Justice Bhagwati's opinion as laying down the ratio on the issue of standing.¹⁰⁷ Though *S.P. Gupta* was overruled in the *SCARA Case*¹⁰⁸ on the main issue relating to the primacy of the judiciary in the appointment of High Court and Supreme Court judges, the *S.P. Gupta* judgment continues to be relied upon on other issues,¹⁰⁹ which were not before the *SCARA* bench.

Citizen standing has also enabled individuals to check the abuse of public office by high government functionaries;¹¹⁰ to challenge government policies¹¹¹ and to test the legality of a fiscal policy that favoured tax dodgers.¹¹²

The early environmental cases decided by the Supreme Court, which have resulted in the closure of limestone quarries in the Dehradun region,¹¹³ the installation of safeguards at a chlorine plant in Delhi¹¹⁴ and the closure of polluting tanneries on the Ganges,¹¹⁵ fall within this category of citizen standing cases.

¹⁰⁵ *Id.* at 354–6.

¹⁰⁶ (*Judges' Transfer Case*), AIR 1982 SC 149, 194

¹⁰⁷ *People's Union for Democratic Rights v Union of India* AIR 1982 SC 1473.

¹⁰⁸ *Supreme Court Advocates-on-Record Association v Union of India* AIR 1994 SC 268.

¹⁰⁹ e.g. *C. Ravichandran Iyer v Justice A.M. Bhattacharjee* 1995(5) SCC 457.

¹¹⁰ *P.B. Samant v State of Maharashtra, (Cement Case)* 1982 (1) BOM. C REP. 367 (The Bombay High Court judgment led to the resignation of Chief Minister Antulay of Maharashtra) *Raju v State of Karnataka, (Arrak Liquor Bottling Case)* 1986 (1) KARN. L.REP. 164. (The Karnataka High Court judgment led to the resignation of Chief Minister Hegde of Karnataka) *Shiv Sagar Tiwari v Union of India* 1996 (6) SCC 558 and 1996 (6) SCC 599. (Out of turn allotment of government accommodation by the urban development minister).

¹¹¹ *Supra* note 106.

¹¹² *R.K. Garg v Union of India (Bearer Bonds Case)* AIR 1981 SC 2138.

¹¹³ *Rural Litigation and Entitlement Kendra v State of Uttar Pradesh (Dehradun Quarrying Case)* AIR 1985 SC 652.

¹¹⁴ *M.C. Mehta v Union of India (Shriram Gas Leak Case)* AIR 1987 SC 965.

¹¹⁵ *M.C. Mehta v Union of India (Ganga Pollution [Tanneries] Case)* AIR 1988 SC 1037

In the *Ganga Pollution (Municipalities) Case*,¹¹⁶ the Supreme Court upheld the standing of a Delhi resident to sue the government agencies whose prolonged neglect had resulted in severe pollution of the river. Justice Venkataramiah's opinion in this case supports the notion of citizen standing:

[The petitioner] is a person interested in protecting the lives of people who make use of the water flowing in the river Ganga and his right to maintain the petition cannot be disputed. The nuisance caused by the pollution of the river Ganga is a public nuisance, which is widespread in range and indiscriminate in its effect and it would not be unreasonable to expect any particular person to take proceedings to stop it as distinct from the community at large. The petition has been entertained as a Public Interest Litigation. On the facts and in the circumstances of the case we are of the view that the petitioner is entitled to move this court in order to enforce the statutory provisions which impose duties on the municipal authorities and the Boards constituted under the Water Act.¹¹⁷

II. LOCUS STANDI TODAY: SCOPE AND RESTRICTIONS

In 1981, a seven judge bench of the Supreme Court delivered a definitive judgment on standing in the *Judges' Transfer Case*.¹¹⁸ Although every judge delivered a separate opinion, there was general agreement with Justice Bhagwati's view on the issue of *locus standi*. Justice Bhagwati upheld the standing of practicing lawyers to challenge a government policy to transfer High Court judges, thereby undermining judicial independence. His judgment comprehensively describes the enlarged scope of what we have termed 'representative standing' (A), and 'citizen standing' (B):

(A) It may therefore now be taken as well established that where a legal wrong or a legal injury is caused to a person or to determinate class of persons by reason of violation of any constitutional or legal right or any burden is imposed in contravention of any constitutional or legal provision or without authority of law or any such legal wrong or legal injury or legal burden is threatened and such person or determinate class of persons is by reason of poverty, helplessness or disability or socially or economically disadvantaged position, unable to approach the court for relief, any member of the public can maintain an application for an appropriate direction, order or writ in the High Court under Art. 226 and in case of any fundamental right of such person or determinate class of persons, in this court under Art. 32 seeking judicial redress for the legal wrong or injury caused to such person or determinate class of persons. ... But we must hasten to make it clear that the individual who moves the court for

¹¹⁶ *M.C. Mehta v Union of India* AIR 1988 SC 1115

¹¹⁷ *Id.* at 1126.

¹¹⁸ *Supra* note 106 See text accompanying *supra* notes 107–9.

judicial redress in cases of this kind must be acting bona fide with view to vindicating the cause of justice and if he is acting for personal gain or private profit or out of political motivation or other oblique consideration, the court should not allow itself to be activated at the instance of such person and must reject his application at the threshold, whether it be in the form of a letter addressed to the court or even in the form of a regular writ petition filed in court.¹¹⁹

(B) If public duties are to be enforced and social collective 'diffused' rights and interests are to be protected, we have to utilize the initiative and zeal of public-minded persons and organizations by allowing them to move the court and act for a general or group interest, even though they may not be directly injured in their own rights. It is litigation—litigation undertaken for the purpose of redressing public injury, enforcing public duty, protecting social, collective, 'diffused' rights and interests or vindicating public interest, and any citizen who is acting bona fide and who has sufficient interest has to be accorded standing. What is sufficient interest to give standing to a member of the public would have to be determined by the court in each individual case. It is not possible for the court to lay down any hard and fast rule or any strait-jacket formula for the purpose of defining or delimiting 'sufficient interest'. It has necessarily to be left to the discretion of the court.¹²⁰

Unfortunately, as a rule of practice, neither the litigants nor the courts make the distinction between representative and citizen standing. Indeed, some later Supreme Court judgments have failed to appreciate this distinction and have muddled the separate rationales into a confused (and seemingly narrower) single doctrine.¹²¹

In *Subash Kumar*¹²² the Supreme Court reprimanded the petitioner for abusing the process of the court. Subash Kumar, an influential businessman, wanted to carry away slurry from the Tata Iron & Steel Company's ponds. Kumar tried various means to pressure the company into giving him business. When the company refused, he filed a public interest litigation under Article 32, claiming that the slurry discharged from the coal washeries was polluting the Bokaro river and was a serious health risk to the neighbouring community. He asked the court to prohibit TISCO's discharges. His interim application, however, revealed the real purpose: Kumar sought the court's permission to carry away the slurry flowing into the river. The Supreme Court saw through Kumar's game, found no merit in the allegations of

¹¹⁹ *Supra* note 106 at 189

¹²⁰ *Id.* at 192.

¹²¹ e.g., *Forward Construction Company v Prabhat Mandal* AIR 1986 SC 391, 393, *Sachidanand Pandey v State of West Bengal (Calcutta Taj Hotel Case)* AIR 1987 SC 1109, 1134; and *Ramsharan Autyanuprasi v Union of India* AIR 1989 SC 549, 553. The expanded standing doctrine as formulated in all three judgments appears to ignore the 'citizen standing' dimension.

¹²² *Subash Kumar v State of Bihar* AIR 1991 SC 420.

pollution and held that the petitioner was out to harass the company and make a profit to boot. The court dismissed the petition with costs, holding:

Personal interest cannot be enforced through the process of this court under Art. 32 of the Constitution in the garb of a public interest litigation. Public interest litigation contemplates legal proceedings for vindication or enforcement of fundamental rights of a group of persons or community which are not able to enforce their fundamental rights on account of their incapacity, poverty or ignorance of law. A person invoking the jurisdiction of this court under Art.32 must approach this court for the vindication of the fundamental rights of affected persons and not for the purpose of vindication of his personal grudge or enmity. It is [the] duty of this court to discourage such petition and to ensure that the course of justice is not obstructed or polluted by unscrupulous litigants by invoking the extraordinary jurisdiction of this court for personal matters under the garb of the public interest litigation.¹²³

Likewise, in *Chhetriya Pardushan Mukti Sangharsh Samiti v State of UP*,¹²⁴ the Supreme Court rejected a petition which was motivated by an ancient grudge and enmity. Declaring, 'We must protect society from so-called protectors', the court held that in view of the long history of animosity and the *prima facie* compliance with pollution statutes, there was no justification for judicial intervention. During the hearing, the industry furnished materials to show that the petitioner had a record of blackmailing people and that criminal charges were pending against him in this regard.

The Madhya Pradesh High Court disapproved the tactic employed to stall an industrial project in *Jayant Vitamins Ltd. v Rampur Distillery and Chemical Company Ltd.*¹²⁵ Jayant Vitamins claimed that the respondents' solvent extraction factory, when operating, would pollute the atmosphere and harm the bulk drugs manufactured at Jayant's plant. Moreover, the new plant was hazardous and the location was against the siting guidelines for industries. After perusing the record, the court discovered the hidden agenda of the petitioners. Jayant Vitamins needed the adjacent plot to expand its own unit and the petition was but a tactic to pressurize Rampur Distillery to sell the land. Dismissing the petition, the court held 'the bogey of pollution should not be allowed to be raised for ulterior selfish motives by disgruntled litigants to hamper or stop the process of industrialization.'¹²⁶

III. THE RELAXATION OF PROCEDURES

The procedural requirements of litigation that ensure fairness and uniformity at the trial of conventional, adversarial lawsuits, may not be necessary in PIL cases. Judges

¹²³ *Id.* at 424.

¹²⁴ AIR 1990 SC 2060.

¹²⁵ 1992(3) COMP L.JR.1.

¹²⁶ *Id.* at 13

like to view PIL as a collaborative effort between the court, the citizen and the public official, where procedural safeguards have a diminished utility and may be relaxed to enable relief: '[I]t has to be remembered that every technicality in the procedural law is not available as a defence when a matter of grave public importance is for consideration before the court.'¹²⁷

For instance, the Supreme Court and the High Courts frequently treat letters written to individual judges or the court as writ petitions.¹²⁸ These letters usually contain a bare outline of the grievance, the unsuccessful steps taken by the writer to secure relief from official agencies, and a request to the court to set matters right. A case in point is the *Dehradun Quarrying Case*,¹²⁹ where the Supreme Court directed a letter from the Rural Litigation and Entitlement Kendra, Dehradun, to be treated as a writ petition under Article 32 of the Constitution. The letter alleged that illegal limestone quarrying was devastating the fragile environment in the Himalayan foothills around Mussoorie. Satisfied that the matter merited inquiry, the Supreme Court first issued notices to the State of Uttar Pradesh and the collector of Dehradun to appear before the court. Then, as a clearer picture of the facts, regulatory structures and policies emerged, other affected parties—the Union Government, concerned government agencies and the mine owners—were also impleaded. By August 1988, when the Supreme Court delivered its final order, five years after it had received the letter, the litigation had grown into one of the most complex environmental cases handled by an Indian court.

In another case, a journalist complained to the Supreme Court that the national coastline was being sullied by unplanned development that violated a Central Government directive. The Supreme Court registered the letter as a writ petition, requested the court's legal aid committee to appoint a lawyer for the petitioner and issued notice to the Union Government and the governments of all the coastal states.¹³⁰

Occasionally, the courts have relaxed procedural rules in other respects as well. In the *Shriram Gas Leak Case*,¹³¹ the Supreme Court allowed an unconnected cause of action to be urged, without requiring amendments to the petition. The original petition sought the closure of Shriram's hazardous industrial plant and its relocation away from Delhi's populated localities. While the petition was pending, oleum gas escaped from the plant and harmed some persons, who filed applications for compensation in

¹²⁷ *Rural Litigation and Entitlement Kendra, Dehra Dun v State of Uttar Pradesh (Dehradun Quarrying Case)* AIR 1988 SC 2187, 2195.

¹²⁸ While letters written to individual judges have in the past been treated as writ petitions, the practice has been deprecated. The proper course is to address letters to the court. (See the separate opinions of Pathak, J. and Sen, J. in *Bandhua Mukti Morcha v Union of India* AIR 1984 SC 802, 848. But see the Bhagwati, J. opinion in *M.C. Mehta v Union of India (Shriram Gas Leak Case)* AIR 1987 SC 1086, 1090).

¹²⁹ *Supra* note 127.

¹³⁰ *Mahesh R. Desai v Union of India* Writ Petition No. 989 of 1988

¹³¹ *Supra* note 128.

the original 'closure and relocation' writ petition. Shriram urged the court not to decide the issue arising from the compensation claim, since no such claim had been made in the original petition, nor had the petitioner amended the petition to incorporate a compensation plea. The court overruled this objection, stating that a 'hyper-technical approach' that defeated the ends of justice was inappropriate in PIL cases.

IV. THE NEW CHALLENGES: FACTS, EXPERTISE AND SUPERVISION

As PIL cases began crowding the court docket—frequently in the form of letters or skimpy petitions based on newspaper reports—the judges hearing these cases were pressed to evolve new procedures and techniques to facilitate this new type of litigation. Broadly speaking, judicial innovation was required to: (1) secure detailed facts, since the petitioners' information was usually sketchy; (2) receive expert testimony in cases involving complex social or scientific issues; and (3) ensure the continuous supervision of prospective judicial orders.

To construct a complete framework of the facts, a judge often requires the concerned public officials to furnish detailed, comprehensive affidavits. Sometimes, as where a swift, impartial assessment of the facts is needed and the official machinery is unreliable, slow or biased, an affidavit may be unhelpful. In such cases, the courts appoint special commissions to gather facts and data. The power to appoint commissions is an inherent power of the Supreme Court under Article 32 of the Constitution and of the High Courts under Article 226.¹³²

Since the commissioner is almost always a responsible person, the report of the commission is treated as *prima facie* evidence of the facts and data gathered. Once the report is received by the court, copies of it are supplied to the parties, who may choose to dispute the contents of the report in an affidavit. The court then considers the report in light of the affidavits, and proceeds to decide the issues.

In a petition for directions to the municipal authority of Jaipur to solve the city's acute sanitation problems, the Rajasthan High Court appointed a commissioner to report on the insanitary conditions in various parts of the city.¹³³ This commissioner apparently discharged his task to the court's satisfaction.

In another environmental petition, however, the Bombay High Court's experience with a commissioner was less sanguine.¹³⁴ The petition challenged the development permission for a beach resort on the Goa coast. Since work at the beach site had commenced, the court appointed a commissioner to inspect and report on the extent of the construction. In his report, the commissioner went beyond his fact-finding task of describing the development on the beach and commented on the legality of the structures. The High Court criticized the commissioner for exceeding his brief, and rejected the subjective portions of the report.

¹³² *Supra* note 94, at 816, 817, 845, and 849

¹³³ *L.K. Koolwal v State of Rajasthan* AIR 1988 RAJ 2.

¹³⁴ *Sergio Carvalho v State of Goa* 1989 (1) GOA LAW TIMES 276, 302.

In pollution cases, the Supreme Court frequently relies on the National Environment Engineering Research Institute, Nagpur (NEERI) to visit the affected locality and submit its field report.¹³⁵ Several techniques have evolved to manage the litigation process in complex cases involving scores of parties. For example, the court may dissuade industry from filing pleadings in the court registry and instead require the polluter to file affidavits before the pollution control board;¹³⁶ appoint an *amicus curiae*¹³⁷ to peruse, analyse and collate the material filed by various respondents;¹³⁸ and appoint commissions to inspect the situation in the field.¹³⁹

Yet another technique used by courts to ease the environmental petitioner's evidentiary burden, is the resort to a judicial notice of the 'facts'. For example, in a petition seeking to reduce pollution of the river Ganga, the Supreme Court dispensed with the need for hard scientific proof on the health effects of the pollution, the damage it caused to riparian property, and the manner in which it harmed the livelihood of those living downstream. In view of certain books and writings brought to the court's notice, the judges simply *assumed* that such injuries either had occurred or were likely to occur, and proceeded to issue remedial directions.¹⁴⁰

Likewise, in *Anthony Lawrence Quadors v Municipal Corporation of Greater Bombay*,¹⁴¹ the Bombay High Court took judicial notice of the poor state of the city's roads after the on-set of the monsoon. Here, the secretary of a taxi drivers union and a newspaper editor petitioned the court to compel the municipal authorities to maintain the roads in good condition. Ultimately, the petition was withdrawn after the Municipal Corporation agreed to implement the recommendations of a court-appointed committee of experts.

More recently, under the Supreme Court's formulation of the 'precautionary principle', the onus of proof is on the developer or industrialist to show that his or her action is environmentally benign. This principle was applied in *Vellore Citizens' Welfare Forum v Union of India*¹⁴² and the *Taj Trapezium Case*.¹⁴³

Frequently, independent scientific expertise is essential to inform judicial decision-making in environmental cases.¹⁴⁴ Judges in such cases usually appoint a

¹³⁵ e.g. *M.C. Mehta v Union of India (Calcutta Tanneries)* 1997(2) SCC 411.

¹³⁶ *Anil Kumar Karanwal v State of UP* 1996 (3) SCALE 61

¹³⁷ A friend of the court.

¹³⁸ *T.N. Godavarma Thirumulpad v Union of India* 1997 (3) SCC 312. This was the first major environmental case in which the Supreme Court used the services of an *amicus curiae*. The role of the *amicus curiae* extends to making submissions on the law.

¹³⁹ *Pravinbhai Jashbhai Patel v State of Gujarat* Spl. Civ. Appl. No.770 of 1995, Gujarat High Court, 10 May 1996.

¹⁴⁰ *Supra* note 115, also see *supra* note 116.

¹⁴¹ Writ Petition No. 1129 of 1981, Bombay High Court, orders dated 4 October 1983 and 11 April 1985.

¹⁴² AIR 1996 SC 2715.

¹⁴³ *M.C. Mehta v Union of India* AIR 1997 SC 734.

¹⁴⁴ *Supra* note 114, at 981.

committee of experts to probe scientific questions and advise the court on a course of action. Like special commissions, the expert committees are appointed under the inherent powers of the Supreme Court and the High Courts under Articles 32 and 226 of the Constitution. Since eminent scientists drawn from leading institutions compose these committees, the court treats their opinion with great deference.

Faced with the allegation that imported Irish butter targeted for distribution in Bombay was contaminated by the nuclear fallout from the Chernobyl disaster, the Supreme Court appointed an expert committee to determine whether the imported milk and dairy products were safe for human consumption. When the committee reported that the milk products were safe, the court released the butter for distribution.¹⁴⁵

In the *Shriram Gas Leak Case*, the Supreme Court solicited the help of several expert committees. For instance, the Nilay Choudhary Committee was requested to advise the court on whether Shriram's hazardous chemical plant, which was located in Delhi, should be allowed to recommence operations in view of the danger to the neighbourhood. The committee was also asked to suggest measures to reduce the environmental threat that the plan posed.¹⁴⁶

In the *Dehradun Quarrying Case*,¹⁴⁷ the Supreme Court enlisted an expert committee to evaluate the environmental impact of limestone quarrying operations in the Mussoorie-Dehradun region. Significantly, the court used the committee mechanism for another purpose as well, viz., to *supervise* the implementation of judicial orders. A 'monitoring committee' was formed to oversee the running of three limestone mines that had been allowed to continue operations, and to monitor reforestation measures in the region. A 'rehabilitation committee' was also set up to rehabilitate the mine owners whose mines had been closed by the court without payment of compensation. The rehabilitation committee was to ensure that the displaced mine owners were given alternative mining sites in other parts of the country.

V. DIRECTIONS AND RELIEF

Since the principal relief in PIL is prospective and affirmative rather than compensatory, the tight linkage between right and remedy that characterizes traditional litigation is attenuated in these cases. Remedial orders are fashioned *ad hoc* to accommodate a range of interests and do not always flow from a narrow determination of rights and liabilities. Moreover, since there is wide discretion, the temperament of the judge, his or her compassion for the grievance and the nature of the grievance itself, invariably influence the outcome of a case. As a result, it is frequently impossible to identify a single clear cut solution in PIL cases.

¹⁴⁵ *Shivaram Shantaram Wagle v Union of India (Irish Butter Case)* AIR 1988 SC 952.

¹⁴⁶ *Supra* note 114, at 969.

¹⁴⁷ *Supra* note 127.

Rights and Remedies

This disconnection between right and remedy is seen early in Indian PIL. The Supreme Court found injunctive reliefs, which are traditionally used to protect the interests of the parties until a final decision is reached on their rights, to be inadequate and unsuited for redressing public grievances. For example, the urgency in human rights cases affecting large numbers of poor people, or the intricacies in cases where fact-finding commissions or expert committees had to be constituted, demanded immediate, comprehensive, interim orders even *before* a decision on the rights. Characterizing these orders as 'remedies without rights', Cunningham describes their use by the Supreme Court in two leading cases:

In the first public interest case, *Hussainara*, litigated before the Indian Supreme Court, the court issued four interim orders within the first four months following the filing of the writ petition. These orders set norms for releasing undertrial prisoners on personal bonds, ended the practice of 'protective custody' for crime victims and witnesses, ordered release of all prisoners in the State of Bihar who had been awaiting trial for a longer period than the maximum sentence for which they could be convicted, directed that free legal aid be given to all indigent accused, held that a speedy trial was a constitutional right, imposed an affirmative duty on magistrates to inform undertrial prisoners of their right to bail and legal aid, and ordered the release of all undertrials in Bihar for whom investigations had been pending for more than six months without an extension being granted by the magistrate. After this initial surge of activity, *Hussainara* has remained pending before the court for the last seven years without further decisions or final judgment.

Hussainara thus set a pattern which the Supreme Court has followed in many public interest cases: immediate and comprehensive interim relief prompted by urgent need expressed in the writ petition with a long deferral of final decision as to factual issues and legal liabilities. ... Most recently in the *Shriram Fertilizer Gas Leak* case the court ordered the plant to be closed, set up a victim compensation scheme, and then ordered the plant reopening subject to extensive directions, all within ten weeks of the gas leak, without first deciding whether it had jurisdiction under article 32 to order relief against a private corporation.¹⁴⁸

Relief in most of the PIL cases in the Supreme Court is obtained through interim orders. The new judicial emphasis on the effective implementation of environmental laws has prompted judges to monitor compliance through periodic reports filed in court by the government agency. Generally, short interim directions in the nature of a 'continuing mandamus' are passed at frequent intervals. Non-

¹⁴⁸ Cunningham, *supra* note 86, at 511.

compliance with court orders is met with judicial strictures, action in contempt of court or fines.

Judicial Activism

A second characteristic of many PIL cases is the court's ingress into fields traditionally reserved for the executive. Finding the executive response to be absent or deficient, the Supreme Court has used its interim directions to influence the quality of administration, 'making it more responsive than before to the constitutional ethic and law'.¹⁴⁹ Occasionally, the court has even created its own crude administrative machinery to remove a public hardship.

Prof. Baxi describes this gradual judicial takeover of 'the direction of administration in a particular arena from the executive' as 'creeping jurisdiction'.¹⁵⁰ A good illustration of the Supreme Court's 'creeping jurisdiction' is the *Dehradun Quarrying Case* where 'the Supreme Court considered, balanced and resolved competing policies—including the need for development, environmental conservation, preserving jobs, and protecting substantial business investments—in deciding to close a number of limestone quarries in the Mussoorie Hills and to allow others to continue operating under detailed conditions. In rendering this judgment the court reviewed the highly technical reports of various geological experts and gave varying weight to the expert opinions'.¹⁵¹

The article excerpted below describes the methodology adopted in the *Ganga Pollution Case* and points to the gains as well as the pitfalls in environmental law enforcement through the courts. Note the result-oriented approach of the court and the procedures adopted to secure strict enforcement of the pollution laws.

DIVAN; CLEANING THE GANGA, Economic and Political Weekly, 1 July 1995, p. 1557

Short of putting on their gum boots and wading into the murky waters of the Ganga to clean up the mess, a bench of the Supreme Court has been doing a whole lot and more to restore the health of the river. Justice Kuldip Singh over the past two years has cajoled, prodded and driven recalcitrant industries and public authorities in the Ganga basin to comply with pollution norms.

Even in conventional litigation, Singh brings to his court an informal style rooted in common sense. A public interest litigation to clean up the Ganga has caught the judge's fancy. Each Friday finds the judge in his elements, anxious to improve the environment. A huge shoal of advocates, administrators, company executives, and public officials attentively follow the court proceedings as a range of snappy

¹⁴⁹ U. Baxi, *Taking Suffering Seriously: Social Action Litigation in the Supreme Court of India*, 29 The Review (International Commission of Jurists) 37, 42 (December 1982).

¹⁵⁰ *Id.*

¹⁵¹ Cunningham, *supra* note 86, at 516-517.

judicial directions are issued week upon week. At present the Kuldip Singh court is tackling hundreds of large polluting industries in Uttar Pradesh, Bihar, and West Bengal; a slew of small municipalities that discharge untreated sewage into the river, half a dozen municipal corporations in the three states; the Eastern railways; giant thermal power plants; numerous small units such as tanneries and almost everyone else despoiling the river. The litigation-affected parties are several hundred. How does the court manage the show?

The traditional view of litigation frowns upon judges who embark on such massive administrative exercises. Judges are required to retain their objectivity; impartiality and aloofness. They ought not soil their judicial robes by entering the administrative area and taking decisions which are within the province of specialist enforcement agencies. This is old hat for the *Ganga* court. A new wisdom guides its approach. Dismayed at the persistent flouting of Parliament's mandate to clean the rivers, by polluters and pollution control boards alike, the court is unwilling to sit idly by.

The rigor of formal court procedures and statutory requirements are diluted in favour of a summary, result-oriented process. The main thrust is to substitute the ineffective administrative directives issued by the pollution control boards (PCBs) under the Water Act and the Environment (Protection) Act, with judicial orders, the disobedience of which invites contempt of court action and penalties. In view of the finality of the apex court's orders, there are few options for the polluters but to comply.

The court's first task is to identify the erring polluters. For this it looks to M.C. Mehta, the well known environmentalist and advocate, who petitioned the court in 1985 to clean up the river.

Once the polluters are identified, the court orders each firm to meet the effluent standards within a period of three months, or else face closure. Justice Singh hopes that the shadow of closure will stir hard headed businessmen to treat their factory effluents. To emphasize the urgency, the orders threatening closure are issued *ex parte*, that is, without hearing the company. The court directs the PCBs to immediately serve notice on the unwary polluters, setting out the Supreme Court's deadline. Compliance must be reported to the board. At the end of the period, each board files a status report together with recommendations for future action. The willing are granted extensions to clean up their act. But for the obstinate, it's closure.

Where the discharge levels are achieved, the board is asked to inspect the working of the ETP and report to the court. Given the dismal record of the PCBs, it is no surprise that even this elementary task is at times entrusted by the court to the National Environmental Engineering Institute (NEERI), Nagpur.

The sprawling dimensions of the *Ganga* case have pressed the court to evolve new procedures. Unlike usual litigations, affected polluters are dissuaded from filing documents in the court's registry. All affidavits must be tendered before the respective boards. In this manner, the court hopes to reduce its administrative burden. Moreover, to tailor its directions to each situation, the *Ganga* court issues orders piecemeal. What at the end of the day reads like the comprehensive court order, is in fact a series of directions—dictated one paragraph at a time—and punctuated by brief arguments on each issue. It is this procedure that enables the court to respond with specificity to each situation.

Does the *Ganga* court then, get straight 'A's? At first blush, yes. Hundreds of factories have installed ETPs. Small scale units are busy complying with minimum standards for effluent discharge. The municipalities are creeping towards compliance. Bihar's thermal power stations at Bokaro and Patratu have ordered equipment to abate pollution. Even the Eastern Railways, after much foot-dragging, has agreed to treat the waste water gushing out from Howrah station.

More generally, the Supreme Court has succeeded in building up a sustained pressure on industry and municipalities, where the PCBs have failed. Throughout the Ganga basin there is heightened environmental awareness among administrators, the subordinate judiciary, police and municipal officials, all of whom are involved in implementing the Supreme Court's orders.

Impressive as all this may seem, unless the PCBs are overhauled quickly the gains will soon dissipate. There are limits to what a gung ho court can do in the face of an indifferent bureaucracy. The boards in the Ganga states appear resigned to doing no work except for a knee-jerk response to judicial orders. Besides, the word on the street is that the Supreme Court's orders are misused by dishonest board officials to line their own pockets. Unless a bribe is paid, an unfavourable report is made to the court.

There are other pitfalls. The massive administrative tasks assumed by the court, will sooner or later expose judges to criticism previously directed at administrators. Arbitrariness in passing closure orders without attention to special factors or hearing the affected party, are but a few of the concerns voiced by lawyers. None of this lends to the prestige of the court. Indeed, if a subordinate judge dares to assume the expansive administrative role of the *Ganga* court, he would probably be admonished for exceeding his jurisdiction.

If the Supreme Court's activism is to have a lasting impact, a new political will in the form of budgetary allocations at the municipal level and greater community pressure on board officials is necessary. Left to themselves, the PCBs will revert to a culture of slipshod enforcement.

NOTE

Two cases that illustrate the PIL process in solving environmental problems are *Janaki Nathubhai Chhara v Sardarnagar Municipality*¹⁵² and *Citizens Action Committee v Civil Surgeon, Mayo (General) Hospital*.¹⁵³ These cases exhibit collaboration among litigants and the bench; the flexible character of the pleadings; the negotiations through which the courts ensure relief; and the activist role of the PIL judge.

Justice Pathak in his concurring opinion in the *Bonded Labourers Case*, excerpted below, cautions against the dangers of excessive judicial activism in PIL.

¹⁵² AIR 1986 GUJ 49.

¹⁵³ AIR 1986 BOM 136.

In this case, the Supreme Court treated a letter from an organization dedicated to liberate bonded labourers as a writ petition, and appointed a commissioner to verify allegations that several stone quarry workers in the State of Haryana were forced to work under 'inhuman and intolerable' conditions, contrary to various social welfare laws. The court passed detailed directions for the release and rehabilitation of the bonded labourers.

BANDHUA MUKTI MORCHA v UNION OF INDIA

AIR 1984 SC 802

PATHAK, J:

* * *

Where the court embarks upon affirmative action in the attempt to remedy a constitutional imbalance within the social order, few critics will find fault with it so long as it confines itself to the scope of its legitimate authority. But there is always the possibility, in public interest litigation, of succumbing to the temptation of crossing into territory which properly pertains to the Legislature or to the executive Government. For in most cases the jurisdiction of the court is invoked when a default occurs in executive administration, and sometimes where a void in community life remains unfilled by legislative action. The resulting public grievance finds expression through social action groups, which consider the court an appropriate forum for removing the deficiencies. Indeed, the citizen seems to find it more convenient to apply to the court for the vindication of constitutional rights than appeal to the executive or legislative organs of the State.

In the process of correcting executive error or removing legislative omission the Court can so easily find itself involved in policy making of a quality and a degree characteristic of political authority, and indeed run the risk of being mistaken for one. An excessively political role identifiable with political governance betrays the court into functions alien to its fundamental character, and tends to destroy the delicate balance envisaged in our constitutional system between its three basic institutions. The Judge, conceived in the true classical mould, is an impartial arbiter, beyond and above political bias and prejudice, functioning silently in accordance with the Constitution and his judicial conscience. Thus does he maintain the legitimacy of the institution he serves and honour the trust which his office has reposed in him.

The affirmative schemes framed in public interest litigation by the court sometimes require detailed administration under constant judicial supervision over protracted periods. The lives of large sections of the people, some of whom have had no voice in the decision, are shaped and ordered by mandatory court action extending into the future. In that context, it is as well to remember that public approval and public consent assume material importance in its successful implementation. In contrast with policy making by legislation, where a large body of legislators debate on a proposed legislative enactment, no such visual impact can be perceived when judicial decrees are forged and fashioned by a few judicial personages in the confines of a court. The mystique of the robe, at the stage of decision-making, is associated traditionally with cloistered secrecy and confidentiality and the end-result commonly issues as a final definitive act of the court. It is a serious question whether in every

case the same awesome respect and reverence will endure during different stages of affirmative action seeking to regulate the lives of large numbers of people, some of whom never participated in the judicial process.

* * *

An activist court, spearheading the movement for the development and extension of the citizen's constitutional rights, for the protection of individual liberty and for the strengthening of the socio-economic fabric in compliance with declared constitutional objectives, will need to move with a degree of judicial circumspection. In the centre of a social order changing with dynamic pace, the court needs to balance the authority of the past with the urges of the future.

* * *

There is great merit in the court proceeding to decide an issue on the basis of strict legal principle and avoiding carefully the influence of purely emotional appeal. For that alone gives the decision of the court a direction which is certain, and unfaltering, and that especial permanence in legal jurisprudence which makes it a base for the next step forward in the further progress of the law. Indeed, both certainty of substance and certainty of direction are indispensable requirements in the development of the law, and invest it with the credibility which commands public confidence in its legitimacy.

This warning is of especial significance in these times, during a phase of judicial history when a few social action groups tend to show evidence of presuming that in every case the court must bend and mould its decision to popular notions of which way a case should be decided.

* * *

NOTES AND QUESTIONS

1. In 1991 M.C. Mehta, advocate and environmentalist, petitioned the Supreme Court to direct the exhibition and broadcast of environmental messages and information by the media.¹⁵⁴ Mehta also sought the introduction of 'environment' as a compulsory subject in schools and colleges. The Supreme Court issued detailed directions regarding the compulsory screening of slides and documentaries in cinema halls and the broadcast of programmes on radio and television. The University Grants

¹⁵⁴ *M.C. Mehta v Union of India* AIR 1992 SC 382

Commission was told to prescribe courses on the environment in the university syllabi; and the state governments and education boards were directed to take immediate steps to include environment in the school curricula.

Was the Supreme Court's order justified? Is it the business of justices to decide educational priorities from the middle school upward to the graduate level? Ought they decide what movie and television viewers should watch? How was Article 21 violated justifying the exercise of jurisdiction under Article 32? The court's foray is difficult to support on jurisprudential grounds. The court has little expertise in matters of education and the media. Moreover, as known to movie and television viewers and school or under-graduate students, the Supreme Court's directions are seldom obeyed. Does this erode the prestige of the Supreme Court?

2. The court's approach in the *M. C. Mehta Media Case* is hard to reconcile with Justice Mukharji's plea in *State of Himachal Pradesh v Umed Ram Sharma*,¹⁵⁵ for judicial restraint in public interest cases. The petition arose from a demand by the villagers in Simla district for a road to their village. While upholding the High Court judgment directing the state government to construct the road as soon as possible, the Supreme Court cautioned:

The State Government has assured this court that they would carry out this direction. The court must know its limitations in these fields. The court should bring about an urgency in executing lethargy if any, in a particular case but it must remember the warning of Benjamin N. Cardozo in '*The Nature of Judicial Process*' at page 141 of the book:

The judge, even when he is free, is still not wholly free. He is not to innovate at pleasure. He is not a knight-errant roaming at will in pursuit of his own ideal of beauty or of goodness. He is to draw his inspiration from consecrated principles. He is not to yield to spasmodic sentiment, to vague and unregulated benevolence. He is to exercise a discretion informed by tradition, methodized by analogy, disciplined by system, and subordinated to 'the primordial necessity of order in the social life.' Wide enough in all conscience is the field of discretion that remains.

In a similar vein in *Asif Hameed v State of Jammu and Kashmir*,¹⁵⁶ the court held: 'The Constitution does not permit the court to direct or advise the executive in matters of policy or to sermonize qua any matter which under the constitution lies within the sphere of legislature or executive.'

3. For another opinion urging judicial restraint in PIL 'so that this salutary type of litigation does not lose its credibility', see Justice Khalid's observations in *Sachidanand Pandey v State of West Bengal*.¹⁵⁷ Here, the construction of the Calcutta

¹⁵⁵ AIR 1986 SC 847.

¹⁵⁶ AIR 1989 SC 1899.

¹⁵⁷ *Supra* note 121

Taj Hotel was delayed for six years while administrative agencies and courts considered whether a proposed six-storey hotel would impede the flight pattern of migratory birds.

4. In the 1990s the Supreme Court set the national environmental agenda on a range of ecological issues. It did so through judicial orders in public interest litigations (PILs) filed by citizens, non-governmental organizations and environmental groups. Dismayed at the poor enforcement record of government agencies, the apex court set apart large amounts of judicial time and resources to address public grievances. As noted earlier, the court evolved a new procedure in the nature of a 'continuing mandamus', where a series of interim directions are issued to officials and their performance monitored through periodic compliance reports. During this period the emphasis shifted to implementation of natural resource laws. It was hoped that vigorous judicial scrutiny in select cases would have a salutary effect on the work culture and performance of the environmental bureaucracy.¹⁵⁸

F. CLASS ACTIONS

In a class action one or more members of a numerous class, having 'the same interest', may sue or defend on behalf of themselves and all the other members of the class. It is a procedural device designed to promote efficiency and fairness in the handling of large numbers of similar claims. A 'representative' or 'class' suit is recognized under Order I Rule 8 of the Code of Civil Procedure of 1908.

Class suits are an exception to the general rule of compulsory joinder of all interested parties. They are allowed on the premise that members of the class who are made parties will protect their *own interests*, and in protecting them, the interest of the *absent members* of the class will also be protected.

Why have class suits? One purpose is to provide an economical and convenient forum for disposing of similar lawsuits. Also, class suits are justified on the grounds of fairness: All members of the class are treated equally, and, if they are successful as plaintiffs, they share in the recovery.

Sometimes a suit between individuals may affect the interests of numerous non-parties. For example, the judgment in a petition by a few members of a trade challenging a zoning policy that prohibits the trade in whole sections of a city, would affect absent members of that trade as well. All traders who might be affected are given notice of the suit and are allowed to be joined as parties.

Additionally, separate suits could result in the establishment of inconsistent obligations for persons opposing the class. For example, where a number of victims of air pollution file separate suits to enjoin the polluter (in the same or different

¹⁵⁸ The lead provided by the Supreme Court, was followed by a number of High Courts, notably Kerala, Gujarat, Bombay, Madras and Calcutta which also adopted similar strategies to improve enforcement.

courts) the separate orders in the different proceedings might create conflicting obligations for the polluter. In Suit A, all emissions may be prohibited; in Suit B, emission reduction in a phased manner may be ordered; and in Suit C, the court may refuse to enjoin the polluter. A class action would prevent such conflicts.

Finally, class suits may spread the cost of litigation among numerous litigants and make the suit affordable when it otherwise would not be. For example, consumer class suits to recover damages for defective products might enable numerous small claims to be jointly adjudicated.

I. ORDER 1 RULE 8

Rule 8 of Order 1 of the Code of Civil Procedure of 1908, as it stands after the Code's 1976 amendment, prescribes the following conditions for a representative action: (1) that the class be numerous; (2) that members of the class have 'the same interest' in the suit; (3) that the court permit a few persons to sue or be sued on behalf of the entire class; and (4) that the court issue notice of the suit to all persons having the same interest.

The rule also permits any member of the class to join the class action if he or she so wishes and provides that no class action may be compromised or settled until the court issues notice to all the members of the class. Further, where a person sues or defends a class suit without due diligence, the court is empowered to substitute another member of the class in his or her place. Most important, a decree passed in a representative suit binds all members of the class.

The Same Interest

The existence and configuration of a class under rule 8 of Order 1 are determined by whether the persons claiming to constitute a class have 'the same interest' in the suit. Since rule 8 is a rule of procedure, the term 'the same interest' must receive a liberal construction; it ought not to be loaded down by arbitrary and technical restrictions. Liberally construed, the term requires a *community of interest* among the members of the class in the questions of law and fact involved.

This construction is fortified by the explanation to the rule, introduced by the 1976 amendment, which states: 'For the purpose of determining whether the persons who sue or are sued or defend, have the same interest in one suit, it is not necessary to establish that such persons have the same cause of action as the persons on whose behalf, or for whose benefit, they sue or are sued, or defend the suit, as the case may be.' Taking 'cause of action' to mean the bundle of facts which together with the applicable law gives the plaintiff a right of relief against the defendant, the explanation clearly suggests that there need not be an *identity* of facts, claim or interests amongst the members. Common general interest between class members is sufficient. Indeed, the rule seems to call for an accommodation of the inevitable diversities of situation so long as there is a unity of interest among the members of the class, and the representatives have an interest in the controversy common with those represented.

The judgment of the full bench of the Madras High Court in *Kodika Goundar v Velandi Goundar*, delivered before the 1976 amendment, correctly describes the ambit of Order 1, rule 8:

In deciding therefore whether leave has to be granted or in considering whether a suit already instituted under O.1, R.8 is maintainable the principal consideration that should weigh with a court is whether it is satisfied that there is sufficient community of interest as between the plaintiffs or defendants as the case may be to justify the adoption of the procedure provided under O.1, R.8. ... The nature of a claim whether it is a suit for a declaration of a right, or an injunction or an action for money on contract or on tort—is not very material in considering whether a suit would be filed under the simplified procedure of O.1, R.8.¹⁵⁹

Significantly, the court also held that a class action for damages was permissible.¹⁶⁰

II. CLASS ACTIONS AND THE ENVIRONMENT

Although an examination of class suits in India shows that the class action device has been rarely, if ever, used in any personal injury tort case, there is no reason why it cannot be shaped into an instrument for the vindication of group interests in environmental torts. In fact, in most environmental cases, it is hard to conceive of individual relief apart from class relief. A class action would measurably assist in securing redress.

The most obvious use of class action is in mass disasters of the sort that occurred in Bhopal. In the wake of the Bhopal tragedy, the Indian Government filed a class action suit on behalf of all the victims, in accordance with the terms of the Bhopal Gas Leak Disaster (Processing of Claims) Act of 1985.

More generally, a class action may be used in all torts that have an impact on a large number of people. Where effluents discharged by an industry into a river kills fish and imperils the livelihood of several villagers downstream, the effect of pollution on any individual fisherman might be too small to justify a conventional lawsuit seeking compensation. In the aggregate, however, the impact on all the affected fishermen may be substantial enough to seek redress in a class action suit. On a practical level, while an individual fisherman might not be able to bear the cost of litigation, the group as a whole may find it easier to finance a single class action suit.

Reversing the class alignment, the defendant class action by an individual plaintiff is an effective way to enjoin a large number of polluters, as the *Ganga Pollution (Tanneries) Case* shows:

¹⁵⁹ AIR 1955 MAD 281, 286.

¹⁶⁰ But see *dicta* in *H.A.J. Gidney v Anglo Indian and Domiciled European Association*, AIR 1930 RANG 177, 181.

When this petition came up for preliminary hearing, the court directed the issue of notice under Order I of Rule 8 of the Code of Civil Procedure treating this case as a representative action by publishing the gist of the petition in the newspapers in circulation in northern India and calling upon all the industrialists and the municipal councils having jurisdiction over the areas through which the river Ganga flows to appear before court and to show cause as to why directions should not be issued to them as prayed by the petitioner asking them not to allow the trade effluents and the sewage into the river Ganga without appropriately treating them before discharging them into the river. Pursuant to the said notice a large number of industrialists and local bodies have entered appearance before the court. Some of them have filed counter-affidavits explaining the steps taken by them for treating the trade effluents before discharging them into the river.¹⁶¹

III. CLASS SUITS AND PIL WRITS

At present most environmental actions in India are brought under Articles 32 and 226 of the Constitution. As we have seen, the writ procedure is preferred over the conventional suit because it is speedy, relatively inexpensive and offers direct access to the highest courts of the land. Nevertheless, class action suits also have advantages. For instance, courts as a rule do not grant monetary compensation in writ proceedings. Generally, monetary recoveries from tortfeasors in environmental cases can only be obtained through a suit.

A second advantage class action suits offer is that detailed evidence may be adduced during the trial. Thus far, the environmental violations that have reached the courts have been so gross that judges were able to decide most issues on the basis of affidavits. With the increasing use of toxic chemicals in Indian agriculture and industry, there is a strong likelihood of more subtle, more difficult-to-prove environmental disputes reaching the courts. These disputes will probably be litigated in a more sophisticated and combative fashion than present day PIL. Technical experts may be required to submit to cross-examination. Causality between the pollutant and the harm may have to be rigorously established. The class action procedure appears more suited than the writ procedure to accommodate such complexities. Moreover, where there are large number of victims or where the victims are poor or disadvantaged, the delay endemic in the disposal of suits might not pose a problem. In such cases, directions for an expedited hearing of the class suit could be obtained from the court where the class action is filed or from a superior court.

This is not to suggest that the class suit as a procedural device is without problems. Radical individuality amongst a few members can threaten the integrity of a class; dissent within a class concerning liability or relief can

¹⁶¹ *M C Mehta v Union of India* AIR 1988 SC 1037, 1038

complicate litigation and objections by a few members may jeopardize settlements.

In the United States, the *Agent Orange* litigation¹⁶² exemplifies the large class action lawsuit. In this case, thousands of Vietnam veterans collectively sued the manufacturers of a toxic chemical used as a defoliant in the Vietnam war. They claimed that the chemical, commonly named Agent Orange—a form of dioxin—caused them to suffer long-term chronic physical injury and also emotional injury. The litigation was complicated by the fact that there was no incontrovertible evidence that Agent Orange actually caused any of the claimed disability.

In this case, litigants formed factions, and fought among themselves. This factionalism did not, however, derail the judge-administered settlement: The judge was strong and decisive, and refused to let that happen. (The judge seemed convinced that the litigants would lose in a trial because of their large evidentiary burden.) The settlement award totalled US\$ 250 million. This amount was to be distributed in two ways, namely cash awards to those who appear to have suffered the most severe injuries; and the delivery of rehabilitative services and health care to all other present and future claimants.

Another U.S. class action suit involved the Dalkon Shield,¹⁶³ an intrauterine contraceptive device that caused incidents of sterility and birth defects. This case was resolved successfully: Money was awarded promptly, with relatively small administrative or transactional costs.

As we have seen, a pragmatic spirit animates the amended Order 1, rule 8. It is now up to lawyers in India to use this rule to its full potential in environmental cases.

G. FREEDOM OF INFORMATION AND THE RIGHT TO KNOW

Public access to government information enables citizens to exercise their political choice meaningfully. Secrecy erodes the legitimacy of elected governments. A regime that conceals its actions and policies cannot be judged by the electorate and cannot be held accountable for its misdeeds. Moreover, governments in modern welfare states exercise vast powers that affect economic interests and impinge on a citizen's liberty. These powers are susceptible to misuse for private gain. The right to be informed of public acts helps check the abuse of executive power. Data that forms the basis of decision-making may at times be taken out of context, and bureaucrats may deliberately suppress certain viewpoints to favour others. Openness in government corrects these tendencies and raises the quality of decision-making. The right to know also strengthens participatory democracy. A peoples' right to influence government, other than through periodic elections, is widely recognized. Armed with information on government programmes, citizens may influence decision-making through representations, lobbying and public debate.

¹⁶² *In Re: Agent Orange Product Liability Litigation*, 818 F. 2d. 145-280 (2nd Circuit, 1987).

¹⁶³ *In Re A H Robins Co., Inc.*, 58 U.S.L.W 2006 (4th Circuit, 1989)

The right to know is especially critical in environmental matters. For example, government decisions to site dams may displace thousands of people and deprive them of their lifestyles and livelihood. A responsible government, therefore, ought to widely publicize its river development plans and ought to be receptive to public feedback. But in the case of the Mansi-Wakal project intended to meet Udaipur's potable water requirements, none of the people who were to be displaced by the inundation were given basic information. Officials refused to part with the project report until villagers and activists held protest demonstrations.¹⁶⁴ Don't these citizens have a *right* to this information? Isn't the government under a *duty* to inform them? And isn't this obligation even greater in a society where large segments of the population are illiterate or unaware of their legal rights?

Information on the proposed location of nuclear power stations and hazardous industries directly affect the lives and health of neighbouring communities. As the Bhopal Gas Leak disaster grimly illustrates, pervasive ignorance to the dangers of methyl isocyanate contributed to the cause and the magnitude of the tragedy. Surely the government is obliged to fully disclose the proposed location of hazardous facilities and to consult local communities before reaching a decision. As the *Brundiland Report*¹⁶⁵ argues:

Some large projects ... require participation of a different basis. Public inquiries and hearings on the development and environment impacts can help greatly in drawing attention to different points of view. Free access to relevant information and the availability of alternative sources of technical expertise can provide an informed basis for public discussion. When the environmental impact of a proposed project is particularly high, public scrutiny of the case should be mandatory and, wherever feasible, the decision should be subject to prior public approval, perhaps by referendum.¹⁶⁶

Access to government records helps litigants construct the necessary fact base for legal actions. For example, information secured from municipal records has enabled urban environmental groups to expose the complicity between agencies and private builders.

I. JASANOFF; THE BHOPAL DISASTER AND THE RIGHT TO KNOW, 27 Social Science and Medicine 1113 (1988)

The tragedy in Bhopal can be seen not merely as a failure of technology, but as a failure of knowledge. The accident might not have happened at all—in any case, its impact could have been greatly lessened—if the right people had obtained the right

¹⁶⁴ Centre for Science and Environment, *The State of India's Environment: The Citizens' Fifth Report* 149 (1999).

¹⁶⁵ World Commission on Environment and Development, *Our Common Future* (1987).

¹⁶⁶ *Id.* at 63-64.

information at a time when they were capable of appreciating it and taking appropriate preventive action. Reconstructions of the events in Bhopal show that there were striking gaps both in the information available about MIC and in the process of communicating this information within and outside the Union Carbide organization. A central challenge for future [right-to-know (RTK)] policies is to bridge the information gaps and the communication gaps that are likely to arise in the course of technology transfer.

In designing new RTK laws for transferred technologies, an important concern should be the production of more systematic, accurate and comprehensive characterizations of risk. Identifying the toxicological properties of individual chemicals, such as MIC, is a necessary, but by no means sufficient, step towards creating an adequate information base about hazardous industries. Probabilistic risk assessment and environmental impact analysis should both be made prerequisites to the siting of dangerous facilities. In carrying out such evaluations for transferred technologies, both private and public sector decision-makers should be sensitive to differing local circumstances in importing countries, including cultural and behavioural patterns in the workforce and the community. One lasting lesson of Bhopal is that the remote headquarters of multinational corporations are not necessarily the best places for performing such wide-ranging analyses. In order to take all relevant factors into account, and to give them due weight, much closer collaboration is required among parent companies, their foreign subsidiaries, and citizens and public authorities in technology-importing countries.

To improve the flow of information about hazardous technologies, the circles of those with a right to know and those with a duty to disclose should both be wider than under existing laws. Community right-to-know provisions have received a considerable boost in the United States after Bhopal. It is to be hoped that governments of developing countries will recognize the need for similar guarantees for their citizens. Public interest groups with demonstrated capabilities for risk management should be drawn as far as possible into the network of information sharing, reinforcing the lines of communications between industry, government and the general public.

At the same time, new policy initiatives are required in both technology-exporting and technology-importing countries in order to strengthen the disclosure obligations of hazardous industries, as well as their duty to act preventively when there is evidence of risk. Exporting countries, for example, could require that foreign governments be notified not only before the sale of banned or regulated products, but also before the construction of hazardous facilities. Importing countries, for their part, have to build a technical and administrative infrastructure capable of processing hazard information, drawing, where appropriate, on experts located outside government. Multinational corporations should take pains to distribute responsibility for health and safety in reasonable ways across their organizational structure and to ensure that managers understand clearly how this responsibility is allocated. Finally, an effective, internationally enforceable system of sanctions and penalties is needed to hold corporations accountable if they fall short of meeting their duties of disclosure and prevention.

Claims concerning trade secrecy present a high threshold barrier against any attempt to broaden the right to know. However, numerous statutes in the industrialized

countries support the principle that health and safety considerations can override claims of confidentiality and compel at least a limited disclosure of hazard information. Such a principle should be applied to cross-national transfers of technology, although attempts to internationalize the health and environmental data developed by multinational corporations can be expected to encounter stiff opposition.

Bhopal finally raises questions about the limits of the right to know as a strategy for controlling risk. From the standpoint of many who were ultimately caught up in the disaster—workers, ordinary citizens, political officials—knowledge would have been most beneficial at the time Union Carbide made its basic decision about what manufacturing process should be employed in Bhopal. Wider consultation at this stage might have led to a different appraisal of risks and benefits of alternative technologies and resulted in the construction of a plant more suited to Indian conditions. Yet the choice of technology has traditionally been regarded as a corporate prerogative falling outside the scope of RTK laws. The fact that this choice led to catastrophe in Bhopal has been blamed on the absence of a technological culture in India. One could, however, with more justice blame Bhopal on a blinkered corporate culture that makes technology transfer decisions without even a rudimentary understanding of their social implications. To broaden this partial vision, the importers, consumers and potential victims of technology have to arm themselves with knowledge so that they can judge the appropriateness of different technological options. Ultimately, the right to know can only have meaning if it is supplemented by a right to participate in choosing and operating the imported technology. The tragedy of Bhopal will indeed be compounded if this lesson gets lost in an overly narrow, legalistic debate about the pros and cons of transnational information sharing.

II. EXECUTIVE MISUSE OF THE OFFICIAL SECRETS ACT

Non-disclosure of information is the norm in India; openness is the exception.¹⁶⁷ There is no national enactment in India imposing a duty on the government to supply information to an individual seeking it.¹⁶⁸ Instead, government actions are thickly veiled by the archaic Official Secrets Act of 1923. This draconian law was enacted by the British to guard against activities considered detrimental to the security of the Raj. Hardly altered in the five decades since independence, the law retains its colonial menace. The Act proscribes the disclosure of any 'secret' official information, without defining the word 'secret'. Thus, subject to judicial review, the Act grants government a *carte blanche* to withhold almost any information it chooses to.

¹⁶⁷ M. Jain & S. Jain, *Principles of Administrative Law* 890–900 (1986)

¹⁶⁸ In May, 1997, Tamil Nadu became the first state to introduce a right to information law. Although 23 'exceptions' or excluded classes of information make up most of the body of the Act, the Citizen, Consumer & Civil Action Group, Madras, has generally found government departments to be responsive to requisitions for information. Interview with Bharath Jairaj, CAG, 22 April 1999. Conducted by S. Divan. Several common law countries have such laws, e.g., U.S.A.'s Freedom of Information Act of 1966, Australia's Freedom of Information Act of 1982 and New Zealand's Official Information Act of 1982.

III. JUDICIAL RECOGNITION OF THE RIGHT TO KNOW

Under pressure to allow greater citizen access to official information, the judiciary is gradually shaping the broad contours of the right to know. Supreme Court judges have derived the right to know from two distinct constitutional sources—the fundamental right to freedom of speech and expression guaranteed in Article 19(1)(a) and the fundamental right to life and personal liberty enshrined in Article 21.

Justice Mathew in *State of Uttar Pradesh v Raj Narain*¹⁶⁹ was the first to recognise the citizen's right to know:

In a government of responsibility like ours, where all the agents of the public must be responsible for their conduct, there can be but few secrets. The people of this country have a right to know every public act, everything that is done in a public way, by their public functionaries. They are entitled to know the particulars of every public transaction in all its bearing. The right to know, which is derived from the concept of freedom of speech, though not absolute, is a factor which should make one wary, when secrecy is claimed for transactions which can, at any rate, have no repercussion on public security, see *New York Times Co. v United States* (1971) 403 U.S.713. To cover with veil of secrecy, the common routine business, is not in the interest of the public. Such secrecy can seldom be legitimately desired. It is generally desired for the purpose of parties and politics or personal self-interest or bureaucratic routine. The responsibilities of officials to explain and to justify their acts is the chief safeguard against oppression and corruption.

Justice Bhagwati, too, in *S.P. Gupta v Union of India (Judges' Transfer Case)*,¹⁷⁰ recognized the right to know to be implicit in the right to free speech and expression. In *Dinesh Trivedi v Union of India*,¹⁷¹ the Supreme Court once again acknowledged the vital importance of open government in a participative democracy.

Justice Mukharji in *Reliance Petrochemicals Ltd. v Proprietors of Indian Express Newspapers Bombay Pvt. Ltd.*¹⁷² recognized the right to know as emanating from the right to life: 'We must remember that the people at large have a right to know in order to be able to take part in a participatory development in the industrial life and democracy. Right to know is a basic right [to] which citizens of a free country aspire [in the broadening horizon of the right to life] under Article 21 of our Constitution. That right has reached new dimensions and urgency. The right puts greater responsibility upon those who take upon the responsibility to inform.' The strong link between Article 21 and the right to know is evident in

¹⁶⁹ AIR 1975 SC 865, 884.

¹⁷⁰ AIR 1982 SC 149, 234. Justice Bhagwati's opinion is quoted in the Bombay High Court judgment in *Bombay Environmental Action Group v Pune Cantonment Board*, excerpted later in this section.

¹⁷¹ 1997 (4) SCC 306, 314.

¹⁷² AIR 1989 SC 190, 202

environmental matters where secret government decisions may affect health, life and livelihood.

IV. JUDICIAL DEVELOPMENTS

The following judgment of the Bombay High Court and order of the Supreme Court significantly strengthen a citizen's access to official environmental information.

The Bombay High Court in its unreported judgment excerpted below, considered whether a recognized environmental group has a right to examine municipal permissions granted to private builders. The environmental group believed that construction on five plots within the cantonment was illegal and, therefore, it sought inspection of the relevant municipal documents. The cantonment board, however, refused to grant inspection, forcing the group to petition the court.

BOMBAY ENVIRONMENTAL ACTION GROUP v PUNE CANTONMENT BOARD

Bombay High Court

A.S. Writ Petition No. 2733 of 1986

7 October 1986

DHARMADHIKARI, J.:

The petitioners wanted that they should be granted either inspection or copies of applications made for building permissions, plans accompanying such applications and all official proceedings relating to such permissions, including renewals thereof. Since this request of the petitioners was not granted, the petitioners have filed the present Writ Petition for a declaration that it was incumbent upon the Cantonment Board to disclose to the petitioners and other citizens and/or grant to the petitioners or other citizens inspection of all these documents and materials and they have, therefore prayed for a necessary Writ and/or directions.

[Counsel] appearing for the petitioners, contended before us that under Art. 19(1)(a) of the Constitution of India, a citizen has a right to get such information. Even under the relevant provisions of the Act, a public body like the respondent Cantonment Board cannot refuse to give inspection of these public documents. This is more so when the petitioners, which is an Action Group, want to help the Cantonment Board in maintaining the environmental balance within its territorial jurisdiction and the documents asked for cannot be termed as secret or confidential.

* * *

In support of his contentions, [Counsel] has mainly relied upon the observations of the Supreme Court in *S.P. Gupta and others v President of India and others* A.I.R. 1982 S.C. 149, and particularly upon the following observations.

This is the new democratic culture of an open society towards which every liberal democracy is moving and our country should be no exception. The

concept of an open government is the direct emanation from the right to know which seems to be implicit in the right of free speech and expression guaranteed under Article 19(1)(a). Therefore, disclosures of information in regard to the functioning of Government must be the rule and secrecy an exception justified only where the strictest requirement of public interest so demands. The approach of the court must be to attenuate the area of secrecy as much as possible consistently with the requirement of public interest, bearing in mind all the time that disclosure also serves an important aspect of public interest.

* * *

However, it was contended by ... the learned Counsel appearing for the respondents, that these observations of the Supreme Court cannot be read torn from their context and should be restricted to the provisions of Art.74 and Sections 123 and 162 of the Evidence Act viz., to the cases where a privilege is claimed and it cannot be held that they lay down a general rule. In the present case, the Cantonment Board is not claiming any privilege qua any document and, therefore, the said decision is not relevant for deciding the controversy raised in this Writ Petition. We find it difficult to accept this contention ... The Supreme Court in *S. P. Gupta's Case* has in terms construed the scope of Art. 19(1)(a) of the Constitution. If Art. 19(1)(a) takes in its import the disclosure of information in regard to the functioning of the Government and the right to know about it, which is implicit in the right of free speech and expression guaranteed under Art. 19(1)(a) of the Constitution of India, then the right of inspection as claimed by the petitioners in this Writ Petition must flow from the said fundamental right.

* * *

The apprehension expressed by [Counsel for the respondents] that if such right is given to a citizen, then the working of the Cantonment Board will not only be affected but will come to a standstill is also without any substance. To say the least, in this Writ Petition we are not dealing with the right of each and every citizen generally. We would like to confine ourselves to the rights of recognized social action groups whose activities deserve to be appreciated.

* * *

Real democracy cannot be worked by men sitting at the top. It has to be worked from below by the people of every village and town. That sovereignty resides in and flows from the people. So said the Father of the Nation in whose name we swear. Therefore, 'Who will watch the watchman' is the vexed question before our democracy.

* * *

NOTES

1. The judgment is of seminal importance because it transforms the right to know from judicial rhetoric into a substantive, enforceable right. The court finds the right to inspection to flow from the fundamental right to free speech and expression. More significantly, it recognizes the right to know to be a distinct, self-contained right, *independent* from the governments' claim to privilege under the Indian Evidence Act of 1872.¹⁷³ This is notable because the observations on the right to know by both Justice Mathew in *Raj Narains' Case*¹⁷⁴ as well as Justice Bhagwati in the *Judges' Transfer Case*¹⁷⁵ were made while considering government claims to privilege. A timid court could easily have accepted the respondents' contentions and restricted its application of the 'right to know' principle to cases where privilege is claimed.

2. Equally significant, the court upholds the petitioners' right to know *without* requiring any proof of government irregularity. It appears, therefore, that the right to know may be asserted even where no illegalities are alleged. Indeed, the only requirements for a recognized environmental action group asserting this right are that the group must act '*bona fide*'¹⁷⁶ and for a 'genuine purpose'. Finally, the judgment is important because by granting relief under Article 226, the High Court opens the speedy, inexpensive writ remedy to recognized social action groups seeking access to official environmental information.

In a different case between the same parties—*Bombay Environmental Action Group v Pune Cantonment Board*—the petitioners sought the Supreme Courts' special leave to appeal under Article 136 of the Constitution after the Bombay High Court had rejected their petition under Article 226. The petition challenged the construction of 'Sterling Centre', a building in the Pune cantonment area.

BOMBAY ENVIRONMENTAL ACTION GROUP v
PUNE CANTONMENT BOARD

Supreme Court of India
SLP (Civil) No. 11291 of 1986
13 October 1986

ORDER:

* * *

Special leave petition is rejected on the facts and circumstances of the present case. We may make it clear that it is not in every case where construction has started or rights of

¹⁷³ Section 123 read with section 162 of the Indian Evidence Act enables the government to refrain from disclosing the contents of documents ('privileged documents') whose disclosure would injure the public interest.

¹⁷⁴ *Supra* note 169.

¹⁷⁵ *Supra* note 170.

¹⁷⁶ In good faith—honestly, openly and sincerely.

third parties have intervened that the courts will necessarily refuse to exercise their discretion to grant relief under Article 226. Every case must depend on its special facts and circumstances and there may be cases where the ends of justice may demand that the High Court should intervene and grant relief despite the rights of third parties having come into existence where the petitioner may not be guilty of laches or of undue delay. We would direct the Pune Cantonment Board to take care while giving sanction for construction to ensure that none of the Bye-laws is violated. We would particularly draw the attention of the Pune Cantonment Board to Bye-Law 10 of which observance must be strictly secured in the future. We would also direct that any person residing within the area of a local authority or any social action group or interest group or pressure group shall be entitled to take inspection of any sanction granted or plan approved by such local authority in construction of buildings along with the related papers and documents if such individual or social action group or interest group or pressure group wishes to take such inspection, except of course in cases where in the interests of security such inspection cannot be permitted.

NOTES AND QUESTIONS

1. While the Bombay High Court judgment¹⁷⁷ restricted access to municipal urban development documents to 'recognized social action groups', the Supreme Court's order extends this right to all persons residing within the area as well as to any social action group, interest group or pressure group. A second respect in which the Supreme Court's order appears broader is that it carves a very limited 'interests of security' exception to the right to know. The High Court judgment, apparently, conferred a wider discretion on the municipal officer as it allowed them to withhold municipal records whenever a request for inspection was 'not made for a genuine purpose'.

2. What is the precedential value of the Supreme Court order? Article 141 of the Constitution states: 'The law declared by the Supreme Court shall be binding on all courts within the territory of India.' But this does not mean that every sentence uttered by a judge of the Supreme Court is binding. In *Union of India v All India Services Pensioners Association*¹⁷⁸ the Supreme Court stated: 'The special leave petitions were not dismissed without reasons. This court had given reasons for dismissing the special leave petitions. When such reasons are given, the decision becomes one which attracts Article 141 of the Constitution. ...' Is the *Bombay Environmental Action Group* order a 'reasoned order' within the meaning of Article 141?

V. ENVIRONMENTAL LAWS AND ACCESS TO OFFICIAL INFORMATION

Both the Air Act and the Water Act as amended in 1987 and 1988 respectively, oblige pollution control boards to disclose relevant internal reports to a citizen seeking

¹⁷⁷ A S Writ Petition No 2733 of 1986, reproduced earlier.

¹⁷⁸ AIR 1988 SC 501.

to prosecute a polluter. These disclosure provisions are unique among Indian laws. They ought to bolster citizen actions, and may also help to discipline polluters who are able to forestall prosecutions because they have the ear of board officials.

Provisos to section 43 of the Air Act and section 49 of the Water Act, however, allow a board to withhold any report if it considers that disclosure would be against 'the public interest'. This qualification to the right of information seems unnecessary. It is difficult to envision a situation where the disclosure of reports on pollution could harm the public.

Since citizens' prosecutions are still rare, the extent of a board's obligation to disclose information has yet to be judicially construed. Nonetheless, it seems clear that a mandamus will issue against a board when it unreasonably delays in disclosing documents that it would ordinarily use to prosecute a polluter.

The Environmental Impact Assessment Regulations of 1994 as amended in 1997, confer a right on members of the public to access the 'executive summary' of a proposal prepared by the project proponent. In theory, this access is meant to enable citizens to participate at a public hearing. In practical terms, the limited access prevents concerned citizens from effectively questioning the project. Unless citizens are permitted access to *all* relevant environmental studies and reports (and not just an executive summary authored by the project proponent), the public hearings will remain a formality.